

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

**DARREN DAVIS, RAYQUAN MCCULLUM,
ABRAHAM KABORE, JOSHUA PINCKNEY, SHAROD
SLATER, MARLIE WEBB, ELLIJAH PINCKNEY,
DEBRYANNA LYMUS, CHRISTOPHER FRANCO and
JEROME GRAHAM,**

INDEX NO.: 800945/2024E

Plaintiffs,

**AMENDED VERIFIED
COMPLAINT**

– against –

**CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER TIAGO GOMES,
POLICE OFFICER ALEX DURST, POLICE OFFICER
ESTIVEN MENA, POLICE OFFICER SHANYA
GONZALEZ, LIEUTENANT BRIAN QUERY, POLICE
OFFICER JOHAN JAIME, POLICE OFFICER JOSE
ROSSETTE, POLICE OFFICER JUAN
MARTINEZCABRERA, POLICE OFFICER JOHN DOE
and POLICE OFFICER JOHN ROE,**

Defendant(s).

Plaintiffs, by their attorney, **NEIL WOLLERSTEIN, ESQ.**, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

1. That at all times the Plaintiff **DARREN DAVIS** was and is a resident of County of the Bronx, City and State of New York.
2. That at all times hereinafter mentioned, the defendant, **CITY OF NEW YORK**, hereinafter referred to as “CITY”, was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned the defendant, **NEW YORK CITY POLICE DEPARTMENT**, hereinafter referred to as “NYPD”, was and is an agency of the defendant, CITY.
4. That on and prior to 8/25/23 and at all times hereinafter mentioned the defendant, **POLICE OFFICER TIAGO GOMES** (Tax No. 966599), hereinafter referred to as “GOMES” was

and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

5. That on and prior to 8/25/23 and at all times hereinafter mentioned the defendant, POLICE OFFICER ALEX DURST (Tax No. 969668), hereinafter referred to as "DURST" was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

6. That on and prior to 8/25/23 and at all times hereinafter mentioned the defendant, POLICE OFFICER ESTIVEN MENA (Tax No. 975659), hereinafter referred to as "MENA" was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

7. That on and prior to 8/25/23 and at all times hereinafter mentioned the defendant, POLICE OFFICER SHANYA GONALEZ (Tax No. 975501), hereinafter referred to as "GONZALEZ" was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

8. That on and prior to 8/25/23 and at all times hereinafter mentioned the defendant, LIEUTENANT BRIAN QUERY (Tax No. 937315), hereinafter referred to as "QUERY" was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

9. That on and prior to 8/25/23 and at all times hereinafter mentioned the defendant, POLICE OFFICER JOHAN JAIME (Tax No. 975560), hereinafter referred to as "JAIME" was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

10. That on and prior to 8/25/23 and at all times hereinafter mentioned the defendant,

POLICE OFFICER JOSE ROSSETTE (Tax No. 975659), hereinafter referred to as “ROSSETTE” was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

11. That on and prior to 8/25/23 and at all times hereinafter mentioned the defendant, POLICE OFFICER JUAN MARTINEZCABRERA (Tax No. 965791), hereinafter referred to as “MARTINEZCABRERA” was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

12. That on and prior to 8/25/23 and at all times hereinafter mentioned the defendant, POLICE OFFICER JOHN DOE, hereinafter referred to as “DOE” was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

13. That on and prior to 8/25/23 and at all times hereinafter mentioned the defendant, POLICE OFFICER JOHN ROE, hereinafter referred to as “ROE” was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

14. Upon information and belief, at all times hereinafter mentioned, and on 8/25/23, at approximately 11:15 p.m., several police officers including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE were on duty and in the vicinity of East 137th Street and Alexander Avenue, County of Bronx, City and State of New York.

15. Upon information and belief, at all times hereinafter mentioned, and on 8/25/23, at approximately 11:15 p.m., the above mentioned Police Officers were acting within the scope of their employment and under the direction of the CITY and NYPD as its agents, servants and/or

employees.

16. Upon information and belief, defendants GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE were all assigned to PSA 7.

17. That on and prior to 8/25/23, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE were each individually hired, screened, tested, interviewed, trained, retrained, investigated, monitored and supervised by the CITY and NYPD.

18. That on and prior to 8/25/23, at approximately 11:15 p.m., and all relevant times herein after, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE individually and/or collectively were acting pursuant to and under the rules and regulations of the New York City Patrol Guidelines.

19. That on 8/25/23, at approximately 11:15 p.m., Plaintiff **DARREN DAVIS** was lawfully in the vicinity of East 137th Street and Alexander Avenue, County of Bronx, State of New York and doing nothing illegal, improper or acting suspicious in anyway. In point of fact, Plaintiff **DARREN DAVIS** was not in possession of any contraband on his person, no contraband was in plain view and Plaintiff was entirely unaware of any contraband on the premises if there were was indeed any at all (which there was not). Moreover, Plaintiff was not the leaseholder nor a resident of any apartment within East 137th Street and Alexander Avenue, County of Bronx.

20. That on 8/25/23, at approximately 11:15 p.m., in the vicinity of East 137th Street and Alexander Avenue, County of Bronx, City and State of New York, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, absent an arrest warrant, probable cause, reasonable cause or any legal justification, and based on fraud, perjury and misrepresentations approached Plaintiff **DARREN DAVIS** for no reason and summarily

stopped, searched, grabbed, assaulted, battered, and detained him in an aggressive and excessive manner.

21. Upon information and belief GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE knew or had reason to know that their actions lacked any legal justification in approaching, searching, seizing and arresting Plaintiff **DARREN DAVIS**.

22. That Plaintiff **DARREN DAVIS** was arraigned after his arrest and thereafter falsely and maliciously prosecuted with committing a crime or crimes.

23. Thereafter, Plaintiff **DARREN DAVIS** remained incarcerated for over 24 hours and was required to make numerous court appearances over an extended period of time until all charges against him were terminated favorably.

24. Plaintiff **DARREN DAVIS** sustained physical and emotional pain and injuries as a result of this incident.

25. That within ninety (90) days after the causes of actions accrued herein, and more than thirty (30) days prior to the commencement of this action, the Plaintiff **DARREN DAVIS** caused the notice of claim, in writing, sworn to by and on behalf of the claimants, the Plaintiff herein, containing the statement of the name and place of residence of the claimants by the street and number and their attorney, and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon the defendant CITY, their agents, servants and/or employees at the Law Department,

26. This action was so commenced within one (1) year and ninety (90) days after said cause of action accrued herein, and for more than thirty (30) days prior to the commencement of this

action, defendant CITY neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although plaintiff herein has requested and demanded that the same be paid and adjusted.

27. That the defendants requested an oral examination pursuant to General Municipal Law Section 50-H and said request was complied with.

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
PLAINTIFF DARREN DAVIS

28. Plaintiff **DARREN DAVIS** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 27 with the same force and effect as if fully set forth at length herein.

29. That on or about 8/25/23, at approximately 11:15 p.m., the Plaintiff **DARREN DAVIS** was without just cause, probable cause or provocation, and with reckless, negligent and callous disregard for the truth, and without investigation, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with excessive force by CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and/or employees, and in particular, by GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE.

30. That on or about 8/25/23, at approximately 11:15 p.m., the Plaintiff **DARREN DAVIS** while lawfully in the vicinity of East 137th Street and Alexander Avenue, County of Bronx, City and State of New York, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE of having committed a crime.

31. That on or about 8/25/23, and upon arresting the Plaintiff **DARREN DAVIS** and

depriving him of his liberty, CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE took the Plaintiff **DARREN DAVIS** to a police station in the County of Bronx and entered him on the records as under arrest.

32. That on or about 8/25/23, the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE further caused Plaintiff **DARREN DAVIS** to have his fingerprints and photographs to be taken without his consent and in accordance with police procedures for the arrest of criminals and held him on various criminal charges at various police stations, correctional facilities and at a courthouse located in the County of Bronx, City and State of New York.

33. That on or about 8/25/23, Plaintiff **DARREN DAVIS** was aware of his arrest and confinement, he did not consent to his arrest or confinement, and said confinement, seizure, arrest and detention was without legal justification.

34. That at all times hereinafter mentioned the actions of CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

35. That by reason of the foregoing, Plaintiff **DARREN DAVIS** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF
PLAINTIFF DARREN DAVIS

36. Plaintiff **DARREN DAVIS** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 35 with the same force and effect as if fully set forth at length herein.

37. That on or about 8/25/23, a criminal complaint was issued by the CITY, NYPD,

GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

38. That on or about 8/25/23 a criminal action against Plaintiff **DARREN DAVIS** was commenced by CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

39. That solely as a result of the aforesaid, the Plaintiff **DARREN DAVIS**' life was interfered with.

40. That the criminal action against Plaintiff **DARREN DAVIS** was continued for an extended period of time by defendants with malice and bad faith.

41. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff **DARREN DAVIS**, he was deprived of his liberty for an extended period of time and was subjected to scorn, ridicule, embarrassment and was degraded in the esteem of the community both personally and professionally.

42. That the criminal action against Plaintiff **DARREN DAVIS** was terminated favorably by dismissal.

43. That the actions of CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

44. That by reason of the foregoing, Plaintiff **DARREN DAVIS** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF
PLAINTIFF DARREN DAVIS

45. Plaintiff **DARREN DAVIS** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 44 with the same force and effect as if fully set forth at length herein.

46. That on or about 8/25/23, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff **DARREN DAVIS** was intentionally touched, pushed, assaulted, battered, violated, searched, humiliated, photographed and handcuffed in the most egregious and excessive manner by the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

47. That on or about 8/25/23 CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and employees, acting as agents and on behalf of the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, within the scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff **DARREN DAVIS** in the most egregious and excessive matter in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff **DARREN DAVIS** and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff and/or offensive bodily contact to the Plaintiff **DARREN DAVIS** and caused such battery in and about his head, neck, back, body and limbs.

48. That by reason of the aforesaid intentional assault and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the

defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff **DARREN DAVIS** suffered great and permanent bodily injury in and about his head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that he was otherwise damaged.

49. That as a result of the aforesaid assault and battery the Plaintiff **DARREN DAVIS** was caused to sustain serious, severe, painful and permanent bodily injuries so that he was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure himself of his said injuries and he was and will be prevented from attending his usual occupation and duties.

50. That at all times hereinafter mentioned the actions of CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

51. That by reason of the foregoing, Plaintiff **DARREN DAVIS** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF DARREN DAVIS**

52. Plaintiff **DARREN DAVIS** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 51 with the same force and effect as if fully set forth at length herein.

53. That the CITY, NYPD, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME,

ROSSETTE, MARTINEZCABRERA, DOE and ROE, in that said police officers, as employees of CITY and NYPD, were not qualified to be hired or retained or promoted as police officers, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by CITY and NYPD.

54. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately test, analyze test results, and/or investigate above mentioned police officers backgrounds and performances.

55. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately screen said police officers, failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violate Patrol Guidelines.

56. Defendant CITY and NYPD were also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the police officer defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY and NYPD and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

57. That by reason of the above, the Plaintiff **DARREN DAVIS** was injured in mind and body as he was arrested, prosecuted and rendered sick, sore, and damaged.

58. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants

herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

59. That by reason of the foregoing, Plaintiff **DARREN DAVIS** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF DARREN DAVIS

60. Plaintiff **DARREN DAVIS** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-59 with the same force and effect as if fully set forth at length herein.

61. In arresting Plaintiff **DARREN DAVIS**, police officers including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

62. In arresting Plaintiff **DARREN DAVIS**, police officers including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, sought either a detriment to Plaintiff **DARREN DAVIS** or a collateral advantage to the CITY and NYPD that is outside the legitimate ends of effectuating an arrest.

63. As a result of the abuse of process by defendants herein, Plaintiff **DARREN DAVIS** sustained multiple injuries including but not limited to loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

64. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

65. That by reason of the foregoing, Plaintiff **DARREN DAVIS** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF DARREN DAVIS

66. Plaintiff **DARREN DAVIS** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 65 with the same force and effect as if fully set forth at length herein.

67. That on 8/25/23, at approximately 11:15 p.m., within the vicinity of East 137th Street and Alexander Avenue, County of Bronx, City and State of New York, the CITY and NYPD were present through its agents, servants and/or employees including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, who were acting in the course of their employment and under the color of law to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

68. That Plaintiff **DARREN DAVIS** was lawfully in the above vicinity at the above time when he was stopped, questioned, searched and seized solely on the basis of his age and/or race and for no legal or legitimate reason.

69. That said illegal stop and seizure was part of the CITY'S custom and practice and/or practice of racial profiling, and/or meeting arrest or summons quotas, and/or the illegal stop and search of civilians which was authorized by, or met with the tacit approval of the CITY and NYPD under their "Stop, Question and Frisk" policy or program ("Stop and Frisk").

70. That under the "Stop and Frisk" program the CITY and NYPD permitted, condoned, or acted with deliberate indifference to the racial disparity of its' application, to the fact that unnecessary or illegal frisks or searches were conducted, that very low percentages of seizures, frisks

and searches resulted in arrests or the recovery of contraband, that pretextual reasons are provided for “Stop and Frisk”, that officers do not always fill out Stop and Frisk reports, i.e. UF-250s, and are not disciplined when they fail to do so, that stop and frisks are conducted without reasonable suspicion, and that the program of “Stop and Frisk” has resulted in illegal stops, seizures, frisks, arrests and the use of physical force.

71. That the CITY and NYPD have failed to discipline, train, monitor or retrain offending police officers who engaged in stops and frisks without any legal justification and has failed to discipline police officers who fail to fill out required UF-250s.

72. That the CITY and NYPD have failed to adequately investigate and/or discipline officers who use excessive force, stop and frisk innocent citizens who have not done anything illegal or acted in suspicious manner warranting a seizure, who failed to report misconduct of fellow officers, who destroy evidence, who engage in fraud, misrepresentations, deceit, and maliciously participate in and instigate prosecutions of innocent citizens.

73. It is alleged herein that Plaintiff **DARREN DAVIS** was stopped and seized absent reasonable suspicion. That said actions of defendants were pursuant to an illegal and improper Stop and Frisk program that was promulgated by defendants. That such custom, policy and program has created a class of citizens, including Plaintiff **DARREN DAVIS**, who have been illegally stopped and seized, searched and questioned based on their race, and in order to meet arrest quotas. Evidence of said policy is as follows:

a. That in a class action lawsuit David Floyd, et. al. v. City of New York, et. al., pending in United States District Court, Southern District of New York, 08 CIV 1034, in a decision dated 5/16/12 certifying a class action lawsuit, it was found that between the years of 2005 and 2009 a reported 2.8 million people in New York City have been stopped and frisked. Of said number more

than 87% were minority citizens. Summons and arrests were issued or made in approximately 10% of the reported stops. Meaning that based on their own records, defendants' suspicions are incorrect approximately 9 out of 10 stops.

b. The Honorable Shira A. Scheindlin, found in the Floyd decision that:

- i. It is indisputable that NYPD has an enormous Stop and Frisk program;
- ii. Evidence shows that the Stop and Frisk program is organized and hierarchical;
- iii. Stop and Frisk program has been designed and revised at highest levels of defendants;
- iv. The implementation of the program is conducted according to uniform and centralized rules;
- v. Monitoring of the program is hierarchical;
- vi. The program is the result of institutional decisions and directives.

c. Justice Sheindlin further found that a preponderance of evidence shows that defendants policy of establishing performance standards and demanding increased levels of stop and frisks results in putative class of aggrieved citizens. The Court noted that street level stops have risen every year. That in 2004, defendants documented 313,000 stops, and in 2011 they reported 684,000 stops. In a Police Officer Performance Objectives Operation Order dated 10/17/11, Commissioner Kelly directed that "Department managers can and must set performance goals – relating to "the issuance of summons, the stopping and questioning of suspicious individuals and the arrests of criminals." It further states that "uniformed members who do not demonstrate activities . . . or who fail to engage in proactive activities . . . will be evaluated accordingly and their assignments reassessed."

74. Other instances of an illegal and/or improper stop and frisk program custom or practice

and/or excessive use of force and filing of false charges includes but not limited to:

a. On 4/12/11 in the vicinity of Walton Avenue and Mt. Hope Place, Bronx, NY, while doing nothing illegal or improper, Lonnie Thompson was approached by several uniformed police officers for no reason and without reasonable suspicion. After being stopped, Mr. Thompson was patted down and searched. He was arrested and charged with Criminal Possession of a Weapon in the Fourth Degree. This, even though the weapon was a bona fide work tool. Mr. Thompson was subjected to a strip search at the 46th Precinct. All charges were dismissed.

b. On 5/4/11 in the vicinity of 2345 Jerome Avenue, Bronx, NY, Alexis Niewkerk, who is handicapped, was sitting in his legally parked vehicle and waiting for his friends to finish shopping at a nearby store. All of a sudden several undercover police officers from Bronx Narcotics approached his vehicle for no reason and without reasonable suspicion ordered him out of said vehicle. Mr. Niewkerk was subjected to a pat down and search. He was subsequently arrested for possession of a controlled substance in the seventh degree even though the "substance" recovered from his pants pocket was his own prescribed pain medication. Mr. Niewkerk was subjected to a strip search and forced to move his body in ways that are extremely painful given his medical status and condition. All charges were dismissed.

c. On 6/2/11 in the vicinity of 985 Simpson Street, Bronx, NY, Jesus Rosario, an infant, was approached by several police officers from the 41st Precinct. He was told to "get on the wall" and thereafter patted down and searched. Mr. Rosario was accused of Trespassing in the Second Degree. Mr. Rosario was doing nothing illegal or improper at the time the officers approached as he was simply exiting 985 Simpson Street after visiting his father who resides in said building. After being arrested, Mr. Rosario was subjected to a strip search at the 41st Precinct. The case was declined to be prosecuted by the District Attorney's Office.

d. On 8/1/12 in the vicinity of 1000 Simpson Street, Bronx, NY Nicholas Hernandez and Dilson Pena were sitting outside of their building on a public bench and doing nothing illegal or improper. All of a sudden, several police officers from the 41st Precinct approached them for no reason and told them to submit to a frisk. Mr. Hernandez and Mr. Pena were accused of possession of marihuana even though no marihuana was recovered. They were each subjected to a strip search at the 41st Precinct. All charges against them were declined to be prosecuted by the District Attorney's Office.

e. On 1/22/11 in the vicinity of 808 Park Avenue, Brooklyn, NY, Captain Michelle Culp, a now retired Captain for New York City Department of Corrections, was visiting her sick and elderly mother at the aforementioned address and decided to walk her mother's dog. In so doing, Captain Culp was approached by several uniform housing police officers and accused of Trespassing in the Second Degree. She was patted down and searched. This, despite the fact that Captain Culp explained that she was visiting her mother and her identification and personal belongings were in her mother's apartment in the same building. All charges were dismissed.

f. On 5/20/11 in the vicinity of Park Avenue and East 138th Street, Bronx, NY, Patrick Nielson was exiting the number 4 subway train and going to his car which was parked nearby when he was followed, stopped, frisked, and assaulted by several undercover police officers from Bronx Narcotics for no reason. Thereafter, he was arrested and accused of possession of a controlled substance. Mr. Nielson was subjected to a strip search. The "controlled" substance was Mr. Nielson's prescribed medicine. All charges were dismissed.

g. On 6/22/10 in the vicinity of 139th Street and Lenox Avenue, New York, NY, Wilford Person was approached by several undercover police officers from Manhattan North Narcotics for no legitimate reason. Mr. Person was thereafter told to get against a fence and patted down and

searched. He was accused of possession of marihuana. Mr. Person was simply playing basketball at the time the police approached him. After being arrested and subjected to a strip search Mr. Person was prosecuted. All charges were eventually dismissed.

h. On 5/2/12 in the vicinity of 1912 Third Avenue, New York, NY, Jose Baez, the manager of a local eyeglass store, left the store to buy his lunch. After leaving the store Mr. Baez, for no reason at all, was approached by several undercover police officers from Manhattan North Narcotics, and was detained, patted down, searched, and falsely accused of selling marihuana. Mr. Baez was subjected to a strip search. All charges against him were dismissed.

i. On 11/13/10 in the vicinity of 1113 Boston Road, Bronx, NY, Alpha Mahoi, was doing nothing illegal or improper when, for no reason, he was approached by several undercover police officers from Bronx Narcotics and accused of being involved in the sale of cocaine. He was cuffed, patted down, searched, arrested and strip searched at the precinct. All charges were dismissed.

j. On 3/10/12 in the vicinity of 1821 Davison Avenue, Bronx, NY, Keyewanie Blackledge, Dwayne Smith and Richard Campbell were leaving his friend's apartment when they were approached by several uniform police officers from the 46th Precinct for no reason and told to "get on the wall" and "get on the floor" and thereafter patted down and searched. They was charged with Trespassing in the Second Degree. All charges were dismissed.

k. On 8/1/12 in the vicinity of 1000 Simpson Street, Bronx, NY, Dylan Pena was outside recording on his cell phone several police officers from the 41st Precinct arresting a person from the neighborhood. Upon seeing Mr. Pena recording the incident several police officers grabbed him and pushed him to the ground and seized his cell phone without any reason to do so. All data on the phone was subsequently erased by the officers. Mr. Pena was also patted down and searched. He was charged with resisting arrest and was strip searched at the 41st Precinct. The charges were

declined to be prosecuted by the District Attorney's Office.

l. On 5/17/11 in the vicinity of 1690 Clay Avenue, Bronx, NY, Gregory Williams was leaving a family friend's apartment after helping her move furniture so she could clean. Upon exiting the building Mr. Williams, for no reason at all, was approached by several uniformed police officers from the 44th Precinct and patted down and searched. He was accused of Trespassing in the Second Degree despite his family friend informing the police officers at the scene and at the 44th Precinct that he had permission to be in the building. Mr. Williams was strip searched. All charges against him were dismissed.

m. On 3/16/11 in the vicinity of 1740 Grand Avenue, Bronx, NY, Lindon Grant just left his apartment to walk approximately 1 block to buy breakfast before going to work. After he bought his breakfast and left the store he was approached by several undercover police officers from the 46th Precinct for no reason and patted down and searched. He was then accused of selling marihuana. Mr. Grant was arrested, strip searched and prosecuted for several months. All charges were dismissed.

n. On 8/2/09 in the vicinity of Southern Boulevard and East 175th Street, Bronx, NY Jose Suazo was approached by several uniformed officers from the 42nd Precinct for no reason. Mr. Suazo was patted down and searched. Despite the fact that he had nothing illegal on his person he was charged with possession of marihuana. While already in custody in a police van shots were fired in a nearby park. When Mr. Suazo got to the precinct he found out that even though he was already in custody in the police van when the shots were fired, he was charged with possession of a weapon in the second degree. Mr. Suazo was subjected to a strip search. All charges were eventually dismissed.

o. On 8/12/19 in the vicinity of 894 Rogers Place, Bronx, NY, Edmanuel Benitez was

standing outside of the building and waiting for a friend to come outside to play basketball. All of a sudden he was approached for no reason by officers from the 41st Precinct and thereafter patted down, searched, arrested, strip searched and prosecuted for the sale of marihuana. All charges were dismissed.

p. On 2/19/12 Daniel Rodriguez was leaving a store in the vicinity of Jerome Avenue and West 192nd Street when he was summarily grabbed, pushed against a wall, patted down, frisked, searched and then handcuffed by several officers from Bronx Narcotics. Mr. Rodriguez was doing nothing illegal or improper at the time. He was subsequently strip searched and charged with possession of a controlled substance in the seventh degree. All charges were dismissed.

q. On 9/28/11 Shakeem Enang was in the vicinity of West 179th Street and University Avenue when he was approached by several plain clothes officers from Bronx Narcotics Division. Mr. Enang was doing nothing illegal at the time the officers approached or any time prior to the officers approaching. He was grabbed, seized, frisked, searched and then arrested. Mr. Enang was charged with criminal sale of a controlled substance. He was strip searched at the 46th Precinct. All charges were dismissed.

75. As is evidence from the above, Plaintiff **DARREN DAVIS'** injuries including the violation of his constitutional rights, the deprivation of his freedom, falsely and maliciously being prosecuted, physical and emotional injuries, are the direct and proximate result of the CITY'S and NYPD'S policies and/or deliberate indifference to practices which involve the excessive use of force, false arrest, police cover-ups, witness intimidation, malicious prosecution, illegal stop, questions and frisks, searches, Fourth Amendment violations, and deliberate indifference to the need to train, supervise, monitor, investigate and discipline, including suspension, dismissal and/or reassignment offending police officers. The practice is widespread and pervasive throughout the

entire City of New York.

76. The CITY and NYPD knew or should have known of the customs and police practices of its officers which included but was not limited to: the failing to preserve and/or destruction of exculpatory evidence, threatening to arrest witnesses to police misconduct and engaging in cover-ups, fraud, perjury, deceit and malfeasance.

77. That the acts of employees of the CITY and NYPD, i.e. police officers, who violate the civil and constitutional rights of the citizens of the City of New York routinely go unreported, undisciplined and their acts condoned by other officers, including their supervisors. Upon information and belief, the supervisors of defendant police officers herein were aware of the conduct of defendant police officers and failed to stop, report or intervene in the misconduct.

78. The CITY and NYPD'S tolerance for brutality, excessive force, illegal and/or retaliatory arrests, and their emphasis to come down hard on quality of life infractions leads to a systemic practice and policy wherein police officers seem fairly tolerant of police brutality, silence in the face of brutality and/or illegal stops, frisks, searches, seizures and/or arrests, and engage in the practice of meeting arrest quotas. A systemic practice where officers who report said misconduct are not viewed as "good cops" but rather as outcasts and are ostracized and often transferred to other assignments thereby perpetuating the illegal conduct of the NYPD and thusly the CITY.

79. Some instances where officers were treated as outcasts for reporting misconduct and/or arrest/summons quota system are as follows:

a. The existence of arrest quotas, summons quotas and approval of illegal stops and arrests have been exposed by Police officer Adrian Schoolcraft in a separate lawsuit which was cited by Justice Sheindlin in Floyd.

b. Justice Sheindlin referenced the deposition of Police Officer Adhjly Polanco of the 41st

Precinct stating that commanding officers set specific quotas for arrests and summons and for stop and frisks and threatened to reduce overtime for officers who failed to perform well and re-assign those who fail to meet quotas to less desirable posts.

c. According to secretly tape recorded conversations made by Schoolcraft, a Lieutenant, a Deputy Inspector and Chief of transportation can be heard encouraging and demanding increased stops, summons and detentions and arrests.

d. Police Officer Craig Lance of the 42nd Precinct filed a lawsuit against the NYPD claiming the existence of a quota system and a systematic retaliation and harassment to those who did not comply.

e. Retired Detective James Griffin filed a lawsuit claiming that in the NYPD there exists a culture wherein officers who report corruption will face harassment and a hostile work environment and that this conduct was tolerated by supervisors within the NYPD.

f. Police Officer Minoia, an officer with an Ivy League degree, assigned to the 42nd Precinct, was reassigned to a "punishment post" due to the fact that he failed to write a sufficient amount of summons and stated "I'm not going to pull out my summons book and write a summons because my boss is telling me he's going to make it difficult for me if I don't."

80. In sum, the CITY and NYPD are responsible for creating a custom, policy or practice wherein many officers do not seem to believe that anything is really wrong with stopping and searching innocent citizens or using unnecessary or excessive force or falsely arresting citizens to meet an arrest quota.

81. That the above customs, policies and/or practices and the deliberate indifference thereto, was a direct and proximate cause of the illegal seizure of Plaintiff **DARREN DAVIS**, the excessive use of force on Plaintiff, and the false arrest and malicious prosecution of Plaintiff. The CITY and

NYPD'S policies, customs and/or practices deprived the Plaintiff of his rights and liberties as set forth in the Constitutions of the United States and the State of New York and under 42 U.S.C §§ 1983, 1986 and 1988.

82. That said actions violated the Fourth and Fourteenth Amendments to the Constitution of the United States, violated Plaintiff's right to be secure in person, and that the defendants used excessive, unnecessary and unlawful force, which constituted cruel and inhumane treatment and denied him due process of law.

83. Moreover, the CITY and NYPD caused or created a policy and/or custom, and acted with deliberate indifference to patterns and/or police practices which included illegal seizures, excessive or arbitrary use of force, illegal use of police equipment, destruction of evidence, intimidation of witnesses, illegal arrests, failing to gather evidence when allegations of police misconduct are involved, condoning a code of silence within the NYPD regarding misconduct, failing to take police reports of illegal conduct, failing to properly supervise, train, investigate or discipline officers, and any and/or all of the above have contributed to Plaintiff's false arrest, malicious and false prosecution, and injuries.

84. That the Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, assaulted, battered and deprived of his constitutional rights as set forth in the Constitution of the United States and 42 U.S.C § 1983.

85. That by reason of the foregoing, Plaintiff **DARREN DAVIS** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF DARREN DAVIS**

86. Plaintiff **DARREN DAVIS** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 85 with the same force and effect as if fully set forth at length

herein.

87. At all times mentioned herein and above, defendants CITY and NYPD employed GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as police officers and named defendants were acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

88. Plaintiff **DARREN DAVIS** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

89. That on or about 8/25/23, defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, without probable cause, reasonable cause or legal justification and while effectuating the seizure of plaintiff **DARREN DAVIS**, did search, seize, assault and commit a battery and grab the Plaintiff **DARREN DAVIS** without a court authorized arrest warrant or search warrant and defendants did physically seize Plaintiff **DARREN DAVIS** during the arrest process in an unlawful and excessive manner. Plaintiff **DARREN DAVIS** was falsely arrested, unlawfully imprisoned and searched and as a result of defendants' conduct maliciously prosecuted without the defendants possessing probable cause, reasonable cause or legal justification to do so.

90. The above actions of defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE resulted in Plaintiff **DARREN DAVIS** being deprived of the following rights under the United States Constitution: a) Freedom from assault to his person; b) Freedom from battery to his person; c) Freedom from illegal search and seizure; d) Freedom from false arrest; e) Freedom from malicious

prosecution; f) Freedom from the use of excessive force during the arrest process; and g) The right to Due Process of Law.

91. In addition to the above, defendants CITY and NYPD have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct its police officers, including the officers involved in this case and any and all unnamed officers involved in the unlawful seizure and arrest of plaintiff, regarding the protection of the constitutional rights of citizens.

92. Defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, subjected Plaintiff **DARREN DAVIS** to such deprivation in a malicious, reckless, deliberate, intentional, grossly negligent and with a callous disregard of Plaintiff **DARREN DAVIS'** rights and with deliberate indifference to those rights under the Fourth, Fifth, Sixth, Fourteenth and all other related Amendments to the United States Constitution.

93. The direct and proximate result of the defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE acts are that Plaintiff **DARREN DAVIS** has suffered severe and permanent injuries, loss of liberty and companionship, forced to endure pain and suffering, emotional distress and severe and significant damage to standing and reputation in the community.

94. That by reason of the foregoing, Plaintiff **DARREN DAVIS** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A EIGHTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF RAYQUAN MCCULLUM

95. Plaintiff **RAYQUAN MCCULLUM** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 94 with the same force and effect as if fully set forth

at length herein.

96. That at all times the Plaintiff **RAYQUAN MCCULLUM** was and is a resident of County of Bronx, City and State of New York.

97. That on 8/25/23, at approximately 11:15 p.m., Plaintiff **RAYQUAN MCCULLUM** was lawfully in the vicinity of East 137th Street and Alexander Avenue, County of Bronx, State of New York and doing nothing illegal, improper or acting suspicious in anyway.

98. That on 8/25/23, at approximately 11:15 p.m., in the vicinity of East 137th Street and Alexander Avenue, County of Bronx, State of New York, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, absent an arrest warrant, probable cause, reasonable cause or any legal justification, approached Plaintiff **RAYQUAN MCCULLUM** for no reason and summarily stopped, frisked, searched, grabbed, assaulted, battered, and detained him in an aggressive and excessive manner.

99. Upon information and belief GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE knew or had reason to know that their actions lacked any legal justification in approaching, searching, seizing and arresting Plaintiff **RAYQUAN MCCULLUM**.

100. That Plaintiff **RAYQUAN MCCULLUM** was arraigned after his arrest and thereafter falsely and maliciously prosecuted with committing a crime or crimes.

101. Thereafter, Plaintiff **RAYQUAN MCCULLUM** remained incarcerated for over 24 hours and was required to make numerous court appearances over an extended period of time until all charges against him were terminated favorably.

102. Plaintiff **RAYQUAN MCCULLUM** sustained physical and emotional pain and injuries as a result of this incident.

103. That within ninety (90) days after the causes of actions accrued herein, and more than thirty (30) days prior to the commencement of this action, the Plaintiff **RAYQUAN MCCULLUM** caused the notice of claim, in writing, sworn to by and on behalf of the claimants, the Plaintiff herein, containing the statement of the name and place of residence of the claimants by the street and number and their attorney, and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon the defendant CITY, their agents, servants and/or employees at the Law Department,

104. This action was so commenced within one (1) year and ninety (90) days after said cause of action accrued herein, and for more than thirty (30) days prior to the commencement of this action, defendant CITY neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although plaintiff herein has requested and demanded that the same be paid and adjusted.

105. That the defendants requested an oral examination pursuant to General Municipal Law Section 50-H and said request was complied with.

106. That on or about 8/25/23, at approximately 11:15 p.m., the Plaintiff **RAYQUAN MCCULLUM** was without just cause, probable cause or provocation, and with reckless, negligent and callous disregard for the truth, and without investigation, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with excessive force by CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and/or employees, and in particular, by GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE.

107. That on or about 8/25/23, at approximately 11:15 p.m., the Plaintiff **RAYQUAN**

MCCULLUM while lawfully in the vicinity of East 137th Street and Alexander Avenue, County of Bronx, City and State of New York, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE of having committed a crime or crimes.

108. That on or about 8/25/23, and upon arresting the Plaintiff **RAYQUAN MCCULLUM** and depriving him of his liberty, CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE took the Plaintiff **RAYQUAN MCCULLUM** to a police station in the County of Bronx and entered him on the records as under arrest.

109. That on or about 8/25/23, the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE further caused Plaintiff **RAYQUAN MCCULLUM** to have his fingerprints and photographs to be taken without his consent and in accordance with police procedures for the arrest of criminals and held him on various criminal charges at various police stations, correctional facilities and at the Courthouse located at 215 East 161st Street, County of Bronx, City and State of New York.

110. That on or about 8/25/23 Plaintiff **RAYQUAN MCCULLUM** was aware of his arrest and confinement, he did not consent to his arrest or confinement, and said confinement, seizure, arrest and detention was without legal justification.

111. That at all times hereinafter mentioned the actions of CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

112. That by reason of the foregoing, Plaintiff **RAYQUAN MCCULLUM** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A NINTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF RAYQUAN MCCULLUM

113. Plaintiff **RAYQUAN MCCULLUM** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 112 with the same force and effect as if fully set forth at length herein.

114. That on or about 8/25/23, a criminal complaint was issued by the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

115. That on or about 8/25/23 a criminal action against Plaintiff **RAYQUAN MCCULLUM** was commenced by CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

116. That solely as a result of the aforesaid, the Plaintiff **RAYQUAN MCCULLUM'S** life was interfered with.

117. That the criminal action against Plaintiff **RAYQUAN MCCULLUM** was continued for an extended period of time by defendants with malice and bad faith.

118. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff **RAYQUAN MCCULLUM**, he was deprived of his liberty for an extended period of time and was subjected to scorn, ridicule, embarrassment and was degraded in the esteem of the community both personally and professionally.

119. That the criminal action against Plaintiff **RAYQUAN MCCULLUM** was terminated

favorably by dismissal.

120. That the actions of CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

121. That by reason of the foregoing, Plaintiff **RAYQUAN MCCULLUM** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A TENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF RAYQUAN MCCULLUM

122. Plaintiff **RAYQUAN MCCULLUM** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 121 with the same force and effect as if fully set forth at length herein.

123. That on or about 8/25/23, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff **RAYQUAN MCCULLUM** was intentionally touched, pushed, assaulted, battered, violated, searched, humiliated, photographed and handcuffed by the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

124. That on or about 8/25/23 CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and employees, acting as agents and on behalf of the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, within the scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff **RAYQUAN MCCULLUM** in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened

such contact to the Plaintiff **RAYQUAN MCCULLUM** and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff and/or offensive bodily contact to the Plaintiff **RAYQUAN MCCULLUM** and caused such battery in and about his head, neck, back, body and limbs.

125. That by reason of the aforesaid intentional assault and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff **RAYQUAN MCCULLUM** suffered great and permanent bodily injury in and about his head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that he was otherwise damaged.

126. That as a result of the aforesaid assault and battery the Plaintiff **RAYQUAN MCCULLUM** was caused to sustain serious, severe, painful and permanent bodily injuries so that he was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure himself of his said injuries and he was and will be prevented from attending his usual occupation and duties.

127. That at all times hereinafter mentioned the actions of CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

128. That by reason of the foregoing, Plaintiff **RAYQUAN MCCULLUM** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A ELEVENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF RAYQUAN MCCULLUM

129. Plaintiff **RAYQUAN MCCULLUM** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 128 with the same force and effect as if fully set forth at length herein.

130. That the CITY, NYPD, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, in that said police officers, as employees of CITY and NYPD, were not qualified to be hired or retained or promoted as police officers, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by CITY and NYPD.

131. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately test, analyze test results, and/or investigate above mentioned police officers backgrounds and performances.

132. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately screen said police officers, failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violate Patrol Guidelines.

133. Defendant CITY and NYPD were also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the police officer defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by

the CITY and NYPD and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

134. That by reason of the above, the Plaintiff **RAYQUAN MCCULLUM** was injured in mind and body as he was arrested, prosecuted and rendered sick, sore, and damaged.

135. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

136. That by reason of the foregoing, Plaintiff **RAYQUAN MCCULLUM** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A TWELFTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF RAYQUAN MCCULLUM

137. Plaintiff **RAYQUAN MCCULLUM** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-136 with the same force and effect as if fully set forth at length herein.

138. In arresting Plaintiff **RAYQUAN MCCULLUM**, police officers including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

139. In arresting Plaintiff **RAYQUAN MCCULLUM**, police officers including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, sought either a detriment to Plaintiff **RAYQUAN MCCULLUM** or a

collateral advantage to the CITY and NYPD that is outside the legitimate ends of effectuating an arrest.

140. As a result of the abuse of process by defendants herein, Plaintiff **RAYQUAN MCCULLUM** sustained multiple injuries including but not limited to loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

141. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

142. That by reason of the foregoing, Plaintiff **RAYQUAN MCCULLUM** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A THIRTEENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF RAYQUAN MCCULLUM

143. Plaintiff **RAYQUAN MCCULLUM** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 142 with the same force and effect as if fully set forth at length herein.

144. That on 8/25/23, at approximately 11:15 p.m., within the vicinity of East 137th Street and Alexander Avenue, County of Bronx, City and State of New York, the CITY and NYPD were present through its agents, servants and/or employees including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, who were acting in the course of their employment and under the color of law to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

145. That Plaintiff **RAYQUAN MCCULLUM** was lawfully in the above vicinity at the

above time when he was stopped, questioned, searched and seized solely on the basis of his age and/or race and for no legal or legitimate reason.

146. That said illegal stop and seizure was part of the CITY'S custom and practice and/or practice of racial profiling, and/or meeting arrest or summons quotas, and/or the illegal stop and search of civilians which was authorized by, or met with the tacit approval of the CITY and NYPD under their "Stop, Question and Frisk" policy or program ("Stop and Frisk").

147. That under the "Stop and Frisk" program the CITY and NYPD permitted, condoned, or acted with deliberate indifference to the racial disparity of its' application, to the fact that unnecessary or illegal frisks or searches were conducted, that very low percentages of seizures, frisks and searches resulted in arrests or the recovery of contraband, that pretextual reasons are provided for "Stop and Frisk", that officers do not always fill out Stop and Frisk reports, i.e. UF-250s, and are not disciplined when they fail to do so, that stop and frisks are conducted without reasonable suspicion, and that the program of "Stop and Frisk" has resulted in illegal stops, seizures, frisks, arrests and the use of physical force.

148. That the CITY and NYPD have failed to discipline, train, monitor or retrain offending police officers who engaged in stops and frisks without any legal justification and has failed to discipline police officers who fail to fill out required UF-250s.

149. That the CITY and NYPD have failed to adequately investigate and/or discipline officers who use excessive force, stop and frisk innocent citizens who have not done anything illegal or acted in suspicious manner warranting a seizure, who failed to report misconduct of fellow officers, who destroy evidence, who engage in fraud, misrepresentations, deceit, and maliciously participate in and instigate prosecutions of innocent citizens.

150. It is alleged herein that Plaintiff **RAYQUAN MCCULLUM** was stopped and seized

absent reasonable suspicion. That said actions of defendants were pursuant to an illegal and improper Stop and Frisk program that was promulgated by defendants. That such custom, policy and program has created a class of citizens, including Plaintiff **RAYQUAN MCCULLUM**, who have been illegally stopped and seized, searched and questioned based on their race, and in order to meet arrest quotas. Evidence of said policy is as follows:

a. That in a class action lawsuit David Floyd, et. al. v. City of New York, et. al., pending in United States District Court, Southern District of New York, 08 CIV 1034, in a decision dated 5/16/12 certifying a class action lawsuit, it was found that between the years of 2005 and 2009 a reported 2.8 million people in New York City have been stopped and frisked. Of said number more than 87% were minority citizens. Summons and arrests were issued or made in approximately 10% of the reported stops. Meaning that based on their own records, defendants' suspicions are incorrect approximately 9 out of 10 stops.

b. The Honorable Shira A. Scheindlin, found in the Floyd decision that:

- i. It is indisputable that NYPD has an enormous Stop and Frisk program;
- ii. Evidence shows that the Stop and Frisk program is organized and hierarchical;
- iii. Stop and Frisk program has been designed and revised at highest levels of defendants;
- iv. The implementation of the program is conducted according to uniform and centralized rules;
- v. Monitoring of the program is hierarchical;
- vi. The program is the result of institutional decisions and directives.

c. Justice Sheindlin further found that a preponderance of evidence shows that defendants policy of establishing performance standards and demanding increased levels of stop and frisks

results in putative class of aggrieved citizens. The Court noted that street level stops have risen every year. That in 2004, defendants documented 313,000 stops, and in 2011 they reported 684,000 stops. In a Police Officer Performance Objectives Operation Order dated 10/17/11, Commissioner Kelly directed that “Department managers can and must set performance goals – relating to “the issuance of summons, the stopping and questioning of suspicious individuals and the arrests of criminals.” It further states that “uniformed members who do not demonstrate activities . . . or who fail to engage in proactive activities . . . will be evaluated accordingly and their assignments reassessed.”

151. Other instances of an illegal and/or improper stop and frisk program custom or practice and/or excessive use of force and filing of false charges includes but not limited to:

a. On 4/12/11 in the vicinity of Walton Avenue and Mt. Hope Place, Bronx, NY, while doing nothing illegal or improper, Lonnie Thompson was approached by several uniformed police officers for no reason and without reasonable suspicion. After being stopped, Mr. Thompson was patted down and searched. He was arrested and charged with Criminal Possession of a Weapon in the Fourth Degree. This, even though the weapon was a bona fide work tool. Mr. Thompson was subjected to a strip search at the 46th Precinct. All charges were dismissed.

b. On 5/4/11 in the vicinity of 2345 Jerome Avenue, Bronx, NY, Alexis Niewkerk, who is handicapped, was sitting in his legally parked vehicle and waiting for his friends to finish shopping at a nearby store. All of a sudden several undercover police officers from Bronx Narcotics approached his vehicle for no reason and without reasonable suspicion ordered him out of said vehicle. Mr. Niewkerk was subjected to a pat down and search. He was subsequently arrested for possession of a controlled substance in the seventh degree even though the “substance” recovered from his pants pocket was his own prescribed pain medication. Mr. Niewkerk was subjected to a

strip search and forced to move his body in ways that are extremely painful given his medical status and condition. All charges were dismissed.

c. On 6/2/11 in the vicinity of 985 Simpson Street, Bronx, NY, Jesus Rosario, an infant, was approached by several police officers from the 41st Precinct. He was told to “get on the wall” and thereafter patted down and searched. Mr. Rosario was accused of Trespassing in the Second Degree. Mr. Rosario was doing nothing illegal or improper at the time the officers approached as he was simply exiting 985 Simpson Street after visiting his father who resides in said building. After being arrested, Mr. Rosario was subjected to a strip search at the 41st Precinct. The case was declined to be prosecuted by the District Attorney’s Office.

d. On 8/1/12 in the vicinity of 1000 Simpson Street, Bronx, NY Nicholas Hernandez and Dilson Pena were sitting outside of their building on a public bench and doing nothing illegal or improper. All of a sudden, several police officers from the 41st Precinct approached them for no reason and told them to submit to a frisk. Mr. Hernandez and Mr. Pena were accused of possession of marihuana even though no marihuana was recovered. They were each subjected to a strip search at the 41st Precinct. All charges against them were declined to be prosecuted by the District Attorney’s Office.

e. On 1/22/11 in the vicinity of 808 Park Avenue, Brooklyn, NY, Captain Michelle Culp, a now retired Captain for New York City Department of Corrections, was visiting her sick and elderly mother at the aforementioned address and decided to walk her mother’s dog. In so doing, Captain Culp was approached by several uniform housing police officers and accused of Trespassing in the Second Degree. She was patted down and searched. This, despite the fact that Captain Culp explained that she was visiting her mother and her identification and personal belongings were in her mother’s apartment in the same building. All charges were dismissed.

f. On 5/20/11 in the vicinity of Park Avenue and East 138th Street, Bronx, NY, Patrick Nielson was exiting the number 4 subway train and going to his car which was parked nearby when he was followed, stopped, frisked, and assaulted by several undercover police officers from Bronx Narcotics for no reason. Thereafter, he was arrested and accused of possession of a controlled substance. Mr. Nielson was subjected to a strip search. The “controlled” substance was Mr. Nielson’s prescribed medicine. All charges were dismissed.

g. On 6/22/10 in the vicinity of 139th Street and Lenox Avenue, New York, NY, Wilford Person was approached by several undercover police officers from Manhattan North Narcotics for no legitimate reason. Mr. Person was thereafter told to get against a fence and patted down and searched. He was accused of possession of marihuana. Mr. Person was simply playing basketball at the time the police approached him. After being arrested and subjected to a strip search Mr. Person was prosecuted. All charges were eventually dismissed.

h. On 5/2/12 in the vicinity of 1912 Third Avenue, New York, NY, Jose Baez, the manager of a local eyeglass store, left the store to buy his lunch. After leaving the store Mr. Baez, for no reason at all, was approached by several undercover police officers from Manhattan North Narcotics, and was detained, patted down, searched, and falsely accused of selling marihuana. Mr. Baez was subjected to a strip search. All charges against him were dismissed.

i. On 11/13/10 in the vicinity of 1113 Boston Road, Bronx, NY, Alpha Mahoi, was doing nothing illegal or improper when, for no reason, he was approached by several undercover police officers from Bronx Narcotics and accused of being involved in the sale of cocaine. He was cuffed, patted down, searched, arrested and strip searched at the precinct. All charges were dismissed.

j. On 3/10/12 in the vicinity of 1821 Davison Avenue, Bronx, NY, Keyewanie Blackledge, Dwayne Smith and Richard Campbell were leaving his friend’s apartment when they

were approached by several uniform police officers from the 46th Precinct for no reason and told to “get on the wall” and “get on the floor” and thereafter patted down and searched. They was charged with Trespassing in the Second Degree. All charges were dismissed.

k. On 8/1/12 in the vicinity of 1000 Simpson Street, Bronx, NY, Dylan Pena was outside recording on his cell phone several police officers from the 41st Precinct arresting a person from the neighborhood. Upon seeing Mr. Pena recording the incident several police officers grabbed him and pushed him to the ground and seized his cell phone without any reason to do so. All data on the phone was subsequently erased by the officers. Mr. Pena was also patted down and searched. He was charged with resisting arrest and was strip searched at the 41st Precinct. The charges were declined to be prosecuted by the District Attorney’s Office.

l. On 5/17/11 in the vicinity of 1690 Clay Avenue, Bronx, NY, Gregory Williams was leaving a family friend’s apartment after helping her move furniture so she could clean. Upon exiting the building Mr. Williams, for no reason at all, was approached by several uniformed police officers from the 44th Precinct and patted down and searched. He was accused of Trespassing in the Second Degree despite his family friend informing the police officers at the scene and at the 44th Precinct that he had permission to be in the building. Mr. Williams was strip searched. All charges against him were dismissed.

m. On 3/16/11 in the vicinity of 1740 Grand Avenue, Bronx, NY, Lindon Grant just left his apartment to walk approximately 1 block to buy breakfast before going to work. After he bought his breakfast and left the store he was approached by several undercover police officers from the 46th Precinct for no reason and patted down and searched. He was then accused of selling marihuana. Mr. Grant was arrested, strip searched and prosecuted for several months. All charges were dismissed.

n. On 8/2/09 in the vicinity of Southern Boulevard and East 175th Street, Bronx, NY Jose Suazo was approached by several uniformed officers from the 42nd Precinct for no reason. Mr. Suazo was patted down and searched. Despite the fact that he had nothing illegal on his person he was charged with possession of marihuana. While already in custody in a police van shots were fired in a nearby park. When Mr. Suazo got to the precinct he found out that even though he was already in custody in the police van when the shots were fired, he was charged with possession of a weapon in the second degree. Mr. Suazo was subjected to a strip search. All charges were eventually dismissed.

o. On 8/12/19 in the vicinity of 894 Rogers Place, Bronx, NY, Edmanuel Benitez was standing outside of the building and waiting for a friend to come outside to play basketball. All of a sudden he was approached for no reason by officers from the 41st Precinct and thereafter patted down, searched, arrested, strip searched and prosecuted for the sale of marihuana. All charges were dismissed.

p. On 2/19/12 Daniel Rodriguez was leaving a store in the vicinity of Jerome Avenue and West 192nd Street when he was summarily grabbed, pushed against a wall, patted down, frisked, searched and then handcuffed by several officers from Bronx Narcotics. Mr. Rodriguez was doing nothing illegal or improper at the time. He was subsequently strip searched and charged with possession of a controlled substance in the seventh degree. All charges were dismissed.

q. On 9/28/11 Shakeem Enang was in the vicinity of West 179th Street and University Avenue when he was approached by several plain clothes officers from Bronx Narcotics Division. Mr. Enang was doing nothing illegal at the time the officers approached or any time prior to the officers approaching. He was grabbed, seized, frisked, searched and then arrested. Mr. Enang was charged with criminal sale of a controlled substance. He was strip searched at the 46th Precinct. All

charges were dismissed.

152. As is evidence from the above, Plaintiff **RAYQUAN MCCULLUM'S** injuries including the violation of his constitutional rights, the deprivation of his freedom, falsely and maliciously being prosecuted, physical and emotional injuries, are the direct and proximate result of the CITY'S and NYPD'S policies and/or deliberate indifference to practices which involve the excessive use of force, false arrest, police cover-ups, witness intimidation, malicious prosecution, illegal stop, questions and frisks, searches, Fourth Amendment violations, and deliberate indifference to the need to train, supervise, monitor, investigate and discipline, including suspension, dismissal and/or reassignment offending police officers. The practice is widespread and pervasive throughout the entire City of New York.

153. The CITY and NYPD knew or should have known of the customs and police practices of its officers which included but was not limited to: the failing to preserve and/or destruction of exculpatory evidence, threatening to arrest witnesses to police misconduct and engaging in cover-ups, fraud, perjury, deceit and malfeasance.

154. That the acts of employees of the CITY and NYPD, i.e. police officers, who violate the civil and constitutional rights of the citizens of the City of New York routinely go unreported, undisciplined and their acts condoned by other officers, including their supervisors. Upon information and belief, the supervisors of defendant police officers herein were aware of the conduct of defendant police officers and failed to stop, report or intervene in the misconduct.

155. The CITY and NYPD'S tolerance for brutality, excessive force, illegal and/or retaliatory arrests, and their emphasis to come down hard on quality of life infractions leads to a systemic practice and policy wherein police officers seem fairly tolerant of police brutality, silence in the face of brutality and/or illegal stops, frisks, searches, seizures and/or arrests, and engage in the

practice of meeting arrest quotas. A systemic practice where officers who report said misconduct are not viewed as “good cops” but rather as outcasts and are ostracized and often transferred to other assignments thereby perpetuating the illegal conduct of the NYPD and thusly the CITY.

156. Some instances where officers were treated as outcasts for reporting misconduct and/or arrest/summons quota system are as follows:

a. The existence of arrest quotas, summons quotas and approval of illegal stops and arrests have been exposed by Police officer Adrian Schoolcraft in a separate lawsuit which was cited by Justice Sheindlin in Floyd.

b. Justice Sheindlin referenced the deposition of Police Officer Adhily Polanco of the 41st Precinct stating that commanding officers set specific quotas for arrests and summons and for stop and frisks and threatened to reduce overtime for officers who failed to perform well and re-assign those who fail to meet quotas to less desirable posts.

c. According to secretly tape recorded conversations made by Schoolcraft, a Lieutenant, a Deputy Inspector and Chief of transportation can be heard encouraging and demanding increased stops, summons and detentions and arrests.

d. Police Officer Craig Lance of the 42nd Precinct filed a lawsuit against the NYPD claiming the existence of a quota system and a systematic retaliation and harassment to those who did not comply.

e. Retired Detective James Griffin filed a lawsuit claiming that in the NYPD there exists a culture wherein officers who report corruption will face harassment and a hostile work environment and that this conduct was tolerated by supervisors within the NYPD.

f. Police Officer Minoia, an officer with an Ivy League degree, assigned to the 42nd Precinct, was reassigned to a “punishment post” due to the fact that he failed to write a sufficient

amount of summons and stated “I’m not going to pull out my summons book and write a summons because my boss is telling me he’s going to make it difficult for me if I don’t.”

157. In sum, the CITY and NYPD are responsible for creating a custom, policy or practice wherein many officers do not seem to believe that anything is really wrong with stopping and searching innocent citizens or using unnecessary or excessive force or falsely arresting citizens to meet an arrest quota.

158. That the above customs, policies and/or practices and the deliberate indifference thereto, was a direct and proximate cause of the illegal seizure of Plaintiff **RAYQUAN MCCULLUM**, the excessive use of force on Plaintiff, and the false arrest and malicious prosecution of Plaintiff. The CITY and NYPD’S policies, customs and/or practices deprived the Plaintiff of his rights and liberties as set forth in the Constitutions of the United States and the State of New York and under 42 U.S.C §§ 1983, 1986 and 1988.

159. That said actions violated the Fourth and Fourteenth Amendments to the Constitution of the United States, violated Plaintiff’s right to be secure in person, and that the defendants used excessive, unnecessary and unlawful force, which constituted cruel and inhumane treatment and denied him due process of law.

160. Moreover, the CITY and NYPD caused or created a policy and/or custom, and acted with deliberate indifference to patterns and/or police practices which included illegal seizures, excessive or arbitrary use of force, illegal use of police equipment, destruction of evidence, intimidation of witnesses, illegal arrests, failing to gather evidence when allegations of police misconduct are involved, condoning a code of silence within the NYPD regarding misconduct, failing to take police reports of illegal conduct, failing to properly supervise, train, investigate or discipline officers, and any and/or all of the above have contributed to Plaintiff’s false arrest,

malicious and false prosecution, and injuries.

161. That the Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, assaulted, battered and deprived of his constitutional rights as set forth in the Constitution of the United States and 42 U.S.C § 1983.

162. That by reason of the foregoing, Plaintiff **RAYQUAN MCCULLUM** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FOURTEENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF RAYQUAN MCCULLUM

163. Plaintiff **RAYQUAN MCCULLUM** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 162 with the same force and effect as if fully set forth at length herein.

164. At all times mentioned herein and above, defendants CITY and NYPD employed GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as police officers and named defendants were acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

165. Plaintiff **RAYQUAN MCCULLUM** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

166. That on or about 8/25/23, defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, without probable cause, reasonable cause or legal justification and while effectuating the seizure of plaintiff **RAYQUAN MCCULLUM**, did search, seize, assault and commit a battery and grab the Plaintiff **RAYQUAN MCCULLUM** without a court authorized arrest warrant or search warrant and

defendants did physically seize Plaintiff **RAYQUAN MCCULLUM** during the arrest process in an unlawful and excessive manner. Plaintiff **RAYQUAN MCCULLUM** was falsely arrested, unlawfully imprisoned and searched and as a result of defendants' conduct maliciously prosecuted without the defendants possessing probable cause, reasonable cause or legal justification to do so.

167. The above actions of defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE resulted in Plaintiff **RAYQUAN MCCULLUM** being deprived of the following rights under the United States Constitution: a) Freedom from assault to his person; b) Freedom from battery to his person; c) Freedom from illegal search and seizure; d) Freedom from false arrest; e) Freedom from malicious prosecution; f) Freedom from the use of excessive force during the arrest process; and g) The right to Due Process of Law.

168. In addition to the above, defendants CITY and NYPD have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct its police officers, including the officers involved in this case and any and all unnamed officers involved in the unlawful seizure and arrest of plaintiff, regarding the protection of the constitutional rights of citizens.

169. Defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, subjected Plaintiff **RAYQUAN MCCULLUM** to such deprivation in a malicious, reckless, deliberate, intentional, grossly negligent and with a callous disregard of Plaintiff **RAYQUAN MCCULLUM'S** rights and with deliberate indifference to those rights under the Fourth, Fifth, Sixth, Fourteenth and all other related Amendments to the United States Constitution.

170. The direct and proximate result of the defendants CITY, NYPD, GOMES, DURST,

MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE acts are that Plaintiff **RAYQUAN MCCULLUM** has suffered severe and permanent injuries, loss of liberty and companionship, forced to endure pain and suffering, emotional distress and severe and significant damage to standing and reputation in the community.

171. That by reason of the foregoing, Plaintiff **RAYQUAN MCCULLUM** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FIFTEENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF ABRAHAM KABORE

172. Plaintiff **ABRAHAM KABORE** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 171 with the same force and effect as if fully set forth at length herein.

173. That at all times the Plaintiff **ABRAHAM KABORE** was and is a resident of County of the Bronx, City and State of New York.

174. That on 8/25/23, at approximately 11:15 p.m., Plaintiff **ABRAHAM KABORE** was lawfully in the vicinity of East 137th Street and Alexander Avenue, County of Bronx, State of New York and doing nothing illegal, improper or acting suspicious in anyway.

175. That on 8/25/23, at approximately 11:15 p.m., in the vicinity of East 137th Street and Alexander Avenue, County of Bronx, State of New York, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, absent an arrest warrant, probable cause, reasonable cause or any legal justification, approached Plaintiff **ABRAHAM KABORE** for no reason and summarily stopped, frisked, searched, grabbed, assaulted, battered, and detained him in an aggressive and excessive manner.

176. Upon information and belief GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE knew or had reason to know that

their actions lacked any legal justification in approaching, searching, seizing and arresting Plaintiff **ABRAHAM KABORE**.

177. That Plaintiff **ABRAHAM KABORE** was arraigned after his arrest and thereafter falsely and maliciously prosecuted with committing a crime or crimes.

178. Thereafter, Plaintiff **ABRAHAM KABORE** remained incarcerated for over 24 hours and was required to make numerous court appearances over an extended period of time until all charges against him were terminated favorably.

179. Plaintiff **ABRAHAM KABORE** sustained physical and emotional pain and injuries as a result of this incident.

180. That within ninety (90) days after the causes of actions accrued herein, and more than thirty (30) days prior to the commencement of this action, the Plaintiff **ABRAHAM KABORE** caused the notice of claim, in writing, sworn to by and on behalf of the claimants, the Plaintiff herein, containing the statement of the name and place of residence of the claimants by the street and number and their attorney, and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon the defendant CITY, their agents, servants and/or employees at the Law Department,

181. This action was so commenced within one (1) year and ninety (90) days after said cause of action accrued herein, and for more than thirty (30) days prior to the commencement of this action, defendant CITY neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although plaintiff herein has requested and demanded that the same be paid and adjusted.

182. That the defendants requested an oral examination pursuant to General Municipal

Law Section 50-H and said request was complied with.

183. That on or about 8/25/23, at approximately 11:15 p.m., the Plaintiff **ABRAHAM KABORE** was without just cause, probable cause or provocation, and with reckless, negligent and callous disregard for the truth, and without investigation, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with excessive force by CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and/or employees, and in particular, by GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE.

184. That on or about 8/25/23, at approximately 11:15 p.m., the Plaintiff **ABRAHAM KABORE** while lawfully in the vicinity of East 137th Street and Alexander Avenue, County of Bronx, City and State of New York, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE of having committed a crime or crimes.

185. That on or about 8/25/23, and upon arresting the Plaintiff **ABRAHAM KABORE** and depriving him of his liberty, CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE took the Plaintiff **ABRAHAM KABORE** to a police station in the County of Bronx and entered him on the records as under arrest.

186. That on or about 8/25/23, the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE further caused Plaintiff **ABRAHAM KABORE** to have his fingerprints and photographs to be taken without his consent and in accordance with police procedures for the arrest of criminals and held him

on various criminal charges at various police stations, correctional facilities and at the Courthouse located at 215 East 161st Street, County of Bronx, City and State of New York.

187. That on or about 8/25/23 Plaintiff **ABRAHAM KABORE** was aware of his arrest and confinement, he did not consent to his arrest or confinement, and said confinement, seizure, arrest and detention was without legal justification.

188. That at all times hereinafter mentioned the actions of CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

189. That by reason of the foregoing, Plaintiff **ABRAHAM KABORE** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A SIXTEENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF ABRAHAM KABORE**

190. Plaintiff **ABRAHAM KABORE** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 189 with the same force and effect as if fully set forth at length herein.

191. That on or about 8/25/23, a criminal complaint was issued by the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

192. That on or about 8/25/23 a criminal action against Plaintiff **ABRAHAM KABORE** was commenced by CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

193. That solely as a result of the aforesaid, the Plaintiff **ABRAHAM KABORE'S** life was interfered with.

194. That the criminal action against Plaintiff **ABRAHAM KABORE** was continued for an extended period of time by defendants with malice and bad faith.

195. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff **ABRAHAM KABORE**, he was deprived of his liberty for an extended period of time and was subjected to scorn, ridicule, embarrassment and was degraded in the esteem of the community both personally and professionally.

196. That the criminal action against Plaintiff **ABRAHAM KABORE** was terminated favorably by dismissal.

197. That the actions of CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

198. That by reason of the foregoing, Plaintiff **ABRAHAM KABORE** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A SEVENTEENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF ABRAHAM KABORE**

199. Plaintiff **ABRAHAM KABORE** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 198 with the same force and effect as if fully set forth at length herein.

200. That on or about 8/25/23, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff **ABRAHAM KABORE** was intentionally touched, pushed, assaulted, battered, violated, searched, humiliated, photographed and handcuffed by the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE,

MARTINEZCABRERA, DOE and ROE, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

201. That on or about 8/25/23 CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and employees, acting as agents and on behalf of the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, within the scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff **ABRAHAM KABORE** in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff **ABRAHAM KABORE** and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff and/or offensive bodily contact to the Plaintiff **ABRAHAM KABORE** and caused such battery in and about his head, neck, back, body and limbs.

202. That by reason of the aforesaid intentional assault and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff **ABRAHAM KABORE** suffered great and permanent bodily injury in and about his head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that he was otherwise damaged.

203. That as a result of the aforesaid assault and battery the Plaintiff **ABRAHAM KABORE** was caused to sustain serious, severe, painful and permanent bodily injuries so that he was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek

medical aid and attention and incur expenses for same in an endeavor to cure himself of his said injuries and he was and will be prevented from attending his usual occupation and duties.

204. That at all times hereinafter mentioned the actions of CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

205. That by reason of the foregoing, Plaintiff **ABRAHAM KABORE** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A EIGHTEENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF ABRAHAM KABORE**

206. Plaintiff **ABRAHAM KABORE** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 205 with the same force and effect as if fully set forth at length herein.

207. That the CITY, NYPD, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, in that said police officers, as employees of CITY and NYPD, were not qualified to be hired or retained or promoted as police officers, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by CITY and NYPD.

208. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately test, analyze test results, and/or investigate above mentioned police officers backgrounds and performances.

209. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately screen said police officers, failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violate Patrol Guidelines.

210. Defendant CITY and NYPD were also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the police officer defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY and NYPD and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

211. That by reason of the above, the Plaintiff **ABRAHAM KABORE** was injured in mind and body as he was arrested, prosecuted and rendered sick, sore, and damaged.

212. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

213. That by reason of the foregoing, Plaintiff **ABRAHAM KABORE** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A NINETEENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF ABRAHAM KABORE**

214. Plaintiff **ABRAHAM KABORE** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-213 with the same force and effect as if fully set forth at length herein.

215. In arresting Plaintiff **ABRAHAM KABORE**, police officers including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

216. In arresting Plaintiff **ABRAHAM KABORE**, police officers including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, sought either a detriment to Plaintiff **ABRAHAM KABORE** or a collateral advantage to the CITY and NYPD that is outside the legitimate ends of effectuating an arrest.

217. As a result of the abuse of process by defendants herein, Plaintiff **ABRAHAM KABORE** sustained multiple injuries including but not limited to loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

218. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

219. That by reason of the foregoing, Plaintiff **ABRAHAM KABORE** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A TWENTIETH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF ABRAHAM KABORE**

220. Plaintiff **ABRAHAM KABORE** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 219 with the same force and effect as if fully set forth at length herein.

221. That on 8/25/23, at approximately 11:15 p.m., within the vicinity of East 137th Street

and Alexander Avenue, County of Bronx, City and State of New York, the CITY and NYPD were present through its agents, servants and/or employees including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, who were acting in the course of their employment and under the color of law to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

222. That Plaintiff **ABRAHAM KABORE** was lawfully in the above vicinity at the above time when he was stopped, questioned, searched and seized solely on the basis of his age and/or race and for no legal or legitimate reason.

223. That said illegal stop and seizure was part of the CITY'S custom and practice and/or practice of racial profiling, and/or meeting arrest or summons quotas, and/or the illegal stop and search of civilians which was authorized by, or met with the tacit approval of the CITY and NYPD under their "Stop, Question and Frisk" policy or program ("Stop and Frisk").

224. That under the "Stop and Frisk" program the CITY and NYPD permitted, condoned, or acted with deliberate indifference to the racial disparity of its' application, to the fact that unnecessary or illegal frisks or searches were conducted, that very low percentages of seizures, frisks and searches resulted in arrests or the recovery of contraband, that pretextual reasons are provided for "Stop and Frisk", that officers do not always fill out Stop and Frisk reports, i.e. UF-250s, and are not disciplined when they fail to do so, that stop and frisks are conducted without reasonable suspicion, and that the program of "Stop and Frisk" has resulted in illegal stops, seizures, frisks, arrests and the use of physical force.

225. That the CITY and NYPD have failed to discipline, train, monitor or retrain offending police officers who engaged in stops and frisks without any legal justification and has failed to

discipline police officers who fail to fill out required UF-250s.

226. That the CITY and NYPD have failed to adequately investigate and/or discipline officers who use excessive force, stop and frisk innocent citizens who have not done anything illegal or acted in suspicious manner warranting a seizure, who failed to report misconduct of fellow officers, who destroy evidence, who engage in fraud, misrepresentations, deceit, and maliciously participate in and instigate prosecutions of innocent citizens.

227. It is alleged herein that Plaintiff **ABRAHAM KABORE** was stopped and seized absent reasonable suspicion. That said actions of defendants were pursuant to an illegal and improper Stop and Frisk program that was promulgated by defendants. That such custom, policy and program has created a class of citizens, including Plaintiff **ABRAHAM KABORE**, who have been illegally stopped and seized, searched and questioned based on their race, and in order to meet arrest quotas. Evidence of said policy is as follows:

a. That in a class action lawsuit David Floyd, et. al. v. City of New York, et. al., pending in United States District Court, Southern District of New York, 08 CIV 1034, in a decision dated 5/16/12 certifying a class action lawsuit, it was found that between the years of 2005 and 2009 a reported 2.8 million people in New York City have been stopped and frisked. Of said number more than 87% were minority citizens. Summons and arrests were issued or made in approximately 10% of the reported stops. Meaning that based on their own records, defendants' suspicions are incorrect approximately 9 out of 10 stops.

b. The Honorable Shira A. Scheindlin, found in the Floyd decision that:

- i. It is indisputable that NYPD has an enormous Stop and Frisk program;
- ii. Evidence shows that the Stop and Frisk program is organized and hierarchical;
- iii. Stop and Frisk program has been designed and revised at highest levels of

defendants;

- iv. The implementation of the program is conducted according to uniform and centralized rules;
- v. Monitoring of the program is hierarchical;
- vi. The program is the result of institutional decisions and directives.

c. Justice Sheindlin further found that a preponderance of evidence shows that defendants policy of establishing performance standards and demanding increased levels of stop and frisks results in putative class of aggrieved citizens. The Court noted that street level stops have risen every year. That in 2004, defendants documented 313,000 stops, and in 2011 they reported 684,000 stops. In a Police Officer Performance Objectives Operation Order dated 10/17/11, Commissioner Kelly directed that “Department managers can and must set performance goals – relating to “the issuance of summons, the stopping and questioning of suspicious individuals and the arrests of criminals.” It further states that “uniformed members who do not demonstrate activities . . . or who fail to engage in proactive activities . . . will be evaluated accordingly and their assignments reassessed.”

228. Other instances of an illegal and/or improper stop and frisk program custom or practice and/or excessive use of force and filing of false charges includes but not limited to:

a. On 4/12/11 in the vicinity of Walton Avenue and Mt. Hope Place, Bronx, NY, while doing nothing illegal or improper, Lonnie Thompson was approached by several uniformed police officers for no reason and without reasonable suspicion. After being stopped, Mr. Thompson was patted down and searched. He was arrested and charged with Criminal Possession of a Weapon in the Fourth Degree. This, even though the weapon was a bona fide work tool. Mr. Thompson was subjected to a strip search at the 46th Precinct. All charges were dismissed.

b. On 5/4/11 in the vicinity of 2345 Jerome Avenue, Bronx, NY, Alexis Niewkerk, who is handicapped, was sitting in his legally parked vehicle and waiting for his friends to finish shopping at a nearby store. All of a sudden several undercover police officers from Bronx Narcotics approached his vehicle for no reason and without reasonable suspicion ordered him out of said vehicle. Mr. Niewkerk was subjected to a pat down and search. He was subsequently arrested for possession of a controlled substance in the seventh degree even though the "substance" recovered from his pants pocket was his own prescribed pain medication. Mr. Niewkerk was subjected to a strip search and forced to move his body in ways that are extremely painful given his medical status and condition. All charges were dismissed.

c. On 6/2/11 in the vicinity of 985 Simpson Street, Bronx, NY, Jesus Rosario, an infant, was approached by several police officers from the 41st Precinct. He was told to "get on the wall" and thereafter patted down and searched. Mr. Rosario was accused of Trespassing in the Second Degree. Mr. Rosario was doing nothing illegal or improper at the time the officers approached as he was simply exiting 985 Simpson Street after visiting his father who resides in said building. After being arrested, Mr. Rosario was subjected to a strip search at the 41st Precinct. The case was declined to be prosecuted by the District Attorney's Office.

d. On 8/1/12 in the vicinity of 1000 Simpson Street, Bronx, NY Nicholas Hernandez and Dilson Pena were sitting outside of their building on a public bench and doing nothing illegal or improper. All of a sudden, several police officers from the 41st Precinct approached them for no reason and told them to submit to a frisk. Mr. Hernandez and Mr. Pena were accused of possession of marihuana even though no marihuana was recovered. They were each subjected to a strip search at the 41st Precinct. All charges against them were declined to be prosecuted by the District Attorney's Office.

e. On 1/22/11 in the vicinity of 808 Park Avenue, Brooklyn, NY, Captain Michelle Culp, a now retired Captain for New York City Department of Corrections, was visiting her sick and elderly mother at the aforementioned address and decided to walk her mother's dog. In so doing, Captain Culp was approached by several uniform housing police officers and accused of Trespassing in the Second Degree. She was patted down and searched. This, despite the fact that Captain Culp explained that she was visiting her mother and her identification and personal belongings were in her mother's apartment in the same building. All charges were dismissed.

f. On 5/20/11 in the vicinity of Park Avenue and East 138th Street, Bronx, NY, Patrick Nielson was exiting the number 4 subway train and going to his car which was parked nearby when he was followed, stopped, frisked, and assaulted by several undercover police officers from Bronx Narcotics for no reason. Thereafter, he was arrested and accused of possession of a controlled substance. Mr. Nielson was subjected to a strip search. The "controlled" substance was Mr. Nielson's prescribed medicine. All charges were dismissed.

g. On 6/22/10 in the vicinity of 139th Street and Lenox Avenue, New York, NY, Wilford Person was approached by several undercover police officers from Manhattan North Narcotics for no legitimate reason. Mr. Person was thereafter told to get against a fence and patted down and searched. He was accused of possession of marihuana. Mr. Person was simply playing basketball at the time the police approached him. After being arrested and subjected to a strip search Mr. Person was prosecuted. All charges were eventually dismissed.

h. On 5/2/12 in the vicinity of 1912 Third Avenue, New York, NY, Jose Baez, the manager of a local eyeglass store, left the store to buy his lunch. After leaving the store Mr. Baez, for no reason at all, was approached by several undercover police officers from Manhattan North Narcotics, and was detained, patted down, searched, and falsely accused of selling marihuana. Mr.

Baez was subjected to a strip search. All charges against him were dismissed.

i. On 11/13/10 in the vicinity of 1113 Boston Road, Bronx, NY, Alpha Mahoi, was doing nothing illegal or improper when, for no reason, he was approached by several undercover police officers from Bronx Narcotics and accused of being involved in the sale of cocaine. He was cuffed, patted down, searched, arrested and strip searched at the precinct. All charges were dismissed.

j. On 3/10/12 in the vicinity of 1821 Davison Avenue, Bronx, NY, Keyewanie Blackledge, Dwayne Smith and Richard Campbell were leaving his friend's apartment when they were approached by several uniform police officers from the 46th Precinct for no reason and told to "get on the wall" and "get on the floor" and thereafter patted down and searched. They was charged with Trespassing in the Second Degree. All charges were dismissed.

k. On 8/1/12 in the vicinity of 1000 Simpson Street, Bronx, NY, Dylan Pena was outside recording on his cell phone several police officers from the 41st Precinct arresting a person from the neighborhood. Upon seeing Mr. Pena recording the incident several police officers grabbed him and pushed him to the ground and seized his cell phone without any reason to do so. All data on the phone was subsequently erased by the officers. Mr. Pena was also patted down and searched. He was charged with resisting arrest and was strip searched at the 41st Precinct. The charges were declined to be prosecuted by the District Attorney's Office.

l. On 5/17/11 in the vicinity of 1690 Clay Avenue, Bronx, NY, Gregory Williams was leaving a family friend's apartment after helping her move furniture so she could clean. Upon exiting the building Mr. Williams, for no reason at all, was approached by several uniformed police officers from the 44th Precinct and patted down and searched. He was accused of Trespassing in the Second Degree despite his family friend informing the police officers at the scene and at the 44th Precinct that he had permission to be in the building. Mr. Williams was strip searched. All charges

against him were dismissed.

m. On 3/16/11 in the vicinity of 1740 Grand Avenue, Bronx, NY, Lindon Grant just left his apartment to walk approximately 1 block to buy breakfast before going to work. After he bought his breakfast and left the store he was approached by several undercover police officers from the 46th Precinct for no reason and patted down and searched. He was then accused of selling marihuana. Mr. Grant was arrested, strip searched and prosecuted for several months. All charges were dismissed.

n. On 8/2/09 in the vicinity of Southern Boulevard and East 175th Street, Bronx, NY Jose Suazo was approached by several uniformed officers from the 42nd Precinct for no reason. Mr. Suazo was patted down and searched. Despite the fact that he had nothing illegal on his person he was charged with possession of marihuana. While already in custody in a police van shots were fired in a nearby park. When Mr. Suazo got to the precinct he found out that even though he was already in custody in the police van when the shots were fired, he was charged with possession of a weapon in the second degree. Mr. Suazo was subjected to a strip search. All charges were eventually dismissed.

o. On 8/12/19 in the vicinity of 894 Rogers Place, Bronx, NY, Edmanuel Benitez was standing outside of the building and waiting for a friend to come outside to play basketball. All of a sudden he was approached for no reason by officers from the 41st Precinct and thereafter patted down, searched, arrested, strip searched and prosecuted for the sale of marihuana. All charges were dismissed.

p. On 2/19/12 Daniel Rodriguez was leaving a store in the vicinity of Jerome Avenue and West 192nd Street when he was summarily grabbed, pushed against a wall, patted down, frisked, searched and then handcuffed by several officers from Bronx Narcotics. Mr. Rodriguez was doing

nothing illegal or improper at the time. He was subsequently strip searched and charged with possession of a controlled substance in the seventh degree. All charges were dismissed.

q. On 9/28/11 Shakeem Enang was in the vicinity of West 179th Street and University Avenue when he was approached by several plain clothes officers from Bronx Narcotics Division. Mr. Enang was doing nothing illegal at the time the officers approached or any time prior to the officers approaching. He was grabbed, seized, frisked, searched and then arrested. Mr. Enang was charged with criminal sale of a controlled substance. He was strip searched at the 46th Precinct. All charges were dismissed.

229. As is evidence from the above, Plaintiff **ABRAHAM KABORE'S** injuries including the violation of his constitutional rights, the deprivation of his freedom, falsely and maliciously being prosecuted, physical and emotional injuries, are the direct and proximate result of the CITY'S and NYPD'S policies and/or deliberate indifference to practices which involve the excessive use of force, false arrest, police cover-ups, witness intimidation, malicious prosecution, illegal stop, questions and frisks, searches, Fourth Amendment violations, and deliberate indifference to the need to train, supervise, monitor, investigate and discipline, including suspension, dismissal and/or reassignment offending police officers. The practice is widespread and pervasive throughout the entire City of New York.

230. The CITY and NYPD knew or should have known of the customs and police practices of its officers which included but was not limited to: the failing to preserve and/or destruction of exculpatory evidence, threatening to arrest witnesses to police misconduct and engaging in cover-ups, fraud, perjury, deceit and malfeasance.

231. That the acts of employees of the CITY and NYPD, i.e. police officers, who violate the civil and constitutional rights of the citizens of the City of New York routinely go unreported,

undisciplined and their acts condoned by other officers, including their supervisors. Upon information and belief, the supervisors of defendant police officers herein were aware of the conduct of defendant police officers and failed to stop, report or intervene in the misconduct.

232. The CITY and NYPD'S tolerance for brutality, excessive force, illegal and/or retaliatory arrests, and their emphasis to come down hard on quality of life infractions leads to a systemic practice and policy wherein police officers seem fairly tolerant of police brutality, silence in the face of brutality and/or illegal stops, frisks, searches, seizures and/or arrests, and engage in the practice of meeting arrest quotas. A systemic practice where officers who report said misconduct are not viewed as "good cops" but rather as outcasts and are ostracized and often transferred to other assignments thereby perpetuating the illegal conduct of the NYPD and thusly the CITY.

233. Some instances where officers were treated as outcasts for reporting misconduct and/or arrest/summons quota system are as follows:

a. The existence of arrest quotas, summons quotas and approval of illegal stops and arrests have been exposed by Police officer Adrian Schoolcraft in a separate lawsuit which was cited by Justice Sheindlin in Floyd.

b. Justice Sheindlin referenced the deposition of Police Officer Adhjlj Polanco of the 41st Precinct stating that commanding officers set specific quotas for arrests and summons and for stop and frisks and threatened to reduce overtime for officers who failed to perform well and re-assign those who fail to meet quotas to less desirable posts.

c. According to secretly tape recorded conversations made by Schoolcraft, a Lieutenant, a Deputy Inspector and Chief of transportation can be heard encouraging and demanding increased stops, summons and detentions and arrests.

d. Police Officer Craig Lance of the 42nd Precinct filed a lawsuit against the NYPD

claiming the existence of a quota system and a systematic retaliation and harassment to those who did not comply.

e. Retired Detective James Griffin filed a lawsuit claiming that in the NYPD there exists a culture wherein officers who report corruption will face harassment and a hostile work environment and that this conduct was tolerated by supervisors within the NYPD.

f. Police Officer Minoia, an officer with an Ivy League degree, assigned to the 42nd Precinct, was reassigned to a “punishment post” due to the fact that he failed to write a sufficient amount of summons and stated “I’m not going to pull out my summons book and write a summons because my boss is telling me he’s going to make it difficult for me if I don’t.”

234. In sum, the CITY and NYPD are responsible for creating a custom, policy or practice wherein many officers do not seem to believe that anything is really wrong with stopping and searching innocent citizens or using unnecessary or excessive force or falsely arresting citizens to meet an arrest quota.

235. That the above customs, policies and/or practices and the deliberate indifference thereto, was a direct and proximate cause of the illegal seizure of Plaintiff **ABRAHAM KABORE**, the excessive use of force on Plaintiff, and the false arrest and malicious prosecution of Plaintiff. The CITY and NYPD’S policies, customs and/or practices deprived the Plaintiff of his rights and liberties as set forth in the Constitutions of the United States and the State of New York and under 42 U.S.C §§ 1983, 1986 and 1988.

236. That said actions violated the Fourth and Fourteenth Amendments to the Constitution of the United States, violated Plaintiff’s right to be secure in person, and that the defendants used excessive, unnecessary and unlawful force, which constituted cruel and inhumane treatment and denied him due process of law.

237. Moreover, the CITY and NYPD caused or created a policy and/or custom, and acted with deliberate indifference to patterns and/or police practices which included illegal seizures, excessive or arbitrary use of force, illegal use of police equipment, destruction of evidence, intimidation of witnesses, illegal arrests, failing to gather evidence when allegations of police misconduct are involved, condoning a code of silence within the NYPD regarding misconduct, failing to take police reports of illegal conduct, failing to properly supervise, train, investigate or discipline officers, and any and/or all of the above have contributed to Plaintiff's false arrest, malicious and false prosecution, and injuries.

238. That the Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, assaulted, battered and deprived of his constitutional rights as set forth in the Constitution of the United States and 42 U.S.C § 1983.

239. That by reason of the foregoing, Plaintiff **ABRAHAM KABORE** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A TWENTY-FIRST CAUSE OF ACTION ON BEHALF OF
PLAINTIFF ABRAHAM KABORE**

240. Plaintiff **ABRAHAM KABORE** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 239 with the same force and effect as if fully set forth at length herein.

241. At all times mentioned herein and above, defendants CITY and NYPD employed GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as police officers and named defendants were acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

242. Plaintiff **ABRAHAM KABORE** is and at all times relevant herein, a citizen of the

United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

243. That on or about 8/25/23, defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, without probable cause, reasonable cause or legal justification and while effectuating the seizure of plaintiff **ABRAHAM KABORE**, did search, seize, assault and commit a battery and grab the Plaintiff **ABRAHAM KABORE** without a court authorized arrest warrant or search warrant and defendants did physically seize Plaintiff **ABRAHAM KABORE** during the arrest process in an unlawful and excessive manner. Plaintiff **ABRAHAM KABORE** was falsely arrested, unlawfully imprisoned and searched and as a result of defendants' conduct maliciously prosecuted without the defendants possessing probable cause, reasonable cause or legal justification to do so.

244. The above actions of defendants CITY, NYPD, ROSA, DOE and ROE resulted in Plaintiff **ABRAHAM KABORE** being deprived of the following rights under the United States Constitution: a) Freedom from assault to his person; b) Freedom from battery to his person; c) Freedom from illegal search and seizure; d) Freedom from false arrest; e) Freedom from malicious prosecution; f) Freedom from the use of excessive force during the arrest process; and g) The right to Due Process of Law.

245. In addition to the above, defendants CITY and NYPD have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct its police officers, including the officers involved in this case and any and all unnamed officers involved in the unlawful seizure and arrest of plaintiff, regarding the protection of the constitutional rights of citizens.

246. Defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY,

JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, subjected Plaintiff **ABRAHAM KABORE** to such deprivation in a malicious, reckless, deliberate, intentional, grossly negligent and with a callous disregard of Plaintiff **ABRAHAM KABORE'S** rights and with deliberate indifference to those rights under the Fourth, Fifth, Sixth, Fourteenth and all other related Amendments to the United States Constitution.

247. The direct and proximate result of the defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE acts are that Plaintiff **ABRAHAM KABORE** has suffered severe and permanent injuries, loss of liberty and companionship, forced to endure pain and suffering, emotional distress and severe and significant damage to standing and reputation in the community.

248. That by reason of the foregoing, Plaintiff **ABRAHAM KABORE** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A TWENTY-SECOND CAUSE OF ACTION ON BEHALF OF
PLAINTIFF JOSHUA PINCKNEY**

249. Plaintiff **JOSHUA PINCKNEY** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 248 with the same force and effect as if fully set forth at length herein.

250. That at all times the Plaintiff **JOSHUA PINCKNEY** was and is a resident of County of the Bronx, City and State of New York.

251. That on 8/25/23, at approximately 11:15 p.m., Plaintiff **JOSHUA PINCKNEY** was lawfully in the vicinity of East 137th Street and Alexander Avenue, County of Bronx, State of New York and doing nothing illegal, improper or acting suspicious in anyway.

252. That on 8/25/23, at approximately 11:15 p.m., in the vicinity of East 137th Street and Alexander Avenue, County of Bronx, State of New York, GOMES, DURST, MENA, GONZALEZ,

QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, absent an arrest warrant, probable cause, reasonable cause or any legal justification, approached Plaintiff **JOSHUA PINCKNEY** for no reason and summarily stopped, frisked, searched, grabbed, assaulted, battered, and detained him in an aggressive and excessive manner.

253. Upon information and belief GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE knew or had reason to know that their actions lacked any legal justification in approaching, searching, seizing and arresting Plaintiff **JOSHUA PINCKNEY**.

254. That Plaintiff **JOSHUA PINCKNEY** was arraigned after his arrest and thereafter falsely and maliciously prosecuted with committing a crime or crimes.

255. Thereafter, Plaintiff **JOSHUA PINCKNEY** remained incarcerated for over 24 hours and was required to make numerous court appearances over an extended period of time until all charges against him were terminated favorably.

256. Plaintiff **JOSHUA PINCKNEY** sustained physical and emotional pain and injuries as a result of this incident.

257. That within ninety (90) days after the causes of actions accrued herein, and more than thirty (30) days prior to the commencement of this action, the Plaintiff **JOSHUA PINCKNEY** caused the notice of claim, in writing, sworn to by and on behalf of the claimants, the Plaintiff herein, containing the statement of the name and place of residence of the claimants by the street and number and their attorney, and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon the defendant CITY, their agents, servants and/or employees at the Law Department,

258. This action was so commenced within one (1) year and ninety (90) days after said cause of action accrued herein, and for more than thirty (30) days prior to the commencement of this action, defendant CITY neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although plaintiff herein has requested and demanded that the same be paid and adjusted.

259. That the defendants requested an oral examination pursuant to General Municipal Law Section 50-H and said request was complied with.

260. That on or about 8/25/23, at approximately 11:15 p.m., the Plaintiff **JOSHUA PINCKNEY** was without just cause, probable cause or provocation, and with reckless, negligent and callous disregard for the truth, and without investigation, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with excessive force by CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and/or employees, and in particular, by GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE.

261. That on or about 8/25/23, at approximately 11:15 p.m., the Plaintiff **JOSHUA PINCKNEY** while lawfully in the vicinity of East 137th Street and Alexander Avenue, County of Bronx, City and State of New York, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE of having committed a crime or crimes.

262. That on or about 8/25/23, and upon arresting the Plaintiff **JOSHUA PINCKNEY** and depriving him of his liberty, CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE took the Plaintiff **JOSHUA**

PINCKNEY to a police station in the County of Bronx and entered him on the records as under arrest.

263. That on or about 8/25/23, the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE further caused Plaintiff **JOSHUA PINCKNEY** to have his fingerprints and photographs to be taken without his consent and in accordance with police procedures for the arrest of criminals and held him on various criminal charges at various police stations, correctional facilities and at the Courthouse located at 215 East 161st Street, County of Bronx, City and State of New York.

264. That on or about 8/25/23 Plaintiff **JOSHUA PINCKNEY** was aware of his arrest and confinement, he did not consent to his arrest or confinement, and said confinement, seizure, arrest and detention was without legal justification.

265. That at all times hereinafter mentioned the actions of CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

266. That by reason of the foregoing, Plaintiff **JOSHUA PINCKNEY** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A TWENTY-THIRD CAUSE OF ACTION ON BEHALF OF
PLAINTIFF JOSHUA PINCKNEY

267. Plaintiff **JOSHUA PINCKNEY** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 266 with the same force and effect as if fully set forth at length herein.

268. That on or about 8/25/23, a criminal complaint was issued by the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA,

DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

269. That on or about 8/25/23 a criminal action against Plaintiff **JOSHUA PINCKNEY** was commenced by CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

270. That solely as a result of the aforesaid, the Plaintiff **JOSHUA PINCKNEY'S** life was interfered with.

271. That the criminal action against Plaintiff **JOSHUA PINCKNEY** was continued for an extended period of time by defendants with malice and bad faith.

272. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff **JOSHUA PINCKNEY**, he was deprived of his liberty for an extended period of time and was subjected to scorn, ridicule, embarrassment and was degraded in the esteem of the community both personally and professionally.

273. That the criminal action against Plaintiff **JOSHUA PINCKNEY** was terminated favorably by dismissal.

274. That the actions of CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

275. That by reason of the foregoing, Plaintiff **JOSHUA PINCKNEY** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A TWENTY-FOURTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF JOSHUA PINCKNEY**

276. Plaintiff **JOSHUA PINCKNEY** repeats, reiterates and realleges each and every

allegation contained in paragraphs numbered 1 – 275 with the same force and effect as if fully set forth at length herein.

277. That on or about 8/25/23, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff **JOSHUA PINCKNEY** was intentionally touched, pushed, assaulted, battered, violated, searched, humiliated, photographed and handcuffed by the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

278. That on or about 8/25/23 CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and employees, acting as agents and on behalf of the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, within the scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff **JOSHUA PINCKNEY** in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff **JOSHUA PINCKNEY** and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff and/or offensive bodily contact to the Plaintiff **JOSHUA PINCKNEY** and caused such battery in and about his head, neck, back, body and limbs.

279. That by reason of the aforesaid intentional assault and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff **JOSHUA**

PINCKNEY suffered great and permanent bodily injury in and about his head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that he was otherwise damaged.

280. That as a result of the aforesaid assault and battery the Plaintiff **JOSHUA PINCKNEY** was caused to sustain serious, severe, painful and permanent bodily injuries so that he was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure himself of his said injuries and he was and will be prevented from attending his usual occupation and duties.

281. That at all times hereinafter mentioned the actions of CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

282. That by reason of the foregoing, Plaintiff **JOSHUA PINCKNEY** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A TWENTY- FIFTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF JOSHUA PINCKNEY**

283. Plaintiff **JOSHUA PINCKNEY** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 282 with the same force and effect as if fully set forth at length herein.

284. That the CITY, NYPD, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, in that said police officers, as employees of CITY and NYPD, were not qualified to be hired or retained or promoted as police officers, lacked

the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by CITY and NYPD.

285. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately test, analyze test results, and/or investigate above mentioned police officers backgrounds and performances.

286. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately screen said police officers, failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violate Patrol Guidelines.

287. Defendant CITY and NYPD were also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the police officer defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY and NYPD and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

288. That by reason of the above, the Plaintiff **JOSHUA PINCKNEY** was injured in mind and body as he was arrested, prosecuted and rendered sick, sore, and damaged.

289. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

290. That by reason of the foregoing, Plaintiff **JOSHUA PINCKNEY** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A TWENTY- SIXTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF JOSHUA PINCKNEY

291. Plaintiff **JOSHUA PINCKNEY** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-290 with the same force and effect as if fully set forth at length herein.

292. In arresting Plaintiff **JOSHUA PINCKNEY**, police officers including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

293. In arresting Plaintiff **JOSHUA PINCKNEY**, police officers including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, sought either a detriment to Plaintiff **JOSHUA PINCKNEY** or a collateral advantage to the CITY and NYPD that is outside the legitimate ends of effectuating an arrest.

294. As a result of the abuse of process by defendants herein, Plaintiff **JOSHUA PINCKNEY** sustained multiple injuries including but not limited to loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

295. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

296. That by reason of the foregoing, Plaintiff **JOSHUA PINCKNEY** has been damaged

in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A TWENTY-SEVENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF JOSHUA PINCKNEY**

297. Plaintiff **JOSHUA PINCKNEY** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 296 with the same force and effect as if fully set forth at length herein.

298. That on 8/25/23, at approximately 11:15 p.m., within the vicinity of East 137th Street and Alexander Avenue, County of Bronx, City and State of New York, the CITY and NYPD were present through its agents, servants and/or employees including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, who were acting in the course of their employment and under the color of law to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

299. That Plaintiff **JOSHUA PINCKNEY** was lawfully in the above vicinity at the above time when he was stopped, questioned, searched and seized solely on the basis of his age and/or race and for no legal or legitimate reason.

300. That said illegal stop and seizure was part of the CITY'S custom and practice and/or practice of racial profiling, and/or meeting arrest or summons quotas, and/or the illegal stop and search of civilians which was authorized by, or met with the tacit approval of the CITY and NYPD under their "Stop, Question and Frisk" policy or program ("Stop and Frisk").

301. That under the "Stop and Frisk" program the CITY and NYPD permitted, condoned, or acted with deliberate indifference to the racial disparity of its' application, to the fact that unnecessary or illegal frisks or searches were conducted, that very low percentages of seizures, frisks

and searches resulted in arrests or the recovery of contraband, that pretextual reasons are provided for “Stop and Frisk”, that officers do not always fill out Stop and Frisk reports, i.e. UF-250s, and are not disciplined when they fail to do so, that stop and frisks are conducted without reasonable suspicion, and that the program of “Stop and Frisk” has resulted in illegal stops, seizures, frisks, arrests and the use of physical force.

302. That the CITY and NYPD have failed to discipline, train, monitor or retrain offending police officers who engaged in stops and frisks without any legal justification and has failed to discipline police officers who fail to fill out required UF-250s.

303. That the CITY and NYPD have failed to adequately investigate and/or discipline officers who use excessive force, stop and frisk innocent citizens who have not done anything illegal or acted in suspicious manner warranting a seizure, who failed to report misconduct of fellow officers, who destroy evidence, who engage in fraud, misrepresentations, deceit, and maliciously participate in and instigate prosecutions of innocent citizens.

304. It is alleged herein that Plaintiff **JOSHUA PINCKNEY** was stopped and seized absent reasonable suspicion. That said actions of defendants were pursuant to an illegal and improper Stop and Frisk program that was promulgated by defendants. That such custom, policy and program has created a class of citizens, including Plaintiff **JOSHUA PINCKNEY**, who have been illegally stopped and seized, searched and questioned based on their race, and in order to meet arrest quotas. Evidence of said policy is as follows:

a. That in a class action lawsuit David Floyd, et. al. v. City of New York, et. al., pending in United States District Court, Southern District of New York, 08 CIV 1034, in a decision dated 5/16/12 certifying a class action lawsuit, it was found that between the years of 2005 and 2009 a reported 2.8 million people in New York City have been stopped and frisked. Of said number more

than 87% were minority citizens. Summons and arrests were issued or made in approximately 10% of the reported stops. Meaning that based on their own records, defendants' suspicions are incorrect approximately 9 out of 10 stops.

b. The Honorable Shira A. Scheindlin, found in the Floyd decision that:

- i. It is indisputable that NYPD has an enormous Stop and Frisk program;
- ii. Evidence shows that the Stop and Frisk program is organized and hierarchical;
- iii. Stop and Frisk program has been designed and revised at highest levels of defendants;
- iv. The implementation of the program is conducted according to uniform and centralized rules;
- v. Monitoring of the program is hierarchical;
- vi. The program is the result of institutional decisions and directives.

c. Justice Sheindlin further found that a preponderance of evidence shows that defendants policy of establishing performance standards and demanding increased levels of stop and frisks results in putative class of aggrieved citizens. The Court noted that street level stops have risen every year. That in 2004, defendants documented 313,000 stops, and in 2011 they reported 684,000 stops. In a Police Officer Performance Objectives Operation Order dated 10/17/11, Commissioner Kelly directed that "Department managers can and must set performance goals – relating to "the issuance of summons, the stopping and questioning of suspicious individuals and the arrests of criminals." It further states that "uniformed members who do not demonstrate activities . . . or who fail to engage in proactive activities . . . will be evaluated accordingly and their assignments reassessed."

305. Other instances of an illegal and/or improper stop and frisk program custom or practice

and/or excessive use of force and filing of false charges includes but not limited to:

a. On 4/12/11 in the vicinity of Walton Avenue and Mt. Hope Place, Bronx, NY, while doing nothing illegal or improper, Lonnie Thompson was approached by several uniformed police officers for no reason and without reasonable suspicion. After being stopped, Mr. Thompson was patted down and searched. He was arrested and charged with Criminal Possession of a Weapon in the Fourth Degree. This, even though the weapon was a bona fide work tool. Mr. Thompson was subjected to a strip search at the 46th Precinct. All charges were dismissed.

b. On 5/4/11 in the vicinity of 2345 Jerome Avenue, Bronx, NY, Alexis Niewkerk, who is handicapped, was sitting in his legally parked vehicle and waiting for his friends to finish shopping at a nearby store. All of a sudden several undercover police officers from Bronx Narcotics approached his vehicle for no reason and without reasonable suspicion ordered him out of said vehicle. Mr. Niewkerk was subjected to a pat down and search. He was subsequently arrested for possession of a controlled substance in the seventh degree even though the "substance" recovered from his pants pocket was his own prescribed pain medication. Mr. Niewkerk was subjected to a strip search and forced to move his body in ways that are extremely painful given his medical status and condition. All charges were dismissed.

c. On 6/2/11 in the vicinity of 985 Simpson Street, Bronx, NY, Jesus Rosario, an infant, was approached by several police officers from the 41st Precinct. He was told to "get on the wall" and thereafter patted down and searched. Mr. Rosario was accused of Trespassing in the Second Degree. Mr. Rosario was doing nothing illegal or improper at the time the officers approached as he was simply exiting 985 Simpson Street after visiting his father who resides in said building. After being arrested, Mr. Rosario was subjected to a strip search at the 41st Precinct. The case was declined to be prosecuted by the District Attorney's Office.

d. On 8/1/12 in the vicinity of 1000 Simpson Street, Bronx, NY Nicholas Hernandez and Dilson Pena were sitting outside of their building on a public bench and doing nothing illegal or improper. All of a sudden, several police officers from the 41st Precinct approached them for no reason and told them to submit to a frisk. Mr. Hernandez and Mr. Pena were accused of possession of marihuana even though no marihuana was recovered. They were each subjected to a strip search at the 41st Precinct. All charges against them were declined to be prosecuted by the District Attorney's Office.

e. On 1/22/11 in the vicinity of 808 Park Avenue, Brooklyn, NY, Captain Michelle Culp, a now retired Captain for New York City Department of Corrections, was visiting her sick and elderly mother at the aforementioned address and decided to walk her mother's dog. In so doing, Captain Culp was approached by several uniform housing police officers and accused of Trespassing in the Second Degree. She was patted down and searched. This, despite the fact that Captain Culp explained that she was visiting her mother and her identification and personal belongings were in her mother's apartment in the same building. All charges were dismissed.

f. On 5/20/11 in the vicinity of Park Avenue and East 138th Street, Bronx, NY, Patrick Nielson was exiting the number 4 subway train and going to his car which was parked nearby when he was followed, stopped, frisked, and assaulted by several undercover police officers from Bronx Narcotics for no reason. Thereafter, he was arrested and accused of possession of a controlled substance. Mr. Nielson was subjected to a strip search. The "controlled" substance was Mr. Nielson's prescribed medicine. All charges were dismissed.

g. On 6/22/10 in the vicinity of 139th Street and Lenox Avenue, New York, NY, Wilford Person was approached by several undercover police officers from Manhattan North Narcotics for no legitimate reason. Mr. Person was thereafter told to get against a fence and patted down and

searched. He was accused of possession of marihuana. Mr. Person was simply playing basketball at the time the police approached him. After being arrested and subjected to a strip search Mr. Person was prosecuted. All charges were eventually dismissed.

h. On 5/2/12 in the vicinity of 1912 Third Avenue, New York, NY, Jose Baez, the manager of a local eyeglass store, left the store to buy his lunch. After leaving the store Mr. Baez, for no reason at all, was approached by several undercover police officers from Manhattan North Narcotics, and was detained, patted down, searched, and falsely accused of selling marihuana. Mr. Baez was subjected to a strip search. All charges against him were dismissed.

i. On 11/13/10 in the vicinity of 1113 Boston Road, Bronx, NY, Alpha Mahoi, was doing nothing illegal or improper when, for no reason, he was approached by several undercover police officers from Bronx Narcotics and accused of being involved in the sale of cocaine. He was cuffed, patted down, searched, arrested and strip searched at the precinct. All charges were dismissed.

j. On 3/10/12 in the vicinity of 1821 Davison Avenue, Bronx, NY, Keyewanie Blackledge, Dwayne Smith and Richard Campbell were leaving his friend's apartment when they were approached by several uniform police officers from the 46th Precinct for no reason and told to "get on the wall" and "get on the floor" and thereafter patted down and searched. They was charged with Trespassing in the Second Degree. All charges were dismissed.

k. On 8/1/12 in the vicinity of 1000 Simpson Street, Bronx, NY, Dylan Pena was outside recording on his cell phone several police officers from the 41st Precinct arresting a person from the neighborhood. Upon seeing Mr. Pena recording the incident several police officers grabbed him and pushed him to the ground and seized his cell phone without any reason to do so. All data on the phone was subsequently erased by the officers. Mr. Pena was also patted down and searched. He was charged with resisting arrest and was strip searched at the 41st Precinct. The charges were

declined to be prosecuted by the District Attorney's Office.

l. On 5/17/11 in the vicinity of 1690 Clay Avenue, Bronx, NY, Gregory Williams was leaving a family friend's apartment after helping her move furniture so she could clean. Upon exiting the building Mr. Williams, for no reason at all, was approached by several uniformed police officers from the 44th Precinct and patted down and searched. He was accused of Trespassing in the Second Degree despite his family friend informing the police officers at the scene and at the 44th Precinct that he had permission to be in the building. Mr. Williams was strip searched. All charges against him were dismissed.

m. On 3/16/11 in the vicinity of 1740 Grand Avenue, Bronx, NY, Lindon Grant just left his apartment to walk approximately 1 block to buy breakfast before going to work. After he bought his breakfast and left the store he was approached by several undercover police officers from the 46th Precinct for no reason and patted down and searched. He was then accused of selling marihuana. Mr. Grant was arrested, strip searched and prosecuted for several months. All charges were dismissed.

n. On 8/2/09 in the vicinity of Southern Boulevard and East 175th Street, Bronx, NY Jose Suazo was approached by several uniformed officers from the 42nd Precinct for no reason. Mr. Suazo was patted down and searched. Despite the fact that he had nothing illegal on his person he was charged with possession of marihuana. While already in custody in a police van shots were fired in a nearby park. When Mr. Suazo got to the precinct he found out that even though he was already in custody in the police van when the shots were fired, he was charged with possession of a weapon in the second degree. Mr. Suazo was subjected to a strip search. All charges were eventually dismissed.

o. On 8/12/19 in the vicinity of 894 Rogers Place, Bronx, NY, Edmanuel Benitez was

standing outside of the building and waiting for a friend to come outside to play basketball. All of a sudden he was approached for no reason by officers from the 41st Precinct and thereafter patted down, searched, arrested, strip searched and prosecuted for the sale of marihuana. All charges were dismissed.

p. On 2/19/12 Daniel Rodriguez was leaving a store in the vicinity of Jerome Avenue and West 192nd Street when he was summarily grabbed, pushed against a wall, patted down, frisked, searched and then handcuffed by several officers from Bronx Narcotics. Mr. Rodriguez was doing nothing illegal or improper at the time. He was subsequently strip searched and charged with possession of a controlled substance in the seventh degree. All charges were dismissed.

q. On 9/28/11 Shakeem Enang was in the vicinity of West 179th Street and University Avenue when he was approached by several plain clothes officers from Bronx Narcotics Division. Mr. Enang was doing nothing illegal at the time the officers approached or any time prior to the officers approaching. He was grabbed, seized, frisked, searched and then arrested. Mr. Enang was charged with criminal sale of a controlled substance. He was strip searched at the 46th Precinct. All charges were dismissed.

306. As is evidence from the above, Plaintiff **JOSHUA PINCKNEY'S** injuries including the violation of his constitutional rights, the deprivation of his freedom, falsely and maliciously being prosecuted, physical and emotional injuries, are the direct and proximate result of the CITY'S and NYPD'S policies and/or deliberate indifference to practices which involve the excessive use of force, false arrest, police cover-ups, witness intimidation, malicious prosecution, illegal stop, questions and frisks, searches, Fourth Amendment violations, and deliberate indifference to the need to train, supervise, monitor, investigate and discipline, including suspension, dismissal and/or reassignment offending police officers. The practice is widespread and pervasive throughout the

entire City of New York.

307. The CITY and NYPD knew or should have known of the customs and police practices of its officers which included but was not limited to: the failing to preserve and/or destruction of exculpatory evidence, threatening to arrest witnesses to police misconduct and engaging in cover-ups, fraud, perjury, deceit and malfeasance.

308. That the acts of employees of the CITY and NYPD, i.e. police officers, who violate the civil and constitutional rights of the citizens of the City of New York routinely go unreported, undisciplined and their acts condoned by other officers, including their supervisors. Upon information and belief, the supervisors of defendant police officers herein were aware of the conduct of defendant police officers and failed to stop, report or intervene in the misconduct.

309. The CITY and NYPD'S tolerance for brutality, excessive force, illegal and/or retaliatory arrests, and their emphasis to come down hard on quality of life infractions leads to a systemic practice and policy wherein police officers seem fairly tolerant of police brutality, silence in the face of brutality and/or illegal stops, frisks, searches, seizures and/or arrests, and engage in the practice of meeting arrest quotas. A systemic practice where officers who report said misconduct are not viewed as "good cops" but rather as outcasts and are ostracized and often transferred to other assignments thereby perpetuating the illegal conduct of the NYPD and thusly the CITY.

310. Some instances where officers were treated as outcasts for reporting misconduct and/or arrest/summons quota system are as follows:

a. The existence of arrest quotas, summons quotas and approval of illegal stops and arrests have been exposed by Police officer Adrian Schoolcraft in a separate lawsuit which was cited by Justice Sheindlin in Floyd.

b. Justice Sheindlin referenced the deposition of Police Officer Adhjlly Polanco of the 41st

Precinct stating that commanding officers set specific quotas for arrests and summons and for stop and frisks and threatened to reduce overtime for officers who failed to perform well and re-assign those who fail to meet quotas to less desirable posts.

c. According to secretly tape recorded conversations made by Schoolcraft, a Lieutenant, a Deputy Inspector and Chief of transportation can be heard encouraging and demanding increased stops, summons and detentions and arrests.

d. Police Officer Craig Lance of the 42nd Precinct filed a lawsuit against the NYPD claiming the existence of a quota system and a systematic retaliation and harassment to those who did not comply.

e. Retired Detective James Griffin filed a lawsuit claiming that in the NYPD there exists a culture wherein officers who report corruption will face harassment and a hostile work environment and that this conduct was tolerated by supervisors within the NYPD.

f. Police Officer Minoia, an officer with an Ivy League degree, assigned to the 42nd Precinct, was reassigned to a “punishment post” due to the fact that he failed to write a sufficient amount of summons and stated “I’m not going to pull out my summons book and write a summons because my boss is telling me he’s going to make it difficult for me if I don’t.”

311. In sum, the CITY and NYPD are responsible for creating a custom, policy or practice wherein many officers do not seem to believe that anything is really wrong with stopping and searching innocent citizens or using unnecessary or excessive force or falsely arresting citizens to meet an arrest quota.

312. That the above customs, policies and/or practices and the deliberate indifference thereto, was a direct and proximate cause of the illegal seizure of Plaintiff **JOSHUA PINCKNEY**, the excessive use of force on Plaintiff, and the false arrest and malicious prosecution of Plaintiff. The

CITY and NYPD'S polices, customs and/or practices deprived the Plaintiff of his rights and liberties as set forth in the Constitutions of the United States and the State of New York and under 42 U.S.C §§ 1983, 1986 and 1988.

313. That said actions violated the Fourth and Fourteenth Amendments to the Constitution of the United States, violated Plaintiff's right to be secure in person, and that the defendants used excessive, unnecessary and unlawful force, which constituted cruel and inhumane treatment and denied him due process of law.

314. Moreover, the CITY and NYPD caused or created a policy and/or custom, and acted with deliberate indifference to patterns and/or police practices which included illegal seizures, excessive or arbitrary use of force, illegal use of police equipment, destruction of evidence, intimidation of witnesses, illegal arrests, failing to gather evidence when allegations of police misconduct are involved, condoning a code of silence within the NYPD regarding misconduct, failing to take police reports of illegal conduct, failing to properly supervise, train, investigate or discipline officers, and any and/or all of the above have contributed to Plaintiff's false arrest, malicious and false prosecution, and injuries.

315. That the Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, assaulted, battered and deprived of his constitutional rights as set forth in the Constitution of the United States and 42 U.S.C § 1983.

316. That by reason of the foregoing, Plaintiff **JOSHUA PINCKNEY** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A TWENTY-EIGHTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF JOSHUA PINCKNEY**

317. Plaintiff **JOSHUA PINCKNEY** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 316 with the same force and effect as if fully set

forth at length herein.

318. At all times mentioned herein and above, defendants CITY and NYPD employed GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as police officers and named defendants were acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

319. Plaintiff **JOSHUA PINCKNEY** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

320. That on or about 8/25/23, defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, without probable cause, reasonable cause or legal justification and while effectuating the seizure of plaintiff **JOSHUA PINCKNEY**, did search, seize, assault and commit a battery and grab the Plaintiff **JOSHUA PINCKNEY** without a court authorized arrest warrant or search warrant and defendants did physically seize Plaintiff **JOSHUA PINCKNEY** during the arrest process in an unlawful and excessive manner. Plaintiff **JOSHUA PINCKNEY** was falsely arrested, unlawfully imprisoned and searched and as a result of defendants' conduct maliciously prosecuted without the defendants possessing probable cause, reasonable cause or legal justification to do so.

321. The above actions of defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE resulted in Plaintiff **JOSHUA PINCKNEY** being deprived of the following rights under the United States Constitution: a) Freedom from assault to his person; b) Freedom from battery to his person; c) Freedom from illegal search and seizure; d) Freedom from false arrest; e) Freedom from malicious

prosecution; f) Freedom from the use of excessive force during the arrest process; and g) The right to Due Process of Law.

322. In addition to the above, defendants CITY and NYPD have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct its police officers, including the officers involved in this case and any and all unnamed officers involved in the unlawful seizure and arrest of plaintiff, regarding the protection of the constitutional rights of citizens.

323. Defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, subjected Plaintiff **JOSHUA PINCKNEY** to such deprivation in a malicious, reckless, deliberate, intentional, grossly negligent and with a callous disregard of Plaintiff **JOSHUA PINCKNEY'S** rights and with deliberate indifference to those rights under the Fourth, Fifth, Sixth, Fourteenth and all other related Amendments to the United States Constitution.

324. The direct and proximate result of the defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE acts are that Plaintiff **JOSHUA PINCKNEY** has suffered severe and permanent injuries, loss of liberty and companionship, forced to endure pain and suffering, emotional distress and severe and significant damage to standing and reputation in the community.

325. That by reason of the foregoing, Plaintiff **JOSHUA PINCKNEY** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A TWENTY- NINTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF SHAROD SLATER**

326. Plaintiff **SHAROD SLATER** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 325 with the same force and effect as if fully set

forth at length herein.

327. That at all times the Plaintiff **SHAROD SLATER** was and is a resident of County of the Bronx, City and State of New York.

328. That on 8/25/23, at approximately 11:15 p.m., Plaintiff **SHAROD SLATER** was lawfully in the vicinity of East 137th Street and Alexander Avenue, County of Bronx, State of New York and doing nothing illegal, improper or acting suspicious in anyway.

329. That on 8/25/23, at approximately 11:15 p.m., in the vicinity of East 137th Street and Alexander Avenue, County of Bronx, State of New York, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, absent an arrest warrant, probable cause, reasonable cause or any legal justification, approached Plaintiff **SHAROD SLATER** for no reason and summarily stopped, frisked, searched, grabbed, assaulted, battered, and detained him in an aggressive and excessive manner.

330. Upon information and belief GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE knew or had reason to know that their actions lacked any legal justification in approaching, searching, seizing and arresting Plaintiff **SHAROD SLATER**.

331. That Plaintiff **SHAROD SLATER** was arraigned after his arrest and thereafter falsely and maliciously prosecuted with committing a crime or crimes.

332. Thereafter, Plaintiff **SHAROD SLATER** remained incarcerated for over 24 hours and was required to make numerous court appearances over an extended period of time until all charges against him were terminated favorably.

333. Plaintiff **SHAROD SLATER** sustained physical and emotional pain and injuries as a result of this incident.

334. That within ninety (90) days after the causes of actions accrued herein, and more than thirty (30) days prior to the commencement of this action, the Plaintiff **SHAROD SLATER** caused the notice of claim, in writing, sworn to by and on behalf of the claimants, the Plaintiff herein, containing the statement of the name and place of residence of the claimants by the street and number and their attorney, and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon the defendant CITY, their agents, servants and/or employees at the Law Department,

335. This action was so commenced within one (1) year and ninety (90) days after said cause of action accrued herein, and for more than thirty (30) days prior to the commencement of this action, defendant CITY neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although plaintiff herein has requested and demanded that the same be paid and adjusted.

336. That more than thirty (30) days have elapsed since the service and filing of a Notice of Claim with the Comptroller of the City of New York and said entity has failed to schedule a hearing pursuant to Section 50-h of the General Municipal Law. Plaintiff is ready, willing and able to submit to a 50-h examination if same is requested within a reasonable time frame from the filing of Notice of claim.

337. That on or about 8/25/23, at approximately 11:15 p.m., the Plaintiff **SHAROD SLATER** was without just cause, probable cause or provocation, and with reckless, negligent and callous disregard for the truth, and without investigation, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with excessive force by CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE,

their agents, servants and/or employees, and in particular, by GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE.

338. That on or about 8/25/23, at approximately 11:15 p.m., the Plaintiff **SHAROD SLATER** while lawfully in the vicinity of East 137th Street and Alexander Avenue, County of Bronx, City and State of New York, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE of having committed a crime or crimes.

339. That on or about 8/25/23, and upon arresting the Plaintiff **SHAROD SLATER** and depriving him of his liberty, CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE took the Plaintiff **SHAROD SLATER** to a police station in the County of Bronx and entered him on the records as under arrest.

340. That on or about 8/25/23, the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE further caused Plaintiff **SHAROD SLATER** to have his fingerprints and photographs to be taken without his consent and in accordance with police procedures for the arrest of criminals and held him on various criminal charges at various police stations, correctional facilities and at the Courthouse located at 215 East 161st Street, County of Bronx, City and State of New York.

341. That on or about 8/25/23 Plaintiff **SHAROD SLATER** was aware of his arrest and confinement, he did not consent to his arrest or confinement, and said confinement, seizure, arrest and detention was without legal justification.

342. That at all times hereinafter mentioned the actions of CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and

ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

343. That by reason of the foregoing, Plaintiff **SHAROD SLATER** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A THIRTIETH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF SHAROD SLATER

344. Plaintiff **SHAROD SLATER** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 343 with the same force and effect as if fully set forth at length herein.

345. That on or about 8/25/23, a criminal complaint was issued by the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

346. That on or about 8/25/23 a criminal action against Plaintiff **SHAROD SLATER** was commenced by CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

347. That solely as a result of the aforesaid, the Plaintiff **SHAROD SLATER'S** life was interfered with.

348. That the criminal action against Plaintiff **SHAROD SLATER** was continued for an extended period of time by defendants with malice and bad faith.

349. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff **SHAROD SLATER**, he was deprived of his liberty for an extended period of time and was subjected to scorn, ridicule, embarrassment and was degraded in the

esteem of the community both personally and professionally.

350. That the criminal action against Plaintiff **SHAROD SLATER** was terminated favorably by dismissal.

351. That the actions of CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

352. That by reason of the foregoing, Plaintiff **SHAROD SLATER** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A THIRTY- FIRST CAUSE OF ACTION ON BEHALF OF
PLAINTIFF SHAROD SLATER**

353. Plaintiff **SHAROD SLATER** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 352 with the same force and effect as if fully set forth at length herein.

354. That on or about 8/25/23, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff **SHAROD SLATER** was intentionally touched, pushed, assaulted, battered, violated, searched, humiliated, photographed and handcuffed by the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

355. That on or about 8/25/23 CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and employees, acting as agents and on behalf of the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, within the scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff

SHAROD SLATER in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff **SHAROD SLATER** and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff and/or offensive bodily contact to the Plaintiff **SHAROD SLATER** and caused such battery in and about his head, neck, back, body and limbs.

356. That by reason of the aforesaid intentional assault and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff **SHAROD SLATER** suffered great and permanent bodily injury in and about his head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that he was otherwise damaged.

357. That as a result of the aforesaid assault and battery the Plaintiff **SHAROD SLATER** was caused to sustain serious, severe, painful and permanent bodily injuries so that he was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure himself of his said injuries and he was and will be prevented from attending his usual occupation and duties.

358. That at all times hereinafter mentioned the actions of CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

358. That by reason of the foregoing, Plaintiff **SHAROD SLATER** has been damaged in

an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A THIRTY-SECOND CAUSE OF ACTION ON BEHALF OF
PLAINTIFF SHAROD SLATER

359. Plaintiff SHAROD SLATER repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 358 with the same force and effect as if fully set forth at length herein.

360. That the CITY, NYPD, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, in that said police officers, as employees of CITY and NYPD, were not qualified to be hired or retained or promoted as police officers, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by CITY and NYPD.

361. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately test, analyze test results, and/or investigate above mentioned police officers backgrounds and performances.

362. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately screen said police officers, failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violate Patrol Guidelines.

363. Defendant CITY and NYPD were also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the police officer defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had

knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY and NYPD and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

364. That by reason of the above, the Plaintiff **SHAROD SLATER** was injured in mind and body as he was arrested, prosecuted and rendered sick, sore, and damaged.

365. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

366. That by reason of the foregoing, Plaintiff **SHAROD SLATER** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A THIRTY-THIRD CAUSE OF ACTION ON BEHALF OF
PLAINTIFF SHAROD SLATER**

367. Plaintiff **SHAROD SLATER** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-366 with the same force and effect as if fully set forth at length herein.

368. In arresting Plaintiff **SHAROD SLATER**, police officers including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

369. In arresting Plaintiff **SHAROD SLATER**, police officers including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD,

sought either a detriment to Plaintiff **SHAROD SLATER** or a collateral advantage to the CITY and NYPD that is outside the legitimate ends of effectuating an arrest.

370. As a result of the abuse of process by defendants herein, Plaintiff **SHAROD SLATER** sustained multiple injuries including but not limited to loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

371. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

372. That by reason of the foregoing, Plaintiff **SHAROD SLATER** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A THIRTY- FOURTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF SHAROD SLATER**

373. Plaintiff **SHAROD SLATER** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 372 with the same force and effect as if fully set forth at length herein.

374. That on 8/25/23, at approximately 11:15 p.m., within the vicinity of East 137th Street and Alexander Avenue, County of Bronx, City and State of New York, the CITY and NYPD were present through its agents, servants and/or employees including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, who were acting in the course of their employment and under the color of law to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

375. That Plaintiff **SHAROD SLATER** was lawfully in the above vicinity at the above time when he was stopped, questioned, searched and seized solely on the basis of his age and/or race

and for no legal or legitimate reason.

376. That said illegal stop and seizure was part of the CITY'S custom and practice and/or practice of racial profiling, and/or meeting arrest or summons quotas, and/or the illegal stop and search of civilians which was authorized by, or met with the tacit approval of the CITY and NYPD under their "Stop, Question and Frisk" policy or program ("Stop and Frisk").

377. That under the "Stop and Frisk" program the CITY and NYPD permitted, condoned, or acted with deliberate indifference to the racial disparity of its' application, to the fact that unnecessary or illegal frisks or searches were conducted, that very low percentages of seizures, frisks and searches resulted in arrests or the recovery of contraband, that pretextual reasons are provided for "Stop and Frisk", that officers do not always fill out Stop and Frisk reports, i.e. UF-250s, and are not disciplined when they fail to do so, that stop and frisks are conducted without reasonable suspicion, and that the program of "Stop and Frisk" has resulted in illegal stops, seizures, frisks, arrests and the use of physical force.

378. That the CITY and NYPD have failed to discipline, train, monitor or retrain offending police officers who engaged in stops and frisks without any legal justification and has failed to discipline police officers who fail to fill out required UF-250s.

379. That the CITY and NYPD have failed to adequately investigate and/or discipline officers who use excessive force, stop and frisk innocent citizens who have not done anything illegal or acted in suspicious manner warranting a seizure, who failed to report misconduct of fellow officers, who destroy evidence, who engage in fraud, misrepresentations, deceit, and maliciously participate in and instigate prosecutions of innocent citizens.

380. It is alleged herein that Plaintiff **SHAROD SLATER** was stopped and seized absent reasonable suspicion. That said actions of defendants were pursuant to an illegal and improper Stop

and Frisk program that was promulgated by defendants. That such custom, policy and program has created a class of citizens, including Plaintiff **SHAROD SLATER**, who have been illegally stopped and seized, searched and questioned based on their race, and in order to meet arrest quotas. Evidence of said policy is as follows:

a. That in a class action lawsuit David Floyd, et. al. v. City of New York, et. al., pending in United States District Court, Southern District of New York, 08 CIV 1034, in a decision dated 5/16/12 certifying a class action lawsuit, it was found that between the years of 2005 and 2009 a reported 2.8 million people in New York City have been stopped and frisked. Of said number more than 87% were minority citizens. Summons and arrests were issued or made in approximately 10% of the reported stops. Meaning that based on their own records, defendants' suspicions are incorrect approximately 9 out of 10 stops.

b. The Honorable Shira A. Scheindlin, found in the Floyd decision that:

- i. It is indisputable that NYPD has an enormous Stop and Frisk program;
- ii. Evidence shows that the Stop and Frisk program is organized and hierarchical;
- iii. Stop and Frisk program has been designed and revised at highest levels of defendants;
- iv. The implementation of the program is conducted according to uniform and centralized rules;
- v. Monitoring of the program is hierarchical;
- vi. The program is the result of institutional decisions and directives.

c. Justice Sheindlin further found that a preponderance of evidence shows that defendants policy of establishing performance standards and demanding increased levels of stop and frisks results in putative class of aggrieved citizens. The Court noted that street level stops have risen

every year. That in 2004, defendants documented 313,000 stops, and in 2011 they reported 684,000 stops. In a Police Officer Performance Objectives Operation Order dated 10/17/11, Commissioner Kelly directed that “Department managers can and must set performance goals – relating to “the issuance of summons, the stopping and questioning of suspicious individuals and the arrests of criminals.” It further states that “uniformed members who do not demonstrate activities . . . or who fail to engage in proactive activities . . . will be evaluated accordingly and their assignments reassessed.”

381. Other instances of an illegal and/or improper stop and frisk program custom or practice and/or excessive use of force and filing of false charges includes but not limited to:

a. On 4/12/11 in the vicinity of Walton Avenue and Mt. Hope Place, Bronx, NY, while doing nothing illegal or improper, Lonnie Thompson was approached by several uniformed police officers for no reason and without reasonable suspicion. After being stopped, Mr. Thompson was patted down and searched. He was arrested and charged with Criminal Possession of a Weapon in the Fourth Degree. This, even though the weapon was a bona fide work tool. Mr. Thompson was subjected to a strip search at the 46th Precinct. All charges were dismissed.

b. On 5/4/11 in the vicinity of 2345 Jerome Avenue, Bronx, NY, Alexis Niewkerk, who is handicapped, was sitting in his legally parked vehicle and waiting for his friends to finish shopping at a nearby store. All of a sudden several undercover police officers from Bronx Narcotics approached his vehicle for no reason and without reasonable suspicion ordered him out of said vehicle. Mr. Niewkerk was subjected to a pat down and search. He was subsequently arrested for possession of a controlled substance in the seventh degree even though the “substance” recovered from his pants pocket was his own prescribed pain medication. Mr. Niewkerk was subjected to a strip search and forced to move his body in ways that are extremely painful given his medical status

and condition. All charges were dismissed.

c. On 6/2/11 in the vicinity of 985 Simpson Street, Bronx, NY, Jesus Rosario, an infant, was approached by several police officers from the 41st Precinct. He was told to “get on the wall” and thereafter patted down and searched. Mr. Rosario was accused of Trespassing in the Second Degree. Mr. Rosario was doing nothing illegal or improper at the time the officers approached as he was simply exiting 985 Simpson Street after visiting his father who resides in said building. After being arrested, Mr. Rosario was subjected to a strip search at the 41st Precinct. The case was declined to be prosecuted by the District Attorney’s Office.

d. On 8/1/12 in the vicinity of 1000 Simpson Street, Bronx, NY Nicholas Hernandez and Dilson Pena were sitting outside of their building on a public bench and doing nothing illegal or improper. All of a sudden, several police officers from the 41st Precinct approached them for no reason and told them to submit to a frisk. Mr. Hernandez and Mr. Pena were accused of possession of marihuana even though no marihuana was recovered. They were each subjected to a strip search at the 41st Precinct. All charges against them were declined to be prosecuted by the District Attorney’s Office.

e. On 1/22/11 in the vicinity of 808 Park Avenue, Brooklyn, NY, Captain Michelle Culp, a now retired Captain for New York City Department of Corrections, was visiting her sick and elderly mother at the aforementioned address and decided to walk her mother’s dog. In so doing, Captain Culp was approached by several uniform housing police officers and accused of Trespassing in the Second Degree. She was patted down and searched. This, despite the fact that Captain Culp explained that she was visiting her mother and her identification and personal belongings were in her mother’s apartment in the same building. All charges were dismissed.

f. On 5/20/11 in the vicinity of Park Avenue and East 138th Street, Bronx, NY, Patrick

Nielson was exiting the number 4 subway train and going to his car which was parked nearby when he was followed, stopped, frisked, and assaulted by several undercover police officers from Bronx Narcotics for no reason. Thereafter, he was arrested and accused of possession of a controlled substance. Mr. Nielson was subjected to a strip search. The “controlled” substance was Mr. Nielson’s prescribed medicine. All charges were dismissed.

g. On 6/22/10 in the vicinity of 139th Street and Lenox Avenue, New York, NY, Wilford Person was approached by several undercover police officers from Manhattan North Narcotics for no legitimate reason. Mr. Person was thereafter told to get against a fence and patted down and searched. He was accused of possession of marihuana. Mr. Person was simply playing basketball at the time the police approached him. After being arrested and subjected to a strip search Mr. Person was prosecuted. All charges were eventually dismissed.

h. On 5/2/12 in the vicinity of 1912 Third Avenue, New York, NY, Jose Baez, the manager of a local eyeglass store, left the store to buy his lunch. After leaving the store Mr. Baez, for no reason at all, was approached by several undercover police officers from Manhattan North Narcotics, and was detained, patted down, searched, and falsely accused of selling marihuana. Mr. Baez was subjected to a strip search. All charges against him were dismissed.

i. On 11/13/10 in the vicinity of 1113 Boston Road, Bronx, NY, Alpha Mahoi, was doing nothing illegal or improper when, for no reason, he was approached by several undercover police officers from Bronx Narcotics and accused of being involved in the sale of cocaine. He was cuffed, patted down, searched, arrested and strip searched at the precinct. All charges were dismissed.

j. On 3/10/12 in the vicinity of 1821 Davison Avenue, Bronx, NY, Keyewanie Blackledge, Dwayne Smith and Richard Campbell were leaving his friend’s apartment when they were approached by several uniform police officers from the 46th Precinct for no reason and told to

“get on the wall” and “get on the floor” and thereafter patted down and searched. They was charged with Trespassing in the Second Degree. All charges were dismissed.

k. On 8/1/12 in the vicinity of 1000 Simpson Street, Bronx, NY, Dylan Pena was outside recording on his cell phone several police officers from the 41st Precinct arresting a person from the neighborhood. Upon seeing Mr. Pena recording the incident several police officers grabbed him and pushed him to the ground and seized his cell phone without any reason to do so. All data on the phone was subsequently erased by the officers. Mr. Pena was also patted down and searched. He was charged with resisting arrest and was strip searched at the 41st Precinct. The charges were declined to be prosecuted by the District Attorney’s Office.

l. On 5/17/11 in the vicinity of 1690 Clay Avenue, Bronx, NY, Gregory Williams was leaving a family friend’s apartment after helping her move furniture so she could clean. Upon exiting the building Mr. Williams, for no reason at all, was approached by several uniformed police officers from the 44th Precinct and patted down and searched. He was accused of Trespassing in the Second Degree despite his family friend informing the police officers at the scene and at the 44th Precinct that he had permission to be in the building. Mr. Williams was strip searched. All charges against him were dismissed.

m. On 3/16/11 in the vicinity of 1740 Grand Avenue, Bronx, NY, Lindon Grant just left his apartment to walk approximately 1 block to buy breakfast before going to work. After he bought his breakfast and left the store he was approached by several undercover police officers from the 46th Precinct for no reason and patted down and searched. He was then accused of selling marihuana. Mr. Grant was arrested, strip searched and prosecuted for several months. All charges were dismissed.

n. On 8/2/09 in the vicinity of Southern Boulevard and East 175th Street, Bronx, NY Jose

Suazo was approached by several uniformed officers from the 42nd Precinct for no reason. Mr. Suazo was patted down and searched. Despite the fact that he had nothing illegal on his person he was charged with possession of marihuana. While already in custody in a police van shots were fired in a nearby park. When Mr. Suazo got to the precinct he found out that even though he was already in custody in the police van when the shots were fired, he was charged with possession of a weapon in the second degree. Mr. Suazo was subjected to a strip search. All charges were eventually dismissed.

o. On 8/12/19 in the vicinity of 894 Rogers Place, Bronx, NY, Edmanuel Benitez was standing outside of the building and waiting for a friend to come outside to play basketball. All of a sudden he was approached for no reason by officers from the 41st Precinct and thereafter patted down, searched, arrested, strip searched and prosecuted for the sale of marihuana. All charges were dismissed.

p. On 2/19/12 Daniel Rodriguez was leaving a store in the vicinity of Jerome Avenue and West 192nd Street when he was summarily grabbed, pushed against a wall, patted down, frisked, searched and then handcuffed by several officers from Bronx Narcotics. Mr. Rodriguez was doing nothing illegal or improper at the time. He was subsequently strip searched and charged with possession of a controlled substance in the seventh degree. All charges were dismissed.

q. On 9/28/11 Shakeem Enang was in the vicinity of West 179th Street and University Avenue when he was approached by several plain clothes officers from Bronx Narcotics Division. Mr. Enang was doing nothing illegal at the time the officers approached or any time prior to the officers approaching. He was grabbed, seized, frisked, searched and then arrested. Mr. Enang was charged with criminal sale of a controlled substance. He was strip searched at the 46th Precinct. All charges were dismissed.

382. As is evidence from the above, Plaintiff **SHAROD SLATER'S** injuries including the violation of his constitutional rights, the deprivation of his freedom, falsely and maliciously being prosecuted, physical and emotional injuries, are the direct and proximate result of the CITY'S and NYPD'S policies and/or deliberate indifference to practices which involve the excessive use of force, false arrest, police cover-ups, witness intimidation, malicious prosecution, illegal stop, questions and frisks, searches, Fourth Amendment violations, and deliberate indifference to the need to train, supervise, monitor, investigate and discipline, including suspension, dismissal and/or reassignment offending police officers. The practice is widespread and pervasive throughout the entire City of New York.

383. The CITY and NYPD knew or should have known of the customs and police practices of its officers which included but was not limited to: the failing to preserve and/or destruction of exculpatory evidence, threatening to arrest witnesses to police misconduct and engaging in cover-ups, fraud, perjury, deceit and malfeasance.

384. That the acts of employees of the CITY and NYPD, i.e. police officers, who violate the civil and constitutional rights of the citizens of the City of New York routinely go unreported, undisciplined and their acts condoned by other officers, including their supervisors. Upon information and belief, the supervisors of defendant police officers herein were aware of the conduct of defendant police officers and failed to stop, report or intervene in the misconduct.

385. The CITY and NYPD'S tolerance for brutality, excessive force, illegal and/or retaliatory arrests, and their emphasis to come down hard on quality of life infractions leads to a systemic practice and policy wherein police officers seem fairly tolerant of police brutality, silence in the face of brutality and/or illegal stops, frisks, searches, seizures and/or arrests, and engage in the practice of meeting arrest quotas. A systemic practice where officers who report said misconduct are

not viewed as “good cops” but rather as outcasts and are ostracized and often transferred to other assignments thereby perpetuating the illegal conduct of the NYPD and thusly the CITY.

386. Some instances where officers were treated as outcasts for reporting misconduct and/or arrest/summons quota system are as follows:

a. The existence of arrest quotas, summons quotas and approval of illegal stops and arrests have been exposed by Police officer Adrian Schoolcraft in a separate lawsuit which was cited by Justice Sheindlin in Floyd.

b. Justice Sheindlin referenced the deposition of Police Officer Adhily Polanco of the 41st Precinct stating that commanding officers set specific quotas for arrests and summons and for stop and frisks and threatened to reduce overtime for officers who failed to perform well and re-assign those who fail to meet quotas to less desirable posts.

c. According to secretly tape recorded conversations made by Schoolcraft, a Lieutenant, a Deputy Inspector and Chief of transportation can be heard encouraging and demanding increased stops, summons and detentions and arrests.

d. Police Officer Craig Lance of the 42nd Precinct filed a lawsuit against the NYPD claiming the existence of a quota system and a systematic retaliation and harassment to those who did not comply.

e. Retired Detective James Griffin filed a lawsuit claiming that in the NYPD there exists a culture wherein officers who report corruption will face harassment and a hostile work environment and that this conduct was tolerated by supervisors within the NYPD.

f. Police Officer Minoia, an officer with an Ivy League degree, assigned to the 42nd Precinct, was reassigned to a “punishment post” due to the fact that he failed to write a sufficient amount of summons and stated “I’m not going to pull out my summons book and write a summons

because my boss is telling me he's going to make it difficult for me if I don't."

387. In sum, the CITY and NYPD are responsible for creating a custom, policy or practice wherein many officers do not seem to believe that anything is really wrong with stopping and searching innocent citizens or using unnecessary or excessive force or falsely arresting citizens to meet an arrest quota.

388. That the above customs, policies and/or practices and the deliberate indifference thereto, was a direct and proximate cause of the illegal seizure of Plaintiff **SHAROD SLATER**, the excessive use of force on Plaintiff, and the false arrest and malicious prosecution of Plaintiff. The CITY and NYPD'S policies, customs and/or practices deprived the Plaintiff of his rights and liberties as set forth in the Constitutions of the United States and the State of New York and under 42 U.S.C §§ 1983, 1986 and 1988.

389. That said actions violated the Fourth and Fourteenth Amendments to the Constitution of the United States, violated Plaintiff's right to be secure in person, and that the defendants used excessive, unnecessary and unlawful force, which constituted cruel and inhumane treatment and denied him due process of law.

390. Moreover, the CITY and NYPD caused or created a policy and/or custom, and acted with deliberate indifference to patterns and/or police practices which included illegal seizures, excessive or arbitrary use of force, illegal use of police equipment, destruction of evidence, intimidation of witnesses, illegal arrests, failing to gather evidence when allegations of police misconduct are involved, condoning a code of silence within the NYPD regarding misconduct, failing to take police reports of illegal conduct, failing to properly supervise, train, investigate or discipline officers, and any and/or all of the above have contributed to Plaintiff's false arrest, malicious and false prosecution, and injuries.

391. That the Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, assaulted, battered and deprived of his constitutional rights as set forth in the Constitution of the United States and 42 U.S.C § 1983.

392. That by reason of the foregoing, Plaintiff **SHAROD SLATER** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A THIRTY- FIFTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF SHAROD SLATER**

393. Plaintiff **SHAROD SLATER** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 392 with the same force and effect as if fully set forth at length herein.

394. At all times mentioned herein and above, defendants CITY and NYPD employed GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as police officers and named defendants were acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

395. Plaintiff **SHAROD SLATER** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

396. That on or about 8/25/23, defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, without probable cause, reasonable cause or legal justification and while effectuating the seizure of plaintiff **SHAROD SLATER**, did search, seize, assault and commit a battery and grab the Plaintiff **SHAROD SLATER** without a court authorized arrest warrant or search warrant and defendants did physically seize Plaintiff **SHAROD SLATER** during the arrest process in an unlawful and excessive

manner. Plaintiff **SHAROD SLATER** was falsely arrested, unlawfully imprisoned and searched and as a result of defendants' conduct maliciously prosecuted without the defendants possessing probable cause, reasonable cause or legal justification to do so.

397. The above actions of defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE resulted in Plaintiff **SHAROD SLATER** being deprived of the following rights under the United States Constitution: a) Freedom from assault to his person; b) Freedom from battery to his person; c) Freedom from illegal search and seizure; d) Freedom from false arrest; e) Freedom from malicious prosecution; f) Freedom from the use of excessive force during the arrest process; and g) The right to Due Process of Law.

398. In addition to the above, defendants CITY and NYPD have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct its police officers, including the officers involved in this case and any and all unnamed officers involved in the unlawful seizure and arrest of plaintiff, regarding the protection of the constitutional rights of citizens.

399. Defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, subjected Plaintiff **SHAROD SLATER** to such deprivation in a malicious, reckless, deliberate, intentional, grossly negligent and with a callous disregard of Plaintiff **SHAROD SLATER'S** rights and with deliberate indifference to those rights under the Fourth, Fifth, Sixth, Fourteenth and all other related Amendments to the United States Constitution.

400. The direct and proximate result of the defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE acts

are that Plaintiff **SHAROD SLATER** has suffered severe and permanent injuries, loss of liberty and companionship, forced to endure pain and suffering, emotional distress and severe and significant damage to standing and reputation in the community.

401. That by reason of the foregoing, Plaintiff **SHAROD SLATER** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A THIRTY- SIXTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF MARLIE WEBB

402. Plaintiff **MARLIE WEBB** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 401 with the same force and effect as if fully set forth at length herein.

403. That at all times the Plaintiff **MARLIE WEBB** was and is a resident of County of Bronx, City and State of New York.

404. That on 8/25/23, at approximately 11:15 p.m., Plaintiff **MARLIE WEBB** was lawfully in the vicinity of East 137th Street and Alexander Avenue, County of Bronx, State of New York and doing nothing illegal, improper or acting suspicious in anyway.

405. That on 8/25/23, at approximately 11:15 p.m., in the vicinity of East 137th Street and Alexander Avenue, County of Bronx, State of New York, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, absent an arrest warrant, probable cause, reasonable cause or any legal justification, approached Plaintiff **MARLIE WEBB** for no reason and summarily stopped, frisked, searched, grabbed, assaulted, battered, and detained him in an aggressive and excessive manner.

406. Upon information and belief GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE knew or had reason to know that their actions lacked any legal justification in approaching, searching, seizing and arresting Plaintiff

MARLIE WEBB.

407. That Plaintiff **MARLIE WEBB** was arraigned after his arrest and thereafter falsely and maliciously prosecuted with committing a crime or crimes.

408. Thereafter, Plaintiff **MARLIE WEBB** remained incarcerated for over 24 hours and was required to make numerous court appearances over an extended period of time until all charges against him were terminated favorably.

409. Plaintiff **MARLIE WEBB** sustained physical and emotional pain and injuries as a result of this incident.

410. That within ninety (90) days after the causes of actions accrued herein, and more than thirty (30) days prior to the commencement of this action, the Plaintiff **MARLIE WEBB** caused the notice of claim, in writing, sworn to by and on behalf of the claimants, the Plaintiff herein, containing the statement of the name and place of residence of the claimants by the street and number and their attorney, and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon the defendant CITY, their agents, servants and/or employees at the Law Department,

411. This action was so commenced within one (1) year and ninety (90) days after said cause of action accrued herein, and for more than thirty (30) days prior to the commencement of this action, defendant CITY neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although plaintiff herein has requested and demanded that the same be paid and adjusted.

412. That more than thirty (30) days have elapsed since the service and filing of a Notice of Claim with the Comptroller of the City of New York and said entity has failed to schedule a

hearing pursuant to Section 50-h of the General Municipal Law. Plaintiff is ready, willing and able to submit to a 50-h examination if same is requested within a reasonable time frame from the filing of Notice of claim.

413. That on or about 8/25/23, at approximately 11:15 p.m., the Plaintiff **MARLIE WEBB** was without just cause, probable cause or provocation, and with reckless, negligent and callous disregard for the truth, and without investigation, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with excessive force by CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and/or employees, and in particular, by GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE.

414. That on or about 8/25/23, at approximately 11:15 p.m., the Plaintiff **MARLIE WEBB** while lawfully in the vicinity of East 137th Street and Alexander Avenue, County of Bronx, City and State of New York, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE of having committed a crime or crimes.

415. That on or about 8/25/23, and upon arresting the Plaintiff **MARLIE WEBB** and depriving him of his liberty, CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE took the Plaintiff **MARLIE WEBB** to a police station in the County of Bronx and entered him on the records as under arrest.

416. That on or about 8/25/23, the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE further caused Plaintiff **MARLIE WEBB** to have his fingerprints and photographs to be taken without his

consent and in accordance with police procedures for the arrest of criminals and held him on various criminal charges at various police stations, correctional facilities and at the Courthouse located at 215 East 161st Street, County of Bronx, City and State of New York.

417. That on or about 8/25/23 Plaintiff **MARLIE WEBB** was aware of his arrest and confinement, he did not consent to his arrest or confinement, and said confinement, seizure, arrest and detention was without legal justification.

418. That at all times hereinafter mentioned the actions of CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

419. That by reason of the foregoing, Plaintiff **MARLIE WEBB** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A THIRTY-SEVENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF MARLIE WEBB**

420. Plaintiff **MARLIE WEBB** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 419 with the same force and effect as if fully set forth at length herein.

421. That on or about 8/25/23, a criminal complaint was issued by the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

422. That on or about 8/25/23 a criminal action against Plaintiff **MARLIE WEBB** was commenced by CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and/or employees,

without probable cause, reasonable cause or legal justification.

423. That solely as a result of the aforesaid, the Plaintiff **MARLIE WEBB'S** life was interfered with.

424. That the criminal action against Plaintiff **MARLIE WEBB** was continued for an extended period of time by defendants with malice and bad faith.

425. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff **MARLIE WEBB**, he was deprived of his liberty for an extended period of time and was subjected to scorn, ridicule, embarrassment and was degraded in the esteem of the community both personally and professionally.

426. That the criminal action against Plaintiff **MARLIE WEBB** was terminated favorably by dismissal.

427. That the actions of CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

428. That by reason of the foregoing, Plaintiff **MARLIE WEBB** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A THIRTY- EIGHTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF MARLIE WEBB**

429. Plaintiff **MARLIE WEBB** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 428 with the same force and effect as if fully set forth at length herein.

430. That on or about 8/25/23, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff **MARLIE WEBB** was intentionally touched, pushed, assaulted, battered, violated, searched, humiliated, photographed and handcuffed by the CITY,

NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

431. That on or about 8/25/23 CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and employees, acting as agents and on behalf of the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, within the scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff **MARLIE WEBB** in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff **MARLIE WEBB** and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff and/or offensive bodily contact to the Plaintiff **MARLIE WEBB** and caused such battery in and about his head, neck, back, body and limbs.

432. That by reason of the aforesaid intentional assault and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff **MARLIE WEBB** suffered great and permanent bodily injury in and about his head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that he was otherwise damaged.

433. That as a result of the aforesaid assault and battery the Plaintiff **MARLIE WEBB** was caused to sustain serious, severe, painful and permanent bodily injuries so that he was rendered

sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure himself of his said injuries and he was and will be prevented from attending his usual occupation and duties.

434. That at all times hereinafter mentioned the actions of CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

435. That by reason of the foregoing, Plaintiff **MARLIE WEBB** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A THIRTY- NINTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF MARLIE WEBB**

436. Plaintiff **MARLIE WEBB** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 435 with the same force and effect as if fully set forth at length herein.

437. That the CITY, NYPD, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, in that said police officers, as employees of CITY and NYPD, were not qualified to be hired or retained or promoted as police officers, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by CITY and NYPD.

438. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately test, analyze test results, and/or investigate above mentioned police officers backgrounds and

performances.

439. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately screen said police officers, failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violate Patrol Guidelines.

440. Defendant CITY and NYPD were also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the police officer defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY and NYPD and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

441. That by reason of the above, the Plaintiff **MARLIE WEBB** was injured in mind and body as he was arrested, prosecuted and rendered sick, sore, and damaged.

442. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

443. That by reason of the foregoing, Plaintiff **MARLIE WEBB** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FORTIETH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF MARLIE WEBB**

444. Plaintiff **MARLIE WEBB** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-443 with the same force and effect as if fully set forth at length

herein.

445. In arresting Plaintiff **MARLIE WEBB**, police officers including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

446. In arresting Plaintiff **MARLIE WEBB**, police officers including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, sought either a detriment to Plaintiff **MARLIE WEBB** or a collateral advantage to the CITY and NYPD that is outside the legitimate ends of effectuating an arrest.

447. As a result of the abuse of process by defendants herein, Plaintiff **MARLIE WEBB** sustained multiple injuries including but not limited to loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

448. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

449. That by reason of the foregoing, Plaintiff **MARLIE WEBB** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FORTY-FIRST CAUSE OF ACTION ON BEHALF OF
PLAINTIFF MARLIE WEBB**

450. Plaintiff **MARLIE WEBB** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 449 with the same force and effect as if fully set forth at length herein.

451. That on 8/25/23, at approximately 11:15 p.m., within the vicinity of East 137th Street

and Alexander Avenue, County of Bronx, City and State of New York, the CITY and NYPD were present through its agents, servants and/or employees including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, who were acting in the course of their employment and under the color of law to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

452. That Plaintiff **MARLIE WEBB** was lawfully in the above vicinity at the above time when he was stopped, questioned, searched and seized solely on the basis of his age and/or race and for no legal or legitimate reason.

453. That said illegal stop and seizure was part of the CITY'S custom and practice and/or practice of racial profiling, and/or meeting arrest or summons quotas, and/or the illegal stop and search of civilians which was authorized by, or met with the tacit approval of the CITY and NYPD under their "Stop, Question and Frisk" policy or program ("Stop and Frisk").

454. That under the "Stop and Frisk" program the CITY and NYPD permitted, condoned, or acted with deliberate indifference to the racial disparity of its' application, to the fact that unnecessary or illegal frisks or searches were conducted, that very low percentages of seizures, frisks and searches resulted in arrests or the recovery of contraband, that pretextual reasons are provided for "Stop and Frisk", that officers do not always fill out Stop and Frisk reports, i.e. UF-250s, and are not disciplined when they fail to do so, that stop and frisks are conducted without reasonable suspicion, and that the program of "Stop and Frisk" has resulted in illegal stops, seizures, frisks, arrests and the use of physical force.

455. That the CITY and NYPD have failed to discipline, train, monitor or retrain offending police officers who engaged in stops and frisks without any legal justification and has failed to

discipline police officers who fail to fill out required UF-250s.

456. That the CITY and NYPD have failed to adequately investigate and/or discipline officers who use excessive force, stop and frisk innocent citizens who have not done anything illegal or acted in suspicious manner warranting a seizure, who failed to report misconduct of fellow officers, who destroy evidence, who engage in fraud, misrepresentations, deceit, and maliciously participate in and instigate prosecutions of innocent citizens.

457. It is alleged herein that Plaintiff **MARLIE WEBB** was stopped and seized absent reasonable suspicion. That said actions of defendants were pursuant to an illegal and improper Stop and Frisk program that was promulgated by defendants. That such custom, policy and program has created a class of citizens, including Plaintiff **MARLIE WEBB**, who have been illegally stopped and seized, searched and questioned based on their race, and in order to meet arrest quotas. Evidence of said policy is as follows:

a. That in a class action lawsuit David Floyd, et. al. v. City of New York, et. al., pending in United States District Court, Southern District of New York, 08 CIV 1034, in a decision dated 5/16/12 certifying a class action lawsuit, it was found that between the years of 2005 and 2009 a reported 2.8 million people in New York City have been stopped and frisked. Of said number more than 87% were minority citizens. Summons and arrests were issued or made in approximately 10% of the reported stops. Meaning that based on their own records, defendants' suspicions are incorrect approximately 9 out of 10 stops.

b. The Honorable Shira A. Scheindlin, found in the Floyd decision that:

- i. It is indisputable that NYPD has an enormous Stop and Frisk program;
- ii. Evidence shows that the Stop and Frisk program is organized and hierarchical;
- iii. Stop and Frisk program has been designed and revised at highest levels of

defendants;

- iv. The implementation of the program is conducted according to uniform and centralized rules;
- v. Monitoring of the program is hierarchical;
- vi. The program is the result of institutional decisions and directives.

c. Justice Sheindlin further found that a preponderance of evidence shows that defendants policy of establishing performance standards and demanding increased levels of stop and frisks results in putative class of aggrieved citizens. The Court noted that street level stops have risen every year. That in 2004, defendants documented 313,000 stops, and in 2011 they reported 684,000 stops. In a Police Officer Performance Objectives Operation Order dated 10/17/11, Commissioner Kelly directed that “Department managers can and must set performance goals – relating to “the issuance of summons, the stopping and questioning of suspicious individuals and the arrests of criminals.” It further states that “uniformed members who do not demonstrate activities . . . or who fail to engage in proactive activities . . . will be evaluated accordingly and their assignments reassessed.”

458. Other instances of an illegal and/or improper stop and frisk program custom or practice and/or excessive use of force and filing of false charges includes but not limited to:

a. On 4/12/11 in the vicinity of Walton Avenue and Mt. Hope Place, Bronx, NY, while doing nothing illegal or improper, Lonnie Thompson was approached by several uniformed police officers for no reason and without reasonable suspicion. After being stopped, Mr. Thompson was patted down and searched. He was arrested and charged with Criminal Possession of a Weapon in the Fourth Degree. This, even though the weapon was a bona fide work tool. Mr. Thompson was subjected to a strip search at the 46th Precinct. All charges were dismissed.

b. On 5/4/11 in the vicinity of 2345 Jerome Avenue, Bronx, NY, Alexis Niewkerk, who is handicapped, was sitting in his legally parked vehicle and waiting for his friends to finish shopping at a nearby store. All of a sudden several undercover police officers from Bronx Narcotics approached his vehicle for no reason and without reasonable suspicion ordered him out of said vehicle. Mr. Niewkerk was subjected to a pat down and search. He was subsequently arrested for possession of a controlled substance in the seventh degree even though the “substance” recovered from his pants pocket was his own prescribed pain medication. Mr. Niewkerk was subjected to a strip search and forced to move his body in ways that are extremely painful given his medical status and condition. All charges were dismissed.

c. On 6/2/11 in the vicinity of 985 Simpson Street, Bronx, NY, Jesus Rosario, an infant, was approached by several police officers from the 41st Precinct. He was told to “get on the wall” and thereafter patted down and searched. Mr. Rosario was accused of Trespassing in the Second Degree. Mr. Rosario was doing nothing illegal or improper at the time the officers approached as he was simply exiting 985 Simpson Street after visiting his father who resides in said building. After being arrested, Mr. Rosario was subjected to a strip search at the 41st Precinct. The case was declined to be prosecuted by the District Attorney’s Office.

d. On 8/1/12 in the vicinity of 1000 Simpson Street, Bronx, NY Nicholas Hernandez and Dilson Pena were sitting outside of their building on a public bench and doing nothing illegal or improper. All of a sudden, several police officers from the 41st Precinct approached them for no reason and told them to submit to a frisk. Mr. Hernandez and Mr. Pena were accused of possession of marihuana even though no marihuana was recovered. They were each subjected to a strip search at the 41st Precinct. All charges against them were declined to be prosecuted by the District Attorney’s Office.

e. On 1/22/11 in the vicinity of 808 Park Avenue, Brooklyn, NY, Captain Michelle Culp, a now retired Captain for New York City Department of Corrections, was visiting her sick and elderly mother at the aforementioned address and decided to walk her mother's dog. In so doing, Captain Culp was approached by several uniform housing police officers and accused of Trespassing in the Second Degree. She was patted down and searched. This, despite the fact that Captain Culp explained that she was visiting her mother and her identification and personal belongings were in her mother's apartment in the same building. All charges were dismissed.

f. On 5/20/11 in the vicinity of Park Avenue and East 138th Street, Bronx, NY, Patrick Nielson was exiting the number 4 subway train and going to his car which was parked nearby when he was followed, stopped, frisked, and assaulted by several undercover police officers from Bronx Narcotics for no reason. Thereafter, he was arrested and accused of possession of a controlled substance. Mr. Nielson was subjected to a strip search. The "controlled" substance was Mr. Nielson's prescribed medicine. All charges were dismissed.

g. On 6/22/10 in the vicinity of 139th Street and Lenox Avenue, New York, NY, Wilford Person was approached by several undercover police officers from Manhattan North Narcotics for no legitimate reason. Mr. Person was thereafter told to get against a fence and patted down and searched. He was accused of possession of marihuana. Mr. Person was simply playing basketball at the time the police approached him. After being arrested and subjected to a strip search Mr. Person was prosecuted. All charges were eventually dismissed.

h. On 5/2/12 in the vicinity of 1912 Third Avenue, New York, NY, Jose Baez, the manager of a local eyeglass store, left the store to buy his lunch. After leaving the store Mr. Baez, for no reason at all, was approached by several undercover police officers from Manhattan North Narcotics, and was detained, patted down, searched, and falsely accused of selling marihuana. Mr.

Baez was subjected to a strip search. All charges against him were dismissed.

i. On 11/13/10 in the vicinity of 1113 Boston Road, Bronx, NY, Alpha Mahoi, was doing nothing illegal or improper when, for no reason, he was approached by several undercover police officers from Bronx Narcotics and accused of being involved in the sale of cocaine. He was cuffed, patted down, searched, arrested and strip searched at the precinct. All charges were dismissed.

j. On 3/10/12 in the vicinity of 1821 Davison Avenue, Bronx, NY, Keyewanie Blackledge, Dwayne Smith and Richard Campbell were leaving his friend's apartment when they were approached by several uniform police officers from the 46th Precinct for no reason and told to "get on the wall" and "get on the floor" and thereafter patted down and searched. They was charged with Trespassing in the Second Degree. All charges were dismissed.

k. On 8/1/12 in the vicinity of 1000 Simpson Street, Bronx, NY, Dylan Pena was outside recording on his cell phone several police officers from the 41st Precinct arresting a person from the neighborhood. Upon seeing Mr. Pena recording the incident several police officers grabbed him and pushed him to the ground and seized his cell phone without any reason to do so. All data on the phone was subsequently erased by the officers. Mr. Pena was also patted down and searched. He was charged with resisting arrest and was strip searched at the 41st Precinct. The charges were declined to be prosecuted by the District Attorney's Office.

l. On 5/17/11 in the vicinity of 1690 Clay Avenue, Bronx, NY, Gregory Williams was leaving a family friend's apartment after helping her move furniture so she could clean. Upon exiting the building Mr. Williams, for no reason at all, was approached by several uniformed police officers from the 44th Precinct and patted down and searched. He was accused of Trespassing in the Second Degree despite his family friend informing the police officers at the scene and at the 44th Precinct that he had permission to be in the building. Mr. Williams was strip searched. All charges

against him were dismissed.

m. On 3/16/11 in the vicinity of 1740 Grand Avenue, Bronx, NY, Lindon Grant just left his apartment to walk approximately 1 block to buy breakfast before going to work. After he bought his breakfast and left the store he was approached by several undercover police officers from the 46th Precinct for no reason and patted down and searched. He was then accused of selling marihuana. Mr. Grant was arrested, strip searched and prosecuted for several months. All charges were dismissed.

n. On 8/2/09 in the vicinity of Southern Boulevard and East 175th Street, Bronx, NY Jose Suazo was approached by several uniformed officers from the 42nd Precinct for no reason. Mr. Suazo was patted down and searched. Despite the fact that he had nothing illegal on his person he was charged with possession of marihuana. While already in custody in a police van shots were fired in a nearby park. When Mr. Suazo got to the precinct he found out that even though he was already in custody in the police van when the shots were fired, he was charged with possession of a weapon in the second degree. Mr. Suazo was subjected to a strip search. All charges were eventually dismissed.

o. On 8/12/19 in the vicinity of 894 Rogers Place, Bronx, NY, Edmanuel Benitez was standing outside of the building and waiting for a friend to come outside to play basketball. All of a sudden he was approached for no reason by officers from the 41st Precinct and thereafter patted down, searched, arrested, strip searched and prosecuted for the sale of marihuana. All charges were dismissed.

p. On 2/19/12 Daniel Rodriguez was leaving a store in the vicinity of Jerome Avenue and West 192nd Street when he was summarily grabbed, pushed against a wall, patted down, frisked, searched and then handcuffed by several officers from Bronx Narcotics. Mr. Rodriguez was doing

nothing illegal or improper at the time. He was subsequently strip searched and charged with possession of a controlled substance in the seventh degree. All charges were dismissed.

q. On 9/28/11 Shakeem Enang was in the vicinity of West 179th Street and University Avenue when he was approached by several plain clothes officers from Bronx Narcotics Division. Mr. Enang was doing nothing illegal at the time the officers approached or any time prior to the officers approaching. He was grabbed, seized, frisked, searched and then arrested. Mr. Enang was charged with criminal sale of a controlled substance. He was strip searched at the 46th Precinct. All charges were dismissed.

459. As is evidence from the above, Plaintiff **MARLIE WEBB'S** injuries including the violation of his constitutional rights, the deprivation of his freedom, falsely and maliciously being prosecuted, physical and emotional injuries, are the direct and proximate result of the CITY'S and NYPD'S policies and/or deliberate indifference to practices which involve the excessive use of force, false arrest, police cover-ups, witness intimidation, malicious prosecution, illegal stop, questions and frisks, searches, Fourth Amendment violations, and deliberate indifference to the need to train, supervise, monitor, investigate and discipline, including suspension, dismissal and/or reassignment offending police officers. The practice is widespread and pervasive throughout the entire City of New York.

460. The CITY and NYPD knew or should have known of the customs and police practices of its officers which included but was not limited to: the failing to preserve and/or destruction of exculpatory evidence, threatening to arrest witnesses to police misconduct and engaging in cover-ups, fraud, perjury, deceit and malfeasance.

461. That the acts of employees of the CITY and NYPD, i.e. police officers, who violate the civil and constitutional rights of the citizens of the City of New York routinely go unreported,

undisciplined and their acts condoned by other officers, including their supervisors. Upon information and belief, the supervisors of defendant police officers herein were aware of the conduct of defendant police officers and failed to stop, report or intervene in the misconduct.

462. The CITY and NYPD'S tolerance for brutality, excessive force, illegal and/or retaliatory arrests, and their emphasis to come down hard on quality of life infractions leads to a systemic practice and policy wherein police officers seem fairly tolerant of police brutality, silence in the face of brutality and/or illegal stops, frisks, searches, seizures and/or arrests, and engage in the practice of meeting arrest quotas. A systemic practice where officers who report said misconduct are not viewed as "good cops" but rather as outcasts and are ostracized and often transferred to other assignments thereby perpetuating the illegal conduct of the NYPD and thusly the CITY.

463. Some instances where officers were treated as outcasts for reporting misconduct and/or arrest/summons quota system are as follows:

a. The existence of arrest quotas, summons quotas and approval of illegal stops and arrests have been exposed by Police officer Adrian Schoolcraft in a separate lawsuit which was cited by Justice Sheindlin in Floyd.

b. Justice Sheindlin referenced the deposition of Police Officer Adhly Polanco of the 41st Precinct stating that commanding officers set specific quotas for arrests and summons and for stop and frisks and threatened to reduce overtime for officers who failed to perform well and re-assign those who fail to meet quotas to less desirable posts.

c. According to secretly tape recorded conversations made by Schoolcraft, a Lieutenant, a Deputy Inspector and Chief of transportation can be heard encouraging and demanding increased stops, summons and detentions and arrests.

d. Police Officer Craig Lance of the 42nd Precinct filed a lawsuit against the NYPD

claiming the existence of a quota system and a systematic retaliation and harassment to those who did not comply.

e. Retired Detective James Griffin filed a lawsuit claiming that in the NYPD there exists a culture wherein officers who report corruption will face harassment and a hostile work environment and that this conduct was tolerated by supervisors within the NYPD.

f. Police Officer Minoia, an officer with an Ivy League degree, assigned to the 42nd Precinct, was reassigned to a “punishment post” due to the fact that he failed to write a sufficient amount of summons and stated “I’m not going to pull out my summons book and write a summons because my boss is telling me he’s going to make it difficult for me if I don’t.”

464. In sum, the CITY and NYPD are responsible for creating a custom, policy or practice wherein many officers do not seem to believe that anything is really wrong with stopping and searching innocent citizens or using unnecessary or excessive force or falsely arresting citizens to meet an arrest quota.

465. That the above customs, policies and/or practices and the deliberate indifference thereto, was a direct and proximate cause of the illegal seizure of Plaintiff **MARLIE WEBB**, the excessive use of force on Plaintiff, and the false arrest and malicious prosecution of Plaintiff. The CITY and NYPD’S policies, customs and/or practices deprived the Plaintiff of his rights and liberties as set forth in the Constitutions of the United States and the State of New York and under 42 U.S.C §§ 1983, 1986 and 1988.

466. That said actions violated the Fourth and Fourteenth Amendments to the Constitution of the United States, violated Plaintiff’s right to be secure in person, and that the defendants used excessive, unnecessary and unlawful force, which constituted cruel and inhumane treatment and denied him due process of law.

467. Moreover, the CITY and NYPD caused or created a policy and/or custom, and acted with deliberate indifference to patterns and/or police practices which included illegal seizures, excessive or arbitrary use of force, illegal use of police equipment, destruction of evidence, intimidation of witnesses, illegal arrests, failing to gather evidence when allegations of police misconduct are involved, condoning a code of silence within the NYPD regarding misconduct, failing to take police reports of illegal conduct, failing to properly supervise, train, investigate or discipline officers, and any and/or all of the above have contributed to Plaintiff's false arrest, malicious and false prosecution, and injuries.

468. That the Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, assaulted, battered and deprived of his constitutional rights as set forth in the Constitution of the United States and 42 U.S.C § 1983.

469. That by reason of the foregoing, Plaintiff **MARLIE WEBB** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FORTY- SECOND CAUSE OF ACTION ON BEHALF OF
PLAINTIFF MARLIE WEBB**

470. Plaintiff **MARLIE WEBB** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 469 with the same force and effect as if fully set forth at length herein.

471. At all times mentioned herein and above, defendants CITY and NYPD employed GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as police officers and named defendants were acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

472. Plaintiff **MARLIE WEBB** is and at all times relevant herein, a citizen of the United

States and a resident of Bronx County and State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

473. That on or about 8/25/23, defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, without probable cause, reasonable cause or legal justification and while effectuating the seizure of plaintiff **MARLIE WEBB**, did search, seize, assault and commit a battery and grab the Plaintiff **MARLIE WEBB** without a court authorized arrest warrant or search warrant and defendants did physically seize Plaintiff **MARLIE WEBB** during the arrest process in an unlawful and excessive manner. Plaintiff **MARLIE WEBB** was falsely arrested, unlawfully imprisoned and searched and as a result of defendants' conduct maliciously prosecuted without the defendants possessing probable cause, reasonable cause or legal justification to do so.

474. The above actions of defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE resulted in Plaintiff **MARLIE WEBB** being deprived of the following rights under the United States Constitution: a) Freedom from assault to his person; b) Freedom from battery to his person; c) Freedom from illegal search and seizure; d) Freedom from false arrest; e) Freedom from malicious prosecution; f) Freedom from the use of excessive force during the arrest process; and g) The right to Due Process of Law.

475. In addition to the above, defendants CITY and NYPD have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct its police officers, including the officers involved in this case and any and all unnamed officers involved in the unlawful seizure and arrest of plaintiff, regarding the protection of the constitutional rights of citizens.

476. Defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, subjected Plaintiff **MARLIE WEBB** to such deprivation in a malicious, reckless, deliberate, intentional, grossly negligent and with a callous disregard of Plaintiff **MARLIE WEBB'S** rights and with deliberate indifference to those rights under the Fourth, Fifth, Sixth, Fourteenth and all other related Amendments to the United States Constitution.

477. The direct and proximate result of the defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE acts are that Plaintiff **MARLIE WEBB** has suffered severe and permanent injuries, loss of liberty and companionship, forced to endure pain and suffering, emotional distress and severe and significant damage to standing and reputation in the community.

478. That by reason of the foregoing, Plaintiff **MARLIE WEBB** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FORTY-THIRD CAUSE OF ACTION ON BEHALF OF
PLAINTIFF ELLIJAH PINCKNEY**

479. Plaintiff **ELLIJAH PINCKNEY** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 478 with the same force and effect as if fully set forth at length herein.

480. That at all times the Plaintiff **ELLIJAH PINCKNEY** was and is a resident of County of the Bronx, City and State of New York.

481. That on 8/25/23, at approximately 11:15 p.m., Plaintiff **ELLIJAH PINCKNEY** was lawfully in the vicinity of East 137th Street and Alexander Avenue, County of Bronx, State of New York and doing nothing illegal, improper or acting suspicious in anyway.

482. That on 8/25/23, at approximately 11:15 p.m., in the vicinity of East 137th Street and

Alexander Avenue, County of Bronx, State of New York, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, absent an arrest warrant, probable cause, reasonable cause or any legal justification, approached Plaintiff **ELLIJAH PINCKNEY** for no reason and summarily stopped, frisked, searched, grabbed, assaulted, battered, and detained him in an aggressive and excessive manner.

483. Upon information and belief GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE knew or had reason to know that their actions lacked any legal justification in approaching, searching, seizing and arresting Plaintiff **ELLIJAH PINCKNEY**.

484. That Plaintiff **ELLIJAH PINCKNEY** was arraigned after his arrest and thereafter falsely and maliciously prosecuted with committing a crime or crimes.

485. Thereafter, Plaintiff **ELLIJAH PINCKNEY** remained incarcerated for over 24 hours and was required to make numerous court appearances over an extended period of time until all charges against him were terminated favorably.

486. Plaintiff **ELLIJAH PINCKNEY** sustained physical and emotional pain and injuries as a result of this incident.

487. That within ninety (90) days after the causes of actions accrued herein, and more than thirty (30) days prior to the commencement of this action, the Plaintiff **ELLIJAH PINCKNEY** caused the notice of claim, in writing, sworn to by and on behalf of the claimants, the Plaintiff herein, containing the statement of the name and place of residence of the claimants by the street and number and their attorney, and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon the defendant CITY, their agents,

servants and/or employees at the Law Department,

488. This action was so commenced within one (1) year and ninety (90) days after said cause of action accrued herein, and for more than thirty (30) days prior to the commencement of this action, defendant CITY neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although plaintiff herein has requested and demanded that the same be paid and adjusted.

489. That more than thirty (30) days have elapsed since the service and filing of a Notice of Claim with the Comptroller of the City of New York and said entity has failed to schedule a hearing pursuant to Section 50-h of the General Municipal Law. Plaintiff is ready, willing and able to submit to a 50-h examination if same is requested within a reasonable time frame from the filing of Notice of claim.

490. That on or about 8/25/23, at approximately 11:15 p.m., the Plaintiff **ELLIJAH PINCKNEY** was without just cause, probable cause or provocation, and with reckless, negligent and callous disregard for the truth, and without investigation, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with excessive force by CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and/or employees, and in particular, by GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE.

491. That on or about 8/25/23, at approximately 11:15 p.m., the Plaintiff **ELLIJAH PINCKNEY** while lawfully in the vicinity of East 137th Street and Alexander Avenue, County of Bronx, City and State of New York, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE of having

committed a crime or crimes.

492. That on or about 8/25/23, and upon arresting the Plaintiff **ELLIJAH PINCKNEY** and depriving him of his liberty, CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE took the Plaintiff **ELLIJAH PINCKNEY** to a police station in the County of Bronx and entered him on the records as under arrest.

493. That on or about 8/25/23, the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE further caused Plaintiff **ELLIJAH PINCKNEY** to have his fingerprints and photographs to be taken without his consent and in accordance with police procedures for the arrest of criminals and held him on various criminal charges at various police stations, correctional facilities and at the Courthouse located at 215 East 161st Street, County of Bronx, City and State of New York.

494. That on or about 8/25/23 Plaintiff **ELLIJAH PINCKNEY** was aware of his arrest and confinement, he did not consent to his arrest or confinement, and said confinement, seizure, arrest and detention was without legal justification.

495. That at all times hereinafter mentioned the actions of CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

496. That by reason of the foregoing, Plaintiff **ELLIJAH PINCKNEY** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FORTY- FOURTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF ELLIJAH PINCKNEY**

497. Plaintiff **ELLIJAH PINCKNEY** repeats, reiterates and realleges each and every

allegation contained in paragraphs numbered 1 – 496 with the same force and effect as if fully set forth at length herein.

498. That on or about 8/25/23, a criminal complaint was issued by the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

499. That on or about 8/25/23 a criminal action against Plaintiff **ELLIJAH PINCKNEY** was commenced by CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

500. That solely as a result of the aforesaid, the Plaintiff **ELLIJAH PINCKNEY'S** life was interfered with.

501. That the criminal action against Plaintiff **ELLIJAH PINCKNEY** was continued for an extended period of time by defendants with malice and bad faith.

502. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff **ELLIJAH PINCKNEY**, he was deprived of his liberty for an extended period of time and was subjected to scorn, ridicule, embarrassment and was degraded in the esteem of the community both personally and professionally.

503. That the criminal action against Plaintiff **ELLIJAH PINCKNEY** was terminated favorably by dismissal.

504. That the actions of CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

505. That by reason of the foregoing, Plaintiff **ELLIJAH PINCKNEY** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FORTY-FIFTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF ELLIJAH PINCKNEY**

506. Plaintiff **ELLIJAH PINCKNEY** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 505 with the same force and effect as if fully set forth at length herein.

507. That on or about 8/25/23, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff **ELLIJAH PINCKNEY** was intentionally touched, pushed, assaulted, battered, violated, searched, humiliated, photographed and handcuffed by the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

508. That on or about 8/25/23 CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and employees, acting as agents and on behalf of the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, within the scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff **ELLIJAH PINCKNEY** in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff **ELLIJAH PINCKNEY** and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff and/or offensive bodily contact to the Plaintiff **ELLIJAH PINCKNEY** and caused such battery in and about his head, neck, back, body and limbs.

509. That by reason of the aforesaid intentional assault and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff **ELLIJAH PINCKNEY** suffered great and permanent bodily injury in and about his head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that he was otherwise damaged.

510. That as a result of the aforesaid assault and battery the Plaintiff **ELLIJAH PINCKNEY** was caused to sustain serious, severe, painful and permanent bodily injuries so that he was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure himself of his said injuries and he was and will be prevented from attending his usual occupation and duties.

511. That at all times hereinafter mentioned the actions of CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

512. That by reason of the foregoing, Plaintiff **ELLIJAH PINCKNEY** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FORTY-SIXTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF ELLIJAH PINCKNEY**

513. Plaintiff **ELLIJAH PINCKNEY** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 512 with the same force and effect as if fully set forth at length herein.

514. That the CITY, NYPD, their agents, servants and employees were negligent, careless

and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, in that said police officers, as employees of CITY and NYPD, were not qualified to be hired or retained or promoted as police officers, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by CITY and NYPD.

515. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately test, analyze test results, and/or investigate above mentioned police officers backgrounds and performances.

516. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately screen said police officers, failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violate Patrol Guidelines.

517. Defendant CITY and NYPD were also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the police officer defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY and NYPD and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

518. That by reason of the above, the Plaintiff **ELLIJAH PINCKNEY** was injured in

mind and body as he was arrested, prosecuted and rendered sick, sore, and damaged.

519. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

520. That by reason of the foregoing, Plaintiff **ELLIJAH PINCKNEY** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FORTY-SEVENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF ELLIJAH PINCKNEY**

521. Plaintiff **ELLIJAH PINCKNEY** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-520 with the same force and effect as if fully set forth at length herein.

522. In arresting Plaintiff **ELLIJAH PINCKNEY**, police officers including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

523. In arresting Plaintiff **ELLIJAH PINCKNEY**, police officers including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, sought either a detriment to Plaintiff **ELLIJAH PINCKNEY** or a collateral advantage to the CITY and NYPD that is outside the legitimate ends of effectuating an arrest.

524. As a result of the abuse of process by defendants herein, Plaintiff **ELLIJAH PINCKNEY** sustained multiple injuries including but not limited to loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

525. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

526. That by reason of the foregoing, Plaintiff **ELLIJAH PINCKNEY** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FORTY-EIGHTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF ELLIJAH PINCKNEY

527. Plaintiff **ELLIJAH PINCKNEY** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 526 with the same force and effect as if fully set forth at length herein.

528. That on 8/25/23, at approximately 11:15 p.m., within the vicinity of East 137th Street and Alexander Avenue, County of Bronx, City and State of New York, the CITY and NYPD were present through its agents, servants and/or employees including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, who were acting in the course of their employment and under the color of law to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

529. That Plaintiff **ELLIJAH PINCKNEY** was lawfully in the above vicinity at the above time when he was stopped, questioned, searched and seized solely on the basis of his age and/or race and for no legal or legitimate reason.

530. That said illegal stop and seizure was part of the CITY'S custom and practice and/or practice of racial profiling, and/or meeting arrest or summons quotas, and/or the illegal stop and search of civilians which was authorized by, or met with the tacit approval of the CITY and NYPD

under their “Stop, Question and Frisk” policy or program (“Stop and Frisk”).

531. That under the “Stop and Frisk” program the CITY and NYPD permitted, condoned, or acted with deliberate indifference to the racial disparity of its’ application, to the fact that unnecessary or illegal frisks or searches were conducted, that very low percentages of seizures, frisks and searches resulted in arrests or the recovery of contraband, that pretextual reasons are provided for “Stop and Frisk”, that officers do not always fill out Stop and Frisk reports, i.e. UF-250s, and are not disciplined when they fail to do so, that stop and frisks are conducted without reasonable suspicion, and that the program of “Stop and Frisk” has resulted in illegal stops, seizures, frisks, arrests and the use of physical force.

532. That the CITY and NYPD have failed to discipline, train, monitor or retrain offending police officers who engaged in stops and frisks without any legal justification and has failed to discipline police officers who fail to fill out required UF-250s.

533. That the CITY and NYPD have failed to adequately investigate and/or discipline officers who use excessive force, stop and frisk innocent citizens who have not done anything illegal or acted in suspicious manner warranting a seizure, who failed to report misconduct of fellow officers, who destroy evidence, who engage in fraud, misrepresentations, deceit, and maliciously participate in and instigate prosecutions of innocent citizens.

534. It is alleged herein that Plaintiff **ELLIJAH PINCKNEY** was stopped and seized absent reasonable suspicion. That said actions of defendants were pursuant to an illegal and improper Stop and Frisk program that was promulgated by defendants. That such custom, policy and program has created a class of citizens, including Plaintiff **ELLIJAH PINCKNEY**, who have been illegally stopped and seized, searched and questioned based on their race, and in order to meet arrest quotas. Evidence of said policy is as follows:

a. That in a class action lawsuit David Floyd, et. al. v. City of New York, et. al., pending in United States District Court, Southern District of New York, 08 CIV 1034, in a decision dated 5/16/12 certifying a class action lawsuit, it was found that between the years of 2005 and 2009 a reported 2.8 million people in New York City have been stopped and frisked. Of said number more than 87% were minority citizens. Summons and arrests were issued or made in approximately 10% of the reported stops. Meaning that based on their own records, defendants' suspicions are incorrect approximately 9 out of 10 stops.

b. The Honorable Shira A. Scheindlin, found in the Floyd decision that:

- i. It is indisputable that NYPD has an enormous Stop and Frisk program;
- ii. Evidence shows that the Stop and Frisk program is organized and hierarchical;
- iii. Stop and Frisk program has been designed and revised at highest levels of defendants;
- iv. The implementation of the program is conducted according to uniform and centralized rules;
- v. Monitoring of the program is hierarchical;
- vi. The program is the result of institutional decisions and directives.

c. Justice Sheindlin further found that a preponderance of evidence shows that defendants policy of establishing performance standards and demanding increased levels of stop and frisks results in putative class of aggrieved citizens. The Court noted that street level stops have risen every year. That in 2004, defendants documented 313,000 stops, and in 2011 they reported 684,000 stops. In a Police Officer Performance Objectives Operation Order dated 10/17/11, Commissioner Kelly directed that "Department managers can and must set performance goals – relating to "the issuance of summons, the stopping and questioning of suspicious individuals and the arrests of

criminals.” It further states that “uniformed members who do not demonstrate activities . . . or who fail to engage in proactive activities . . . will be evaluated accordingly and their assignments reassessed.”

535. Other instances of an illegal and/or improper stop and frisk program custom or practice and/or excessive use of force and filing of false charges includes but not limited to:

a. On 4/12/11 in the vicinity of Walton Avenue and Mt. Hope Place, Bronx, NY, while doing nothing illegal or improper, Lonnie Thompson was approached by several uniformed police officers for no reason and without reasonable suspicion. After being stopped, Mr. Thompson was patted down and searched. He was arrested and charged with Criminal Possession of a Weapon in the Fourth Degree. This, even though the weapon was a bona fide work tool. Mr. Thompson was subjected to a strip search at the 46th Precinct. All charges were dismissed.

b. On 5/4/11 in the vicinity of 2345 Jerome Avenue, Bronx, NY, Alexis Niewkerk, who is handicapped, was sitting in his legally parked vehicle and waiting for his friends to finish shopping at a nearby store. All of a sudden several undercover police officers from Bronx Narcotics approached his vehicle for no reason and without reasonable suspicion ordered him out of said vehicle. Mr. Niewkerk was subjected to a pat down and search. He was subsequently arrested for possession of a controlled substance in the seventh degree even though the “substance” recovered from his pants pocket was his own prescribed pain medication. Mr. Niewkerk was subjected to a strip search and forced to move his body in ways that are extremely painful given his medical status and condition. All charges were dismissed.

c. On 6/2/11 in the vicinity of 985 Simpson Street, Bronx, NY, Jesus Rosario, an infant, was approached by several police officers from the 41st Precinct. He was told to “get on the wall” and thereafter patted down and searched. Mr. Rosario was accused of Trespassing in the Second

Degree. Mr. Rosario was doing nothing illegal or improper at the time the officers approached as he was simply exiting 985 Simpson Street after visiting his father who resides in said building. After being arrested, Mr. Rosario was subjected to a strip search at the 41st Precinct. The case was declined to be prosecuted by the District Attorney's Office.

d. On 8/1/12 in the vicinity of 1000 Simpson Street, Bronx, NY Nicholas Hernandez and Dilson Pena were sitting outside of their building on a public bench and doing nothing illegal or improper. All of a sudden, several police officers from the 41st Precinct approached them for no reason and told them to submit to a frisk. Mr. Hernandez and Mr. Pena were accused of possession of marihuana even though no marihuana was recovered. They were each subjected to a strip search at the 41st Precinct. All charges against them were declined to be prosecuted by the District Attorney's Office.

e. On 1/22/11 in the vicinity of 808 Park Avenue, Brooklyn, NY, Captain Michelle Culp, a now retired Captain for New York City Department of Corrections, was visiting her sick and elderly mother at the aforementioned address and decided to walk her mother's dog. In so doing, Captain Culp was approached by several uniform housing police officers and accused of Trespassing in the Second Degree. She was patted down and searched. This, despite the fact that Captain Culp explained that she was visiting her mother and her identification and personal belongings were in her mother's apartment in the same building. All charges were dismissed.

f. On 5/20/11 in the vicinity of Park Avenue and East 138th Street, Bronx, NY, Patrick Nielson was exiting the number 4 subway train and going to his car which was parked nearby when he was followed, stopped, frisked, and assaulted by several undercover police officers from Bronx Narcotics for no reason. Thereafter, he was arrested and accused of possession of a controlled substance. Mr. Nielson was subjected to a strip search. The "controlled" substance was Mr.

Nielson's prescribed medicine. All charges were dismissed.

g. On 6/22/10 in the vicinity of 139th Street and Lenox Avenue, New York, NY, Wilford Person was approached by several undercover police officers from Manhattan North Narcotics for no legitimate reason. Mr. Person was thereafter told to get against a fence and patted down and searched. He was accused of possession of marihuana. Mr. Person was simply playing basketball at the time the police approached him. After being arrested and subjected to a strip search Mr. Person was prosecuted. All charges were eventually dismissed.

h. On 5/2/12 in the vicinity of 1912 Third Avenue, New York, NY, Jose Baez, the manager of a local eyeglass store, left the store to buy his lunch. After leaving the store Mr. Baez, for no reason at all, was approached by several undercover police officers from Manhattan North Narcotics, and was detained, patted down, searched, and falsely accused of selling marihuana. Mr. Baez was subjected to a strip search. All charges against him were dismissed.

i. On 11/13/10 in the vicinity of 1113 Boston Road, Bronx, NY, Alpha Mahoi, was doing nothing illegal or improper when, for no reason, he was approached by several undercover police officers from Bronx Narcotics and accused of being involved in the sale of cocaine. He was cuffed, patted down, searched, arrested and strip searched at the precinct. All charges were dismissed.

j. On 3/10/12 in the vicinity of 1821 Davison Avenue, Bronx, NY, Keyewanie Blackledge, Dwayne Smith and Richard Campbell were leaving his friend's apartment when they were approached by several uniform police officers from the 46th Precinct for no reason and told to "get on the wall" and "get on the floor" and thereafter patted down and searched. They was charged with Trespassing in the Second Degree. All charges were dismissed.

k. On 8/1/12 in the vicinity of 1000 Simpson Street, Bronx, NY, Dylan Pena was outside recording on his cell phone several police officers from the 41st Precinct arresting a person from the

neighborhood. Upon seeing Mr. Pena recording the incident several police officers grabbed him and pushed him to the ground and seized his cell phone without any reason to do so. All data on the phone was subsequently erased by the officers. Mr. Pena was also patted down and searched. He was charged with resisting arrest and was strip searched at the 41st Precinct. The charges were declined to be prosecuted by the District Attorney's Office.

l. On 5/17/11 in the vicinity of 1690 Clay Avenue, Bronx, NY, Gregory Williams was leaving a family friend's apartment after helping her move furniture so she could clean. Upon exiting the building Mr. Williams, for no reason at all, was approached by several uniformed police officers from the 44th Precinct and patted down and searched. He was accused of Trespassing in the Second Degree despite his family friend informing the police officers at the scene and at the 44th Precinct that he had permission to be in the building. Mr. Williams was strip searched. All charges against him were dismissed.

m. On 3/16/11 in the vicinity of 1740 Grand Avenue, Bronx, NY, Lindon Grant just left his apartment to walk approximately 1 block to buy breakfast before going to work. After he bought his breakfast and left the store he was approached by several undercover police officers from the 46th Precinct for no reason and patted down and searched. He was then accused of selling marihuana. Mr. Grant was arrested, strip searched and prosecuted for several months. All charges were dismissed.

n. On 8/2/09 in the vicinity of Southern Boulevard and East 175th Street, Bronx, NY Jose Suazo was approached by several uniformed officers from the 42nd Precinct for no reason. Mr. Suazo was patted down and searched. Despite the fact that he had nothing illegal on his person he was charged with possession of marihuana. While already in custody in a police van shots were fired in a nearby park. When Mr. Suazo got to the precinct he found out that even though he was

already in custody in the police van when the shots were fired, he was charged with possession of a weapon in the second degree. Mr. Suazo was subjected to a strip search. All charges were eventually dismissed.

o. On 8/12/19 in the vicinity of 894 Rogers Place, Bronx, NY, Edmanuel Benitez was standing outside of the building and waiting for a friend to come outside to play basketball. All of a sudden he was approached for no reason by officers from the 41st Precinct and thereafter patted down, searched, arrested, strip searched and prosecuted for the sale of marihuana. All charges were dismissed.

p. On 2/19/12 Daniel Rodriguez was leaving a store in the vicinity of Jerome Avenue and West 192nd Street when he was summarily grabbed, pushed against a wall, patted down, frisked, searched and then handcuffed by several officers from Bronx Narcotics. Mr. Rodriguez was doing nothing illegal or improper at the time. He was subsequently strip searched and charged with possession of a controlled substance in the seventh degree. All charges were dismissed.

q. On 9/28/11 Shakeem Enang was in the vicinity of West 179th Street and University Avenue when he was approached by several plain clothes officers from Bronx Narcotics Division. Mr. Enang was doing nothing illegal at the time the officers approached or any time prior to the officers approaching. He was grabbed, seized, frisked, searched and then arrested. Mr. Enang was charged with criminal sale of a controlled substance. He was strip searched at the 46th Precinct. All charges were dismissed.

536. As is evidence from the above, Plaintiff **ELLIJAH PINCKNEY'S** injuries including the violation of his constitutional rights, the deprivation of his freedom, falsely and maliciously being prosecuted, physical and emotional injuries, are the direct and proximate result of the CITY'S and NYPD'S policies and/or deliberate indifference to practices which involve the excessive use of

force, false arrest, police cover-ups, witness intimidation, malicious prosecution, illegal stop, questions and frisks, searches, Fourth Amendment violations, and deliberate indifference to the need to train, supervise, monitor, investigate and discipline, including suspension, dismissal and/or reassignment offending police officers. The practice is widespread and pervasive throughout the entire City of New York.

537. The CITY and NYPD knew or should have known of the customs and police practices of its officers which included but was not limited to: the failing to preserve and/or destruction of exculpatory evidence, threatening to arrest witnesses to police misconduct and engaging in cover-ups, fraud, perjury, deceit and malfeasance.

538. That the acts of employees of the CITY and NYPD, i.e. police officers, who violate the civil and constitutional rights of the citizens of the City of New York routinely go unreported, undisciplined and their acts condoned by other officers, including their supervisors. Upon information and belief, the supervisors of defendant police officers herein were aware of the conduct of defendant police officers and failed to stop, report or intervene in the misconduct.

539. The CITY and NYPD'S tolerance for brutality, excessive force, illegal and/or retaliatory arrests, and their emphasis to come down hard on quality of life infractions leads to a systemic practice and policy wherein police officers seem fairly tolerant of police brutality, silence in the face of brutality and/or illegal stops, frisks, searches, seizures and/or arrests, and engage in the practice of meeting arrest quotas. A systemic practice where officers who report said misconduct are not viewed as "good cops" but rather as outcasts and are ostracized and often transferred to other assignments thereby perpetuating the illegal conduct of the NYPD and thusly the CITY.

540. Some instances where officers were treated as outcasts for reporting misconduct and/or arrest/summons quota system are as follows:

a. The existence of arrest quotas, summons quotas and approval of illegal stops and arrests have been exposed by Police officer Adrian Schoolcraft in a separate lawsuit which was cited by Justice Sheindlin in Floyd.

b. Justice Sheindlin referenced the deposition of Police Officer Adhily Polanco of the 41st Precinct stating that commanding officers set specific quotas for arrests and summons and for stop and frisks and threatened to reduce overtime for officers who failed to perform well and re-assign those who fail to meet quotas to less desirable posts.

c. According to secretly tape recorded conversations made by Schoolcraft, a Lieutenant, a Deputy Inspector and Chief of transportation can be heard encouraging and demanding increased stops, summons and detentions and arrests.

d. Police Officer Craig Lance of the 42nd Precinct filed a lawsuit against the NYPD claiming the existence of a quota system and a systematic retaliation and harassment to those who did not comply.

e. Retired Detective James Griffin filed a lawsuit claiming that in the NYPD there exists a culture wherein officers who report corruption will face harassment and a hostile work environment and that this conduct was tolerated by supervisors within the NYPD.

f. Police Officer Minoia, an officer with an Ivy League degree, assigned to the 42nd Precinct, was reassigned to a "punishment post" due to the fact that he failed to write a sufficient amount of summons and stated "I'm not going to pull out my summons book and write a summons because my boss is telling me he's going to make it difficult for me if I don't."

541. In sum, the CITY and NYPD are responsible for creating a custom, policy or practice wherein many officers do not seem to believe that anything is really wrong with stopping and searching innocent citizens or using unnecessary or excessive force or falsely arresting citizens to

meet an arrest quota.

542. That the above customs, policies and/or practices and the deliberate indifference thereto, was a direct and proximate cause of the illegal seizure of Plaintiff **ELLIJAH PINCKNEY**, the excessive use of force on Plaintiff, and the false arrest and malicious prosecution of Plaintiff. The CITY and NYPD'S policies, customs and/or practices deprived the Plaintiff of his rights and liberties as set forth in the Constitutions of the United States and the State of New York and under 42 U.S.C §§ 1983, 1986 and 1988.

543. That said actions violated the Fourth and Fourteenth Amendments to the Constitution of the United States, violated Plaintiff's right to be secure in person, and that the defendants used excessive, unnecessary and unlawful force, which constituted cruel and inhumane treatment and denied him due process of law.

544. Moreover, the CITY and NYPD caused or created a policy and/or custom, and acted with deliberate indifference to patterns and/or police practices which included illegal seizures, excessive or arbitrary use of force, illegal use of police equipment, destruction of evidence, intimidation of witnesses, illegal arrests, failing to gather evidence when allegations of police misconduct are involved, condoning a code of silence within the NYPD regarding misconduct, failing to take police reports of illegal conduct, failing to properly supervise, train, investigate or discipline officers, and any and/or all of the above have contributed to Plaintiff's false arrest, malicious and false prosecution, and injuries.

545. That the Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, assaulted, battered and deprived of his constitutional rights as set forth in the Constitution of the United States and 42 U.S.C § 1983.

546. That by reason of the foregoing, Plaintiff **ELLIJAH PINCKNEY** has been damaged

in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FORTY-NINTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF ELLIJAH PINCKNEY

547. Plaintiff **ELLIJAH PINCKNEY** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 546 with the same force and effect as if fully set forth at length herein.

548. At all times mentioned herein and above, defendants CITY and NYPD employed GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as police officers and named defendants were acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

549. Plaintiff **ELLIJAH PINCKNEY** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

550. That on or about 8/25/23, defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, without probable cause, reasonable cause or legal justification and while effectuating the seizure of plaintiff **ELLIJAH PINCKNEY**, did search, seize, assault and commit a battery and grab the Plaintiff **ELLIJAH PINCKNEY** without a court authorized arrest warrant or search warrant and defendants did physically seize Plaintiff **ELLIJAH PINCKNEY** during the arrest process in an unlawful and excessive manner. Plaintiff **ELLIJAH PINCKNEY** was falsely arrested, unlawfully imprisoned and searched and as a result of defendants' conduct maliciously prosecuted without the defendants possessing probable cause, reasonable cause or legal justification to do so.

551. The above actions of defendants CITY, NYPD, GOMES, DURST, MENA,

GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE resulted in Plaintiff **ELLIJAH PINCKNEY** being deprived of the following rights under the United States Constitution: a) Freedom from assault to his person; b) Freedom from battery to his person; c) Freedom from illegal search and seizure; d) Freedom from false arrest; e) Freedom from malicious prosecution; f) Freedom from the use of excessive force during the arrest process; and g) The right to Due Process of Law.

552. In addition to the above, defendants CITY and NYPD have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct its police officers, including the officers involved in this case and any and all unnamed officers involved in the unlawful seizure and arrest of plaintiff, regarding the protection of the constitutional rights of citizens.

553. Defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, subjected Plaintiff **ELLIJAH PINCKNEY** to such deprivation in a malicious, reckless, deliberate, intentional, grossly negligent and with a callous disregard of Plaintiff **ELLIJAH PINCKNEY'S** rights and with deliberate indifference to those rights under the Fourth, Fifth, Sixth, Fourteenth and all other related Amendments to the United States Constitution.

554. The direct and proximate result of the defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE acts are that Plaintiff **ELLIJAH PINCKNEY** has suffered severe and permanent injuries, loss of liberty and companionship, forced to endure pain and suffering, emotional distress and severe and significant damage to standing and reputation in the community.

555. That by reason of the foregoing, Plaintiff **ELLIJAH PINCKNEY** has been damaged

in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FIFTIETH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF DEBRYANNA LYMUS

556. Plaintiff **DEBRYANNA LYMUS** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 555 with the same force and effect as if fully set forth at length herein.

557. That at all times the Plaintiff **DEBRYANNA LYMUS** was and is a resident of County of the Bronx, City and State of New York.

558. That on 8/25/23, at approximately 11:15 p.m., Plaintiff **DEBRYANNA LYMUS** was lawfully in the vicinity of East 137th Street and Alexander Avenue, County of Bronx, State of New York and doing nothing illegal, improper or acting suspicious in anyway.

559. That on 8/25/23, at approximately 11:15 p.m., in the vicinity of East 137th Street and Alexander Avenue, County of Bronx, State of New York, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, absent an arrest warrant, probable cause, reasonable cause or any legal justification, approached Plaintiff **DEBRYANNA LYMUS** for no reason and summarily stopped, frisked, searched, grabbed, assaulted, battered, and detained her in an aggressive and excessive manner.

560. Upon information and belief GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE knew or had reason to know that their actions lacked any legal justification in approaching, searching, seizing and arresting Plaintiff **DEBRYANNA LYMUS**.

561. That Plaintiff **DEBRYANNA LYMUS** was arraigned after her arrest and thereafter falsely and maliciously prosecuted with committing a crime or crimes.

562. Thereafter, Plaintiff **DEBRYANNA LYMUS** remained incarcerated for over 24

hours and was required to make numerous court appearances over an extended period of time until all charges against her were terminated favorably.

563. Plaintiff **DEBRYANNA LYMUS** sustained physical and emotional pain and injuries as a result of this incident.

564. That within ninety (90) days after the causes of actions accrued herein, and more than thirty (30) days prior to the commencement of this action, the Plaintiff **DEBRYANNA LYMUS** caused the notice of claim, in writing, sworn to by and on behalf of the claimants, the Plaintiff herein, containing the statement of the name and place of residence of the claimants by the street and number and their attorney, and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon the defendant CITY, their agents, servants and/or employees at the Law Department,

565. This action was so commenced within one (1) year and ninety (90) days after said cause of action accrued herein, and for more than thirty (30) days prior to the commencement of this action, defendant CITY neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although plaintiff herein has requested and demanded that the same be paid and adjusted.

566. That more than thirty (30) days have elapsed since the service and filing of a Notice of Claim with the Comptroller of the City of New York and said entity has failed to schedule a hearing pursuant to Section 50-h of the General Municipal Law. Plaintiff is ready, willing and able to submit to a 50-h examination if same is requested within a reasonable time frame from the filing of Notice of claim.

567. That on or about 8/25/23, at approximately 11:15 p.m., the Plaintiff **DEBRYANNA**

LYMUS was without just cause, probable cause or provocation, and with reckless, negligent and callous disregard for the truth, and without investigation, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with excessive force by CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and/or employees, and in particular, by GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE.

568. That on or about 8/25/23, at approximately 11:15 p.m., the Plaintiff **DEBRYANNA LYMUS** while lawfully in the vicinity of East 137th Street and Alexander Avenue, County of Bronx, City and State of New York, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE of having committed a crime or crimes.

569. That on or about 8/25/23, and upon arresting the Plaintiff **DEBRYANNA LYMUS** and depriving her of her liberty, CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE took the Plaintiff **DEBRYANNA LYMUS** to a police station in the County of Bronx and entered her on the records as under arrest.

570. That on or about 8/25/23, the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE further caused Plaintiff **DEBRYANNA LYMUS** to have her fingerprints and photographs to be taken without her consent and in accordance with police procedures for the arrest of criminals and held her on various criminal charges at various police stations, correctional facilities and at the Courthouse located at 215 East 161st Street, County of Bronx, City and State of New York.

571. That on or about 8/25/23 Plaintiff **DEBRYANNA LYMUS** was aware of her arrest

and confinement, she did not consent to her arrest or confinement, and said confinement, seizure, arrest and detention was without legal justification.

573. That at all times hereinafter mentioned the actions of CITY, NYPD, ROSA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

574. That by reason of the foregoing, Plaintiff **DEBRYANNA LYMUS** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FIFTY-FIRST CAUSE OF ACTION ON BEHALF OF
PLAINTIFF DEBRYANNA LYMUS

575. Plaintiff **DEBRYANNA LYMUS** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 574 with the same force and effect as if fully set forth at length herein.

576. That on or about 8/25/23, a criminal complaint was issued by the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

577. That on or about 8/25/23 a criminal action against Plaintiff **DEBRYANNA LYMUS** was commenced by CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

578. That solely as a result of the aforesaid, the Plaintiff **DEBRYANNA LYMUS**' life was interfered with.

579. That the criminal action against Plaintiff **DEBRYANNA LYMUS** was continued for an extended period of time by defendants with malice and bad faith.

580. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff **DEBRYANNA LYMUS**, she was deprived of her liberty for an extended period of time and was subjected to scorn, ridicule, embarrassment and was degraded in the esteem of the community both personally and professionally.

581. That the criminal action against Plaintiff **DEBRYANNA LYMUS** was terminated favorably by dismissal.

582. That the actions of CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

583. That by reason of the foregoing, Plaintiff **DEBRYANNA LYMUS** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FIFTY-SECOND CAUSE OF ACTION ON BEHALF OF
PLAINTIFF DEBRYANNA LYMUS**

584. Plaintiff **DEBRYANNA LYMUS** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 583 with the same force and effect as if fully set forth at length herein.

585. That on or about 8/25/23, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff **DEBRYANNA LYMUS** was intentionally touched, pushed, assaulted, battered, violated, searched, humiliated, photographed and handcuffed by the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

586. That on or about 8/25/23 CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and

employees, acting as agents and on behalf of the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, within the scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff **DEBRYANNA LYMUS** in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff **DEBRYANNA LYMUS** and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff and/or offensive bodily contact to the Plaintiff **DEBRYANNA LYMUS** and caused such battery in and about her head, neck, back, body and limbs.

587. That by reason of the aforesaid intentional assault and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff **DEBRYANNA LYMUS** suffered great and permanent bodily injury in and about her head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that she was otherwise damaged.

588. That as a result of the aforesaid assault and battery the Plaintiff **DEBRYANNA LYMUS** was caused to sustain serious, severe, painful and permanent bodily injuries so that she was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure herself of her said injuries and she was and will be prevented from attending her usual occupation and duties.

589. That at all times hereinafter mentioned the actions of CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and

ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

590. That by reason of the foregoing, Plaintiff **DEBRYANNA LYMUS** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FIFTY-THIRD CAUSE OF ACTION ON BEHALF OF
PLAINTIFF DEBRYANNA LYMUS

591. Plaintiff **DEBRYANNA LYMUS** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 590 with the same force and effect as if fully set forth at length herein.

592. That the CITY, NYPD, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, in that said police officers, as employees of CITY and NYPD, were not qualified to be hired or retained or promoted as police officers, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by CITY and NYPD.

593. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately test, analyze test results, and/or investigate above mentioned police officers backgrounds and performances.

594. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately screen said police officers, failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violate Patrol Guidelines.

595. Defendant CITY and NYPD were also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the police officer defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY and NYPD and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

596. That by reason of the above, the Plaintiff **DEBRYANNA LYMUS** was injured in mind and body as she was arrested, prosecuted and rendered sick, sore, and damaged.

597. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

598. That by reason of the foregoing, Plaintiff **DEBRYANNA LYMUS** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FIFTY-FOURTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF DEBRYANNA LYMUS

599. Plaintiff **DEBRYANNA LYMUS** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-598 with the same force and effect as if fully set forth at length herein.

600. In arresting Plaintiff **DEBRYANNA LYMUS**, police officers including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, were motivated by an ulterior purpose to do harm, without justification or

economic or social excuse.

601. In arresting Plaintiff **DEBRYANNA LYMUS**, police officers including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, sought either a detriment to Plaintiff **DEBRYANNA LYMUS** or a collateral advantage to the CITY and NYPD that is outside the legitimate ends of effectuating an arrest.

602. As a result of the abuse of process by defendants herein, Plaintiff **DEBRYANNA LYMUS** sustained multiple injuries including but not limited to loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for her safety.

603. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

604. That by reason of the foregoing, Plaintiff **DEBRYANNA LYMUS** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FIFTY-FIFTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF DEBRYANNA LYMUS**

605. Plaintiff **DEBRYANNA LYMUS** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 604 with the same force and effect as if fully set forth at length herein.

606. That on 8/25/23, at approximately 11:15 p.m., within the vicinity of East 137th Street and Alexander Avenue, County of Bronx, City and State of New York, the CITY and NYPD were present through its agents, servants and/or employees including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, who were acting in the course of their employment and under the color of law to wit: the statutes,

ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

607. That Plaintiff **DEBRYANNA LYMUS** was lawfully in the above vicinity at the above time when she was stopped, questioned, searched and seized solely on the basis of her age and/or race and for no legal or legitimate reason.

608. That said illegal stop and seizure was part of the CITY'S custom and practice and/or practice of racial profiling, and/or meeting arrest or summons quotas, and/or the illegal stop and search of civilians which was authorized by, or met with the tacit approval of the CITY and NYPD under their "Stop, Question and Frisk" policy or program ("Stop and Frisk").

609. That under the "Stop and Frisk" program the CITY and NYPD permitted, condoned, or acted with deliberate indifference to the racial disparity of its' application, to the fact that unnecessary or illegal frisks or searches were conducted, that very low percentages of seizures, frisks and searches resulted in arrests or the recovery of contraband, that pretextual reasons are provided for "Stop and Frisk", that officers do not always fill out Stop and Frisk reports, i.e. UF-250s, and are not disciplined when they fail to do so, that stop and frisks are conducted without reasonable suspicion, and that the program of "Stop and Frisk" has resulted in illegal stops, seizures, frisks, arrests and the use of physical force.

610. That the CITY and NYPD have failed to discipline, train, monitor or retrain offending police officers who engaged in stops and frisks without any legal justification and has failed to discipline police officers who fail to fill out required UF-250s.

611. That the CITY and NYPD have failed to adequately investigate and/or discipline officers who use excessive force, stop and frisk innocent citizens who have not done anything illegal or acted in suspicious manner warranting a seizure, who failed to report misconduct of fellow

officers, who destroy evidence, who engage in fraud, misrepresentations, deceit, and maliciously participate in and instigate prosecutions of innocent citizens.

612. It is alleged herein that Plaintiff **DEBRYANNA LYMUS** was stopped and seized absent reasonable suspicion. That said actions of defendants were pursuant to an illegal and improper Stop and Frisk program that was promulgated by defendants. That such custom, policy and program has created a class of citizens, including Plaintiff **DEBRYANNA LYMUS**, who have been illegally stopped and seized, searched and questioned based on their race, and in order to meet arrest quotas. Evidence of said policy is as follows:

a. That in a class action lawsuit David Floyd, et. al. v. City of New York, et. al., pending in United States District Court, Southern District of New York, 08 CIV 1034, in a decision dated 5/16/12 certifying a class action lawsuit, it was found that between the years of 2005 and 2009 a reported 2.8 million people in New York City have been stopped and frisked. Of said number more than 87% were minority citizens. Summons and arrests were issued or made in approximately 10% of the reported stops. Meaning that based on their own records, defendants' suspicions are incorrect approximately 9 out of 10 stops.

b. The Honorable Shira A. Scheindlin, found in the Floyd decision that:

- i. It is indisputable that NYPD has an enormous Stop and Frisk program;
- ii. Evidence shows that the Stop and Frisk program is organized and hierarchical;
- iii. Stop and Frisk program has been designed and revised at highest levels of defendants;
- iv. The implementation of the program is conducted according to uniform and centralized rules;
- v. Monitoring of the program is hierarchical;

vi. The program is the result of institutional decisions and directives.

c. Justice Sheindlin further found that a preponderance of evidence shows that defendants policy of establishing performance standards and demanding increased levels of stop and frisks results in putative class of aggrieved citizens. The Court noted that street level stops have risen every year. That in 2004, defendants documented 313,000 stops, and in 2011 they reported 684,000 stops. In a Police Officer Performance Objectives Operation Order dated 10/17/11, Commissioner Kelly directed that “Department managers can and must set performance goals – relating to “the issuance of summons, the stopping and questioning of suspicious individuals and the arrests of criminals.” It further states that “uniformed members who do not demonstrate activities . . . or who fail to engage in proactive activities . . . will be evaluated accordingly and their assignments reassessed.”

613. Other instances of an illegal and/or improper stop and frisk program custom or practice and/or excessive use of force and filing of false charges includes but not limited to:

a. On 4/12/11 in the vicinity of Walton Avenue and Mt. Hope Place, Bronx, NY, while doing nothing illegal or improper, Lonnie Thompson was approached by several uniformed police officers for no reason and without reasonable suspicion. After being stopped, Mr. Thompson was patted down and searched. He was arrested and charged with Criminal Possession of a Weapon in the Fourth Degree. This, even though the weapon was a bona fide work tool. Mr. Thompson was subjected to a strip search at the 46th Precinct. All charges were dismissed.

b. On 5/4/11 in the vicinity of 2345 Jerome Avenue, Bronx, NY, Alexis Niewkerk, who is handicapped, was sitting in his legally parked vehicle and waiting for his friends to finish shopping at a nearby store. All of a sudden several undercover police officers from Bronx Narcotics approached his vehicle for no reason and without reasonable suspicion ordered him out of said

vehicle. Mr. Niewkerk was subjected to a pat down and search. He was subsequently arrested for possession of a controlled substance in the seventh degree even though the “substance” recovered from his pants pocket was his own prescribed pain medication. Mr. Niewkerk was subjected to a strip search and forced to move his body in ways that are extremely painful given his medical status and condition. All charges were dismissed.

c. On 6/2/11 in the vicinity of 985 Simpson Street, Bronx, NY, Jesus Rosario, an infant, was approached by several police officers from the 41st Precinct. He was told to “get on the wall” and thereafter patted down and searched. Mr. Rosario was accused of Trespassing in the Second Degree. Mr. Rosario was doing nothing illegal or improper at the time the officers approached as he was simply exiting 985 Simpson Street after visiting his father who resides in said building. After being arrested, Mr. Rosario was subjected to a strip search at the 41st Precinct. The case was declined to be prosecuted by the District Attorney’s Office.

d. On 8/1/12 in the vicinity of 1000 Simpson Street, Bronx, NY Nicholas Hernandez and Dilson Pena were sitting outside of their building on a public bench and doing nothing illegal or improper. All of a sudden, several police officers from the 41st Precinct approached them for no reason and told them to submit to a frisk. Mr. Hernandez and Mr. Pena were accused of possession of marihuana even though no marihuana was recovered. They were each subjected to a strip search at the 41st Precinct. All charges against them were declined to be prosecuted by the District Attorney’s Office.

e. On 1/22/11 in the vicinity of 808 Park Avenue, Brooklyn, NY, Captain Michelle Culp, a now retired Captain for New York City Department of Corrections, was visiting her sick and elderly mother at the aforementioned address and decided to walk her mother’s dog. In so doing, Captain Culp was approached by several uniform housing police officers and accused of Trespassing

in the Second Degree. She was patted down and searched. This, despite the fact that Captain Culp explained that she was visiting her mother and her identification and personal belongings were in her mother's apartment in the same building. All charges were dismissed.

f. On 5/20/11 in the vicinity of Park Avenue and East 138th Street, Bronx, NY, Patrick Nielson was exiting the number 4 subway train and going to his car which was parked nearby when he was followed, stopped, frisked, and assaulted by several undercover police officers from Bronx Narcotics for no reason. Thereafter, he was arrested and accused of possession of a controlled substance. Mr. Nielson was subjected to a strip search. The "controlled" substance was Mr. Nielson's prescribed medicine. All charges were dismissed.

g. On 6/22/10 in the vicinity of 139th Street and Lenox Avenue, New York, NY, Wilford Person was approached by several undercover police officers from Manhattan North Narcotics for no legitimate reason. Mr. Person was thereafter told to get against a fence and patted down and searched. He was accused of possession of marihuana. Mr. Person was simply playing basketball at the time the police approached him. After being arrested and subjected to a strip search Mr. Person was prosecuted. All charges were eventually dismissed.

h. On 5/2/12 in the vicinity of 1912 Third Avenue, New York, NY, Jose Baez, the manager of a local eyeglass store, left the store to buy his lunch. After leaving the store Mr. Baez, for no reason at all, was approached by several undercover police officers from Manhattan North Narcotics, and was detained, patted down, searched, and falsely accused of selling marihuana. Mr. Baez was subjected to a strip search. All charges against him were dismissed.

i. On 11/13/10 in the vicinity of 1113 Boston Road, Bronx, NY, Alpha Mahoi, was doing nothing illegal or improper when, for no reason, he was approached by several undercover police officers from Bronx Narcotics and accused of being involved in the sale of cocaine. He was cuffed,

patted down, searched, arrested and strip searched at the precinct. All charges were dismissed.

j. On 3/10/12 in the vicinity of 1821 Davison Avenue, Bronx, NY, Keyewanie Blackledge, Dwayne Smith and Richard Campbell were leaving his friend's apartment when they were approached by several uniform police officers from the 46th Precinct for no reason and told to "get on the wall" and "get on the floor" and thereafter patted down and searched. They was charged with Trespassing in the Second Degree. All charges were dismissed.

k. On 8/1/12 in the vicinity of 1000 Simpson Street, Bronx, NY, Dylan Pena was outside recording on his cell phone several police officers from the 41st Precinct arresting a person from the neighborhood. Upon seeing Mr. Pena recording the incident several police officers grabbed him and pushed him to the ground and seized his cell phone without any reason to do so. All data on the phone was subsequently erased by the officers. Mr. Pena was also patted down and searched. He was charged with resisting arrest and was strip searched at the 41st Precinct. The charges were declined to be prosecuted by the District Attorney's Office.

l. On 5/17/11 in the vicinity of 1690 Clay Avenue, Bronx, NY, Gregory Williams was leaving a family friend's apartment after helping her move furniture so she could clean. Upon exiting the building Mr. Williams, for no reason at all, was approached by several uniformed police officers from the 44th Precinct and patted down and searched. He was accused of Trespassing in the Second Degree despite his family friend informing the police officers at the scene and at the 44th Precinct that he had permission to be in the building. Mr. Williams was strip searched. All charges against him were dismissed.

m. On 3/16/11 in the vicinity of 1740 Grand Avenue, Bronx, NY, Lindon Grant just left his apartment to walk approximately 1 block to buy breakfast before going to work. After he bought his breakfast and left the store he was approached by several undercover police officers from the 46th

Precinct for no reason and patted down and searched. He was then accused of selling marihuana. Mr. Grant was arrested, strip searched and prosecuted for several months. All charges were dismissed.

n. On 8/2/09 in the vicinity of Southern Boulevard and East 175th Street, Bronx, NY Jose Suazo was approached by several uniformed officers from the 42nd Precinct for no reason. Mr. Suazo was patted down and searched. Despite the fact that he had nothing illegal on his person he was charged with possession of marihuana. While already in custody in a police van shots were fired in a nearby park. When Mr. Suazo got to the precinct he found out that even though he was already in custody in the police van when the shots were fired, he was charged with possession of a weapon in the second degree. Mr. Suazo was subjected to a strip search. All charges were eventually dismissed.

o. On 8/12/19 in the vicinity of 894 Rogers Place, Bronx, NY, Edmanuel Benitez was standing outside of the building and waiting for a friend to come outside to play basketball. All of a sudden he was approached for no reason by officers from the 41st Precinct and thereafter patted down, searched, arrested, strip searched and prosecuted for the sale of marihuana. All charges were dismissed.

p. On 2/19/12 Daniel Rodriguez was leaving a store in the vicinity of Jerome Avenue and West 192nd Street when he was summarily grabbed, pushed against a wall, patted down, frisked, searched and then handcuffed by several officers from Bronx Narcotics. Mr. Rodriguez was doing nothing illegal or improper at the time. He was subsequently strip searched and charged with possession of a controlled substance in the seventh degree. All charges were dismissed.

q. On 9/28/11 Shakeem Enang was in the vicinity of West 179th Street and University Avenue when he was approached by several plain clothes officers from Bronx Narcotics Division.

Mr. Enang was doing nothing illegal at the time the officers approached or any time prior to the officers approaching. He was grabbed, seized, frisked, searched and then arrested. Mr. Enang was charged with criminal sale of a controlled substance. He was strip searched at the 46th Precinct. All charges were dismissed.

614. As is evidence from the above, Plaintiff **DEBRYANNA LYMUS**' injuries including the violation of her constitutional rights, the deprivation of her freedom, falsely and maliciously being prosecuted, physical and emotional injuries, are the direct and proximate result of the CITY'S and NYPD'S policies and/or deliberate indifference to practices which involve the excessive use of force, false arrest, police cover-ups, witness intimidation, malicious prosecution, illegal stop, questions and frisks, searches, Fourth Amendment violations, and deliberate indifference to the need to train, supervise, monitor, investigate and discipline, including suspension, dismissal and/or reassignment offending police officers. The practice is widespread and pervasive throughout the entire City of New York.

615. The CITY and NYPD knew or should have known of the customs and police practices of its officers which included but was not limited to: the failing to preserve and/or destruction of exculpatory evidence, threatening to arrest witnesses to police misconduct and engaging in cover-ups, fraud, perjury, deceit and malfeasance.

616. That the acts of employees of the CITY and NYPD, i.e. police officers, who violate the civil and constitutional rights of the citizens of the City of New York routinely go unreported, undisciplined and their acts condoned by other officers, including their supervisors. Upon information and belief, the supervisors of defendant police officers herein were aware of the conduct of defendant police officers and failed to stop, report or intervene in the misconduct.

617. The CITY and NYPD'S tolerance for brutality, excessive force, illegal and/or

retaliatory arrests, and their emphasis to come down hard on quality of life infractions leads to a systemic practice and policy wherein police officers seem fairly tolerant of police brutality, silence in the face of brutality and/or illegal stops, frisks, searches, seizures and/or arrests, and engage in the practice of meeting arrest quotas. A systemic practice where officers who report said misconduct are not viewed as “good cops” but rather as outcasts and are ostracized and often transferred to other assignments thereby perpetuating the illegal conduct of the NYPD and thusly the CITY.

618. Some instances where officers were treated as outcasts for reporting misconduct and/or arrest/summons quota system are as follows:

a. The existence of arrest quotas, summons quotas and approval of illegal stops and arrests have been exposed by Police officer Adrian Schoolcraft in a separate lawsuit which was cited by Justice Sheindlin in Floyd.

b. Justice Sheindlin referenced the deposition of Police Officer Adhily Polanco of the 41st Precinct stating that commanding officers set specific quotas for arrests and summons and for stop and frisks and threatened to reduce overtime for officers who failed to perform well and re-assign those who fail to meet quotas to less desirable posts.

c. According to secretly tape recorded conversations made by Schoolcraft, a Lieutenant, a Deputy Inspector and Chief of transportation can be heard encouraging and demanding increased stops, summons and detentions and arrests.

d. Police Officer Craig Lance of the 42nd Precinct filed a lawsuit against the NYPD claiming the existence of a quota system and a systematic retaliation and harassment to those who did not comply.

e. Retired Detective James Griffin filed a lawsuit claiming that in the NYPD there exists a culture wherein officers who report corruption will face harassment and a hostile work environment

and that this conduct was tolerated by supervisors within the NYPD.

f. Police Officer Minoia, an officer with an Ivy League degree, assigned to the 42nd Precinct, was reassigned to a “punishment post” due to the fact that he failed to write a sufficient amount of summons and stated “I’m not going to pull out my summons book and write a summons because my boss is telling me he’s going to make it difficult for me if I don’t.”

619. In sum, the CITY and NYPD are responsible for creating a custom, policy or practice wherein many officers do not seem to believe that anything is really wrong with stopping and searching innocent citizens or using unnecessary or excessive force or falsely arresting citizens to meet an arrest quota.

620. That the above customs, policies and/or practices and the deliberate indifference thereto, was a direct and proximate cause of the illegal seizure of Plaintiff **DEBRYANNA LYMUS**, the excessive use of force on Plaintiff, and the false arrest and malicious prosecution of Plaintiff. The CITY and NYPD’S policies, customs and/or practices deprived the Plaintiff of her rights and liberties as set forth in the Constitutions of the United States and the State of New York and under 42 U.S.C §§ 1983, 1986 and 1988.

621. That said actions violated the Fourth and Fourteenth Amendments to the Constitution of the United States, violated Plaintiff’s right to be secure in person, and that the defendants used excessive, unnecessary and unlawful force, which constituted cruel and inhumane treatment and denied him due process of law.

622. Moreover, the CITY and NYPD caused or created a policy and/or custom, and acted with deliberate indifference to patterns and/or police practices which included illegal seizures, excessive or arbitrary use of force, illegal use of police equipment, destruction of evidence, intimidation of witnesses, illegal arrests, failing to gather evidence when allegations of police

misconduct are involved, condoning a code of silence within the NYPD regarding misconduct, failing to take police reports of illegal conduct, failing to properly supervise, train, investigate or discipline officers, and any and/or all of the above have contributed to Plaintiff's false arrest, malicious and false prosecution, and injuries.

623. That the Plaintiff did not commit any illegal act, either before or at the time she was falsely arrested and imprisoned, assaulted, battered and deprived of her constitutional rights as set forth in the Constitution of the United States and 42 U.S.C § 1983.

624. That by reason of the foregoing, Plaintiff **DEBRYANNA LYMUS** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FIFTY-SIXTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF DEBRYANNA LYMUS**

625. Plaintiff **DEBRYANNA LYMUS** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 624 with the same force and effect as if fully set forth at length herein.

626. At all times mentioned herein and above, defendants CITY and NYPD employed GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as police officers and named defendants were acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

627. Plaintiff **DEBRYANNA LYMUS** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

628. That on or about 8/25/23, defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, without

probable cause, reasonable cause or legal justification and while effectuating the seizure of plaintiff **DEBRYANNA LYMUS**, did search, seize, assault and commit a battery and grab the Plaintiff **DEBRYANNA LYMUS** without a court authorized arrest warrant or search warrant and defendants did physically seize Plaintiff **DEBRYANNA LYMUS** during the arrest process in an unlawful and excessive manner. Plaintiff **DEBRYANNA LYMUS** was falsely arrested, unlawfully imprisoned and searched and as a result of defendants' conduct maliciously prosecuted without the defendants possessing probable cause, reasonable cause or legal justification to do so.

629. The above actions of defendants CITY, NYPD, ROSA,DOE and ROE resulted in Plaintiff **DEBRYANNA LYMUS** being deprived of the following rights under the United States Constitution: a) Freedom from assault to her person; b) Freedom from battery to her person; c) Freedom from illegal search and seizure; d) Freedom from false arrest; e) Freedom from malicious prosecution; f) Freedom from the use of excessive force during the arrest process; and g) The right to Due Process of Law.

630. In addition to the above, defendants CITY and NYPD have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct its police officers, including the officers involved in this case and any and all unnamed officers involved in the unlawful seizure and arrest of plaintiff, regarding the protection of the constitutional rights of citizens.

631. Defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, subjected Plaintiff **DEBRYANNA LYMUS** to such deprivation in a malicious, reckless, deliberate, intentional, grossly negligent and with a callous disregard of Plaintiff **DEBRYANNA LYMUS**' rights and with deliberate indifference to those rights under the Fourth, Fifth, Sixth, Fourteenth and all other related Amendments to the

United States Constitution.

632. The direct and proximate result of the defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE acts are that Plaintiff **DEBRYANNA LYMUS** has suffered severe and permanent injuries, loss of liberty and companionship, forced to endure pain and suffering, emotional distress and severe and significant damage to standing and reputation in the community.

633. That by reason of the foregoing, Plaintiff **DEBRYANNA LYMUS** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A FIFTY-SEVENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF CHRISTOPHER FRANCO

634. Plaintiff **CHRISTOPHER FRANCO** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 633 with the same force and effect as if fully set forth at length herein.

635. That at all times the Plaintiff **CHRISTOPHER FRANCO** was and is a resident of County of Bronx, City and State of New York.

636. That on 8/25/23, at approximately 11:15 p.m., Plaintiff **CHRISTOPHER FRANCO** was lawfully in the vicinity of East 137th Street and Alexander Avenue, County of Bronx, State of New York and doing nothing illegal, improper or acting suspicious in anyway.

637. That on 8/25/23, at approximately 11:15 p.m., in the vicinity of East 137th Street and Alexander Avenue, County of Bronx, State of New York, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, absent an arrest warrant, probable cause, reasonable cause or any legal justification, approached Plaintiff **CHRISTOPHER FRANCO** for no reason and summarily stopped, frisked, searched, grabbed, assaulted, battered, and detained him in an aggressive and excessive manner.

638. Upon information and belief GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE knew or had reason to know that their actions lacked any legal justification in approaching, searching, seizing and arresting Plaintiff **CHRISTOPHER FRANCO**.

639. That Plaintiff **CHRISTOPHER FRANCO** was arraigned after his arrest and thereafter falsely and maliciously prosecuted with committing a crime or crimes.

640. Thereafter, Plaintiff **CHRISTOPHER FRANCO** remained incarcerated for over 24 hours and was required to make numerous court appearances over an extended period of time until all charges against him were terminated favorably.

641. Plaintiff **CHRISTOPHER FRANCO** sustained physical and emotional pain and injuries as a result of this incident.

642. That within ninety (90) days after the causes of actions accrued herein, and more than thirty (30) days prior to the commencement of this action, the Plaintiff **CHRISTOPHER FRANCO** caused the notice of claim, in writing, sworn to by and on behalf of the claimants, the Plaintiff herein, containing the statement of the name and place of residence of the claimants by the street and number and their attorney, and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon the defendant CITY, their agents, servants and/or employees at the Law Department,

643. This action was so commenced within one (1) year and ninety (90) days after said cause of action accrued herein, and for more than thirty (30) days prior to the commencement of this action, defendant CITY neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although plaintiff herein has requested and demanded that the

same be paid and adjusted.

644. That more than thirty (30) days have elapsed since the service and filing of a Notice of Claim with the Comptroller of the City of New York and said entity has failed to schedule a hearing pursuant to Section 50-h of the General Municipal Law. Plaintiff is ready, willing and able to submit to a 50-h examination if same is requested within a reasonable time frame from the filing of Notice of claim.

645. That on or about 8/25/23, at approximately 11:15 p.m., the Plaintiff **CHRISTOPHER FRANCO** was without just cause, probable cause or provocation, and with reckless, negligent and callous disregard for the truth, and without investigation, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with excessive force by CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and/or employees, and in particular, by GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE.

646. That on or about 8/25/23, at approximately 11:15 p.m., the Plaintiff **CHRISTOPHER FRANCO** while lawfully in the vicinity of East 137th Street and Alexander Avenue, County of Bronx, City and State of New York, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE of having committed a crime or crimes.

647. That on or about 8/25/23, and upon arresting the Plaintiff **CHRISTOPHER FRANCO** and depriving him of his liberty, CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE took the Plaintiff **CHRISTOPHER FRANCO** to a police station in the County of Bronx and entered him

on the records as under arrest.

648. That on or about 8/25/23, the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE further caused Plaintiff **CHRISTOPHER FRANCO** to have his fingerprints and photographs to be taken without his consent and in accordance with police procedures for the arrest of criminals and held him on various criminal charges at various police stations, correctional facilities and at the Courthouse located at 215 East 161st Street, County of Bronx, City and State of New York.

649. That on or about 8/25/23 Plaintiff **CHRISTOPHER FRANCO** was aware of his arrest and confinement, he did not consent to his arrest or confinement, and said confinement, seizure, arrest and detention was without legal justification.

650. That at all times hereinafter mentioned the actions of CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

651. That by reason of the foregoing, Plaintiff **CHRISTOPHER FRANCO** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FIFTY- EIGHTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF CHRISTOPHER FRANCO**

652. Plaintiff **CHRISTOPHER FRANCO** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 651 with the same force and effect as if fully set forth at length herein.

653. That on or about 8/25/23, a criminal complaint was issued by the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or

legal justification.

654. That on or about 8/25/23 a criminal action against Plaintiff **CHRISTOPHER FRANCO** was commenced by CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

655. That solely as a result of the aforesaid, the Plaintiff **CHRISTOPHER FRANCO'S** life was interfered with.

656. That the criminal action against Plaintiff **CHRISTOPHER FRANCO** was continued for an extended period of time by defendants with malice and bad faith.

657. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff **CHRISTOPHER FRANCO**, he was deprived of his liberty for an extended period of time and was subjected to scorn, ridicule, embarrassment and was degraded in the esteem of the community both personally and professionally.

658. That the criminal action against Plaintiff **CHRISTOPHER FRANCO** was terminated favorably by dismissal.

659. That the actions of CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

660. That by reason of the foregoing, Plaintiff **CHRISTOPHER FRANCO** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FIFTY-NINTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF CHRISTOPHER FRANCO**

661. Plaintiff **CHRISTOPHER FRANCO** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 660 with the same force and effect as if fully set

forth at length herein.

662. That on or about 8/25/23, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff **CHRISTOPHER FRANCO** was intentionally touched, pushed, assaulted, battered, violated, searched, humiliated, photographed and handcuffed by the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

663. That on or about 8/25/23 CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and employees, acting as agents and on behalf of the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, within the scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff **CHRISTOPHER FRANCO** in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff **CHRISTOPHER FRANCO** and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff and/or offensive bodily contact to the Plaintiff **CHRISTOPHER FRANCO** and caused such battery in and about his head, neck, back, body and limbs.

664. That by reason of the aforesaid intentional assault and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff **CHRISTOPHER FRANCO** suffered great and permanent bodily injury in and about his head, neck, back, body and

limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that he was otherwise damaged.

665. That as a result of the aforesaid assault and battery the Plaintiff **CHRISTOPHER FRANCO** was caused to sustain serious, severe, painful and permanent bodily injuries so that he was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure himself of his said injuries and he was and will be prevented from attending his usual occupation and duties.

666. That at all times hereinafter mentioned the actions of CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

667. That by reason of the foregoing, Plaintiff **CHRISTOPHER FRANCO** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A SIXTIETH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF CHRISTOPHER FRANCO**

667. Plaintiff **CHRISTOPHER FRANCO** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 666 with the same force and effect as if fully set forth at length herein.

668. That the CITY, NYPD, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, in that said police officers, as employees of CITY and NYPD, were not qualified to be hired or retained or promoted as police officers, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that

each was employed by CITY and NYPD.

669. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately test, analyze test results, and/or investigate above mentioned police officers backgrounds and performances.

670. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately screen said police officers, failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violate Patrol Guidelines.

671. Defendant CITY and NYPD were also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the police officer defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY and NYPD and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

672. That by reason of the above, the Plaintiff **CHRISTOPHER FRANCO** was injured in mind and body as he was arrested, prosecuted and rendered sick, sore, and damaged.

673. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

674. That by reason of the foregoing, Plaintiff **CHRISTOPHER FRANCO** has been

damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SIXTY-FIRST CAUSE OF ACTION ON BEHALF OF
PLAINTIFF CHRISTOPHER FRANCO

675. Plaintiff **CHRISTOPHER FRANCO** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-674 with the same force and effect as if fully set forth at length herein.

676. In arresting Plaintiff **CHRISTOPHER FRANCO**, police officers including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

677. In arresting Plaintiff **CHRISTOPHER FRANCO**, police officers including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, sought either a detriment to Plaintiff **CHRISTOPHER FRANCO** or a collateral advantage to the CITY and NYPD that is outside the legitimate ends of effectuating an arrest.

678. As a result of the abuse of process by defendants herein, Plaintiff **CHRISTOPHER FRANCO** sustained multiple injuries including but not limited to loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

679. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

680. That by reason of the foregoing, Plaintiff **CHRISTOPHER FRANCO** has been

damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SIXTY-SECOND CAUSE OF ACTION ON BEHALF OF
PLAINTIFF CHRISTOPHER FRANCO

681. Plaintiff **CHRISTOPHER FRANCO** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 680 with the same force and effect as if fully set forth at length herein.

682. That on 8/25/23, at approximately 11:15 p.m., within the vicinity of East 137th Street and Alexander Avenue, County of Bronx, City and State of New York, the CITY and NYPD were present through its agents, servants and/or employees including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, who were acting in the course of their employment and under the color of law to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

683. That Plaintiff **CHRISTOPHER FRANCO** was lawfully in the above vicinity at the above time when he was stopped, questioned, searched and seized solely on the basis of his age and/or race and for no legal or legitimate reason.

684. That said illegal stop and seizure was part of the CITY'S custom and practice and/or practice of racial profiling, and/or meeting arrest or summons quotas, and/or the illegal stop and search of civilians which was authorized by, or met with the tacit approval of the CITY and NYPD under their "Stop, Question and Frisk" policy or program ("Stop and Frisk").

685. That under the "Stop and Frisk" program the CITY and NYPD permitted, condoned, or acted with deliberate indifference to the racial disparity of its' application, to the fact that unnecessary or illegal frisks or searches were conducted, that very low percentages of seizures, frisks and searches resulted in arrests or the recovery of contraband, that pretextual reasons are provided

for “Stop and Frisk”, that officers do not always fill out Stop and Frisk reports, i.e. UF-250s, and are not disciplined when they fail to do so, that stop and frisks are conducted without reasonable suspicion, and that the program of “Stop and Frisk” has resulted in illegal stops, seizures, frisks, arrests and the use of physical force.

686. That the CITY and NYPD have failed to discipline, train, monitor or retrain offending police officers who engaged in stops and frisks without any legal justification and has failed to discipline police officers who fail to fill out required UF-250s.

687. That the CITY and NYPD have failed to adequately investigate and/or discipline officers who use excessive force, stop and frisk innocent citizens who have not done anything illegal or acted in suspicious manner warranting a seizure, who failed to report misconduct of fellow officers, who destroy evidence, who engage in fraud, misrepresentations, deceit, and maliciously participate in and instigate prosecutions of innocent citizens.

688. It is alleged herein that Plaintiff **CHRISTOPHER FRANCO** was stopped and seized absent reasonable suspicion. That said actions of defendants were pursuant to an illegal and improper Stop and Frisk program that was promulgated by defendants. That such custom, policy and program has created a class of citizens, including Plaintiff **CHRISTOPHER FRANCO**, who have been illegally stopped and seized, searched and questioned based on their race, and in order to meet arrest quotas. Evidence of said policy is as follows:

a. That in a class action lawsuit David Floyd, et. al. v. City of New York, et. al., pending in United States District Court, Southern District of New York, 08 CIV 1034, in a decision dated 5/16/12 certifying a class action lawsuit, it was found that between the years of 2005 and 2009 a reported 2.8 million people in New York City have been stopped and frisked. Of said number more than 87% were minority citizens. Summons and arrests were issued or made in approximately 10%

of the reported stops. Meaning that based on their own records, defendants' suspicions are incorrect approximately 9 out of 10 stops.

b. The Honorable Shira A. Scheindlin, found in the Floyd decision that:

- i. It is indisputable that NYPD has an enormous Stop and Frisk program;
- ii. Evidence shows that the Stop and Frisk program is organized and hierarchical;
- iii. Stop and Frisk program has been designed and revised at highest levels of defendants;
- iv. The implementation of the program is conducted according to uniform and centralized rules;
- v. Monitoring of the program is hierarchical;
- vi. The program is the result of institutional decisions and directives.

c. Justice Sheindlin further found that a preponderance of evidence shows that defendants policy of establishing performance standards and demanding increased levels of stop and frisks results in putative class of aggrieved citizens. The Court noted that street level stops have risen every year. That in 2004, defendants documented 313,000 stops, and in 2011 they reported 684,000 stops. In a Police Officer Performance Objectives Operation Order dated 10/17/11, Commissioner Kelly directed that "Department managers can and must set performance goals – relating to "the issuance of summons, the stopping and questioning of suspicious individuals and the arrests of criminals." It further states that "uniformed members who do not demonstrate activities . . . or who fail to engage in proactive activities . . . will be evaluated accordingly and their assignments reassessed."

146. Other instances of an illegal and/or improper stop and frisk program custom or practice and/or excessive use of force and filing of false charges includes but not limited to:

a. On 4/12/11 in the vicinity of Walton Avenue and Mt. Hope Place, Bronx, NY, while doing nothing illegal or improper, Lonnie Thompson was approached by several uniformed police officers for no reason and without reasonable suspicion. After being stopped, Mr. Thompson was patted down and searched. He was arrested and charged with Criminal Possession of a Weapon in the Fourth Degree. This, even though the weapon was a bona fide work tool. Mr. Thompson was subjected to a strip search at the 46th Precinct. All charges were dismissed.

b. On 5/4/11 in the vicinity of 2345 Jerome Avenue, Bronx, NY, Alexis Niewkerk, who is handicapped, was sitting in his legally parked vehicle and waiting for his friends to finish shopping at a nearby store. All of a sudden several undercover police officers from Bronx Narcotics approached his vehicle for no reason and without reasonable suspicion ordered him out of said vehicle. Mr. Niewkerk was subjected to a pat down and search. He was subsequently arrested for possession of a controlled substance in the seventh degree even though the “substance” recovered from his pants pocket was his own prescribed pain medication. Mr. Niewkerk was subjected to a strip search and forced to move his body in ways that are extremely painful given his medical status and condition. All charges were dismissed.

c. On 6/2/11 in the vicinity of 985 Simpson Street, Bronx, NY, Jesus Rosario, an infant, was approached by several police officers from the 41st Precinct. He was told to “get on the wall” and thereafter patted down and searched. Mr. Rosario was accused of Trespassing in the Second Degree. Mr. Rosario was doing nothing illegal or improper at the time the officers approached as he was simply exiting 985 Simpson Street after visiting his father who resides in said building. After being arrested, Mr. Rosario was subjected to a strip search at the 41st Precinct. The case was declined to be prosecuted by the District Attorney’s Office.

d. On 8/1/12 in the vicinity of 1000 Simpson Street, Bronx, NY Nicholas Hernandez and

Dilson Pena were sitting outside of their building on a public bench and doing nothing illegal or improper. All of a sudden, several police officers from the 41st Precinct approached them for no reason and told them to submit to a frisk. Mr. Hernandez and Mr. Pena were accused of possession of marihuana even though no marihuana was recovered. They were each subjected to a strip search at the 41st Precinct. All charges against them were declined to be prosecuted by the District Attorney's Office.

e. On 1/22/11 in the vicinity of 808 Park Avenue, Brooklyn, NY, Captain Michelle Culp, a now retired Captain for New York City Department of Corrections, was visiting her sick and elderly mother at the aforementioned address and decided to walk her mother's dog. In so doing, Captain Culp was approached by several uniform housing police officers and accused of Trespassing in the Second Degree. She was patted down and searched. This, despite the fact that Captain Culp explained that she was visiting her mother and her identification and personal belongings were in her mother's apartment in the same building. All charges were dismissed.

f. On 5/20/11 in the vicinity of Park Avenue and East 138th Street, Bronx, NY, Patrick Nielson was exiting the number 4 subway train and going to his car which was parked nearby when he was followed, stopped, frisked, and assaulted by several undercover police officers from Bronx Narcotics for no reason. Thereafter, he was arrested and accused of possession of a controlled substance. Mr. Nielson was subjected to a strip search. The "controlled" substance was Mr. Nielson's prescribed medicine. All charges were dismissed.

g. On 6/22/10 in the vicinity of 139th Street and Lenox Avenue, New York, NY, Wilford Person was approached by several undercover police officers from Manhattan North Narcotics for no legitimate reason. Mr. Person was thereafter told to get against a fence and patted down and searched. He was accused of possession of marihuana. Mr. Person was simply playing basketball at

the time the police approached him. After being arrested and subjected to a strip search Mr. Person was prosecuted. All charges were eventually dismissed.

h. On 5/2/12 in the vicinity of 1912 Third Avenue, New York, NY, Jose Baez, the manager of a local eyeglass store, left the store to buy his lunch. After leaving the store Mr. Baez, for no reason at all, was approached by several undercover police officers from Manhattan North Narcotics, and was detained, patted down, searched, and falsely accused of selling marihuana. Mr. Baez was subjected to a strip search. All charges against him were dismissed.

i. On 11/13/10 in the vicinity of 1113 Boston Road, Bronx, NY, Alpha Mahoi, was doing nothing illegal or improper when, for no reason, he was approached by several undercover police officers from Bronx Narcotics and accused of being involved in the sale of cocaine. He was cuffed, patted down, searched, arrested and strip searched at the precinct. All charges were dismissed.

j. On 3/10/12 in the vicinity of 1821 Davison Avenue, Bronx, NY, Keyewanie Blackledge, Dwayne Smith and Richard Campbell were leaving his friend's apartment when they were approached by several uniform police officers from the 46th Precinct for no reason and told to "get on the wall" and "get on the floor" and thereafter patted down and searched. They was charged with Trespassing in the Second Degree. All charges were dismissed.

k. On 8/1/12 in the vicinity of 1000 Simpson Street, Bronx, NY, Dylan Pena was outside recording on his cell phone several police officers from the 41st Precinct arresting a person from the neighborhood. Upon seeing Mr. Pena recording the incident several police officers grabbed him and pushed him to the ground and seized his cell phone without any reason to do so. All data on the phone was subsequently erased by the officers. Mr. Pena was also patted down and searched. He was charged with resisting arrest and was strip searched at the 41st Precinct. The charges were declined to be prosecuted by the District Attorney's Office.

l. On 5/17/11 in the vicinity of 1690 Clay Avenue, Bronx, NY, Gregory Williams was leaving a family friend's apartment after helping her move furniture so she could clean. Upon exiting the building Mr. Williams, for no reason at all, was approached by several uniformed police officers from the 44th Precinct and patted down and searched. He was accused of Trespassing in the Second Degree despite his family friend informing the police officers at the scene and at the 44th Precinct that he had permission to be in the building. Mr. Williams was strip searched. All charges against him were dismissed.

m. On 3/16/11 in the vicinity of 1740 Grand Avenue, Bronx, NY, Lindon Grant just left his apartment to walk approximately 1 block to buy breakfast before going to work. After he bought his breakfast and left the store he was approached by several undercover police officers from the 46th Precinct for no reason and patted down and searched. He was then accused of selling marihuana. Mr. Grant was arrested, strip searched and prosecuted for several months. All charges were dismissed.

n. On 8/2/09 in the vicinity of Southern Boulevard and East 175th Street, Bronx, NY Jose Suazo was approached by several uniformed officers from the 42nd Precinct for no reason. Mr. Suazo was patted down and searched. Despite the fact that he had nothing illegal on his person he was charged with possession of marihuana. While already in custody in a police van shots were fired in a nearby park. When Mr. Suazo got to the precinct he found out that even though he was already in custody in the police van when the shots were fired, he was charged with possession of a weapon in the second degree. Mr. Suazo was subjected to a strip search. All charges were eventually dismissed.

o. On 8/12/19 in the vicinity of 894 Rogers Place, Bronx, NY, Edmanuel Benitez was standing outside of the building and waiting for a friend to come outside to play basketball. All of a

sudden he was approached for no reason by officers from the 41st Precinct and thereafter patted down, searched, arrested, strip searched and prosecuted for the sale of marihuana. All charges were dismissed.

p. On 2/19/12 Daniel Rodriguez was leaving a store in the vicinity of Jerome Avenue and West 192nd Street when he was summarily grabbed, pushed against a wall, patted down, frisked, searched and then handcuffed by several officers from Bronx Narcotics. Mr. Rodriguez was doing nothing illegal or improper at the time. He was subsequently strip searched and charged with possession of a controlled substance in the seventh degree. All charges were dismissed.

q. On 9/28/11 Shakeem Enang was in the vicinity of West 179th Street and University Avenue when he was approached by several plain clothes officers from Bronx Narcotics Division. Mr. Enang was doing nothing illegal at the time the officers approached or any time prior to the officers approaching. He was grabbed, seized, frisked, searched and then arrested. Mr. Enang was charged with criminal sale of a controlled substance. He was strip searched at the 46th Precinct. All charges were dismissed.

689. As is evidence from the above, Plaintiff **CHRISTOPHER FRANCO'S** injuries including the violation of his constitutional rights, the deprivation of his freedom, falsely and maliciously being prosecuted, physical and emotional injuries, are the direct and proximate result of the CITY'S and NYPD'S policies and/or deliberate indifference to practices which involve the excessive use of force, false arrest, police cover-ups, witness intimidation, malicious prosecution, illegal stop, questions and frisks, strip searches, Fourth Amendment violations, and deliberate indifference to the need to train, supervise, monitor, investigate and discipline, including suspension, dismissal and/or reassignment offending police officers. The practice is widespread and pervasive throughout the entire City of New York.

690. The CITY and NYPD knew or should have known of the customs and police practices of its officers which included but was not limited to: the failing to preserve and/or destruction of exculpatory evidence, threatening to arrest witnesses to police misconduct and engaging in cover-ups, fraud, perjury, deceit and malfeasance.

691. That the acts of employees of the CITY and NYPD, i.e. police officers, who violate the civil and constitutional rights of the citizens of the City of New York routinely go unreported, undisciplined and their acts condoned by other officers, including their supervisors. Upon information and belief, the supervisors of defendant police officers herein were aware of the conduct of defendant police officers and failed to stop, report or intervene in the misconduct.

692. The CITY and NYPD'S tolerance for brutality, excessive force, illegal and/or retaliatory arrests, and their emphasis to come down hard on quality of life infractions leads to a systemic practice and policy wherein police officers seem fairly tolerant of police brutality, silence in the face of brutality and/or illegal stops, frisks, searches, seizures and/or arrests, and engage in the practice of meeting arrest quotas. A systemic practice where officers who report said misconduct are not viewed as "good cops" but rather as outcasts and are ostracized and often transferred to other assignments thereby perpetuating the illegal conduct of the NYPD and thusly the CITY.

693. Some instances where officers were treated as outcasts for reporting misconduct and/or arrest/summons quota system are as follows:

a. The existence of arrest quotas, summons quotas and approval of illegal stops and arrests have been exposed by Police officer Adrian Schoolcraft in a separate lawsuit which was cited by Justice Sheindlin in Floyd.

b. Justice Sheindlin referenced the deposition of Police Officer Adhily Polanco of the 41st Precinct stating that commanding officers set specific quotas for arrests and summons and for stop

and frisks and threatened to reduce overtime for officers who failed to perform well and re-assign those who fail to meet quotas to less desirable posts.

c. According to secretly tape recorded conversations made by Schoolcraft, a Lieutenant, a Deputy Inspector and Chief of transportation can be heard encouraging and demanding increased stops, summons and detentions and arrests.

d. Police Officer Craig Lance of the 42nd Precinct filed a lawsuit against the NYPD claiming the existence of a quota system and a systematic retaliation and harassment to those who did not comply.

e. Retired Detective James Griffin filed a lawsuit claiming that in the NYPD there exists a culture wherein officers who report corruption will face harassment and a hostile work environment and that this conduct was tolerated by supervisors within the NYPD.

f. Police Officer Minoia, an officer with an Ivy League degree, assigned to the 42nd Precinct, was reassigned to a "punishment post" due to the fact that he failed to write a sufficient amount of summons and stated "I'm not going to pull out my summons book and write a summons because my boss is telling me he's going to make it difficult for me if I don't."

694. In sum, the CITY and NYPD are responsible for creating a custom, policy or practice wherein many officers do not seem to believe that anything is really wrong with stopping and searching innocent citizens or using unnecessary or excessive force or falsely arresting citizens to meet an arrest quota.

695. That the above customs, policies and/or practices and the deliberate indifference thereto, was a direct and proximate cause of the illegal seizure of Plaintiff **CHRISTOPHER FRANCO**, the excessive use of force on Plaintiff, and the false arrest and malicious prosecution of Plaintiff. The CITY and NYPD'S policies, customs and/or practices deprived the Plaintiff of his rights and liberties

as set forth in the Constitutions of the United States and the State of New York and under 42 U.S.C §§ 1983, 1986 and 1988.

696. That said actions violated the Fourth and Fourteenth Amendments to the Constitution of the United States, violated Plaintiff's right to be secure in person, and that the defendants used excessive, unnecessary and unlawful force, which constituted cruel and inhumane treatment and denied him due process of law.

697. Moreover, the CITY and NYPD caused or created a policy and/or custom, and acted with deliberate indifference to patterns and/or police practices which included illegal seizures, excessive or arbitrary use of force, illegal use of police equipment, destruction of evidence, intimidation of witnesses, illegal arrests, failing to gather evidence when allegations of police misconduct are involved, condoning a code of silence within the NYPD regarding misconduct, failing to take police reports of illegal conduct, failing to properly supervise, train, investigate or discipline officers, and any and/or all of the above have contributed to Plaintiff's false arrest, malicious and false prosecution, and injuries.

698. That the Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, assaulted, battered and deprived of his constitutional rights as set forth in the Constitution of the United States and 42 U.S.C § 1983.

699. That by reason of the foregoing, Plaintiff **CHRISTOPHER FRANCO** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A SIXTY-THIRD CAUSE OF ACTION ON BEHALF OF
PLAINTIFF CHRISTOPHER FRANCO**

700. Plaintiff **CHRISTOPHER FRANCO** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 699 with the same force and effect as if fully set forth at length herein.

701. At all times mentioned herein and above, defendants CITY and NYPD employed GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as police officers and named defendants were acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

702. Plaintiff **CHRISTOPHER FRANCO** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

703. That on or about 8/25/23, defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, without probable cause, reasonable cause or legal justification and while effectuating the seizure of plaintiff **CHRISTOPHER FRANCO**, did search, seize, assault and commit a battery and grab the Plaintiff **CHRISTOPHER FRANCO** without a court authorized arrest warrant or search warrant and defendants did physically seize Plaintiff **CHRISTOPHER FRANCO** during the arrest process in an unlawful and excessive manner. Plaintiff **CHRISTOPHER FRANCO** was falsely arrested, unlawfully imprisoned and strip searched and as a result of defendants' conduct maliciously prosecuted without the defendants possessing probable cause, reasonable cause or legal justification to do so.

704. The above actions of defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE resulted in Plaintiff **CHRISTOPHER FRANCO** being deprived of the following rights under the United States Constitution: a) Freedom from assault to his person; b) Freedom from battery to his person; c) Freedom from illegal search and seizure; d) Freedom from false arrest; e) Freedom from malicious

prosecution; f) Freedom from the use of excessive force during the arrest process; and g) The right to Due Process of Law.

705. In addition to the above, defendants CITY and NYPD have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct its police officers, including the officers involved in this case and any and all unnamed officers involved in the unlawful seizure and arrest of plaintiff, regarding the protection of the constitutional rights of citizens.

706. Defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, subjected Plaintiff **CHRISTOPHER FRANCO** to such deprivation in a malicious, reckless, deliberate, intentional, grossly negligent and with a callous disregard of Plaintiff **CHRISTOPHER FRANCO'S** rights and with deliberate indifference to those rights under the Fourth, Fifth, Sixth, Fourteenth and all other related Amendments to the United States Constitution.

707. The direct and proximate result of the defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE acts are that Plaintiff **CHRISTOPHER FRANCO** has suffered severe and permanent injuries, loss of liberty and companionship, forced to endure pain and suffering, emotional distress and severe and significant damage to standing and reputation in the community.

708. That by reason of the foregoing, Plaintiff **CHRISTOPHER FRANCO** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A SIXTY-FOURTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF JEROME GRAHAM**

709. Plaintiff **JEROME GRAHAM** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 708 with the same force and effect as if fully set

forth at length herein.

710. That at all times the Plaintiff **JEROME GRAHAM** was and is a resident of County of the Bronx, City and State of New York.

711. That on 8/25/23, at approximately 11:15 p.m., Plaintiff **JEROME GRAHAM** was lawfully in the vicinity of East 137th Street and Alexander Avenue, County of Bronx, State of New York and doing nothing illegal, improper or acting suspicious in anyway.

712. That on 8/25/23, at approximately 11:15 p.m., in the vicinity of East 137th Street and Alexander Avenue, County of Bronx, State of New York, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, absent an arrest warrant, probable cause, reasonable cause or any legal justification, approached Plaintiff **JEROME GRAHAM** for no reason and summarily stopped, frisked, searched, grabbed, assaulted, battered, and detained him in an aggressive and excessive manner.

713. Upon information and belief GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE knew or had reason to know that their actions lacked any legal justification in approaching, searching, seizing and arresting Plaintiff **JEROME GRAHAM**.

714. That Plaintiff **JEROME GRAHAM** was arraigned after his arrest and thereafter falsely and maliciously prosecuted with committing a crime or crimes.

715. Thereafter, Plaintiff **JEROME GRAHAM** remained incarcerated for over 24 hours and was required to make numerous court appearances over an extended period of time until all charges against him were terminated favorably.

716. Plaintiff **JEROME GRAHAM** sustained physical and emotional pain and injuries as a result of this incident.

717. That within ninety (90) days after the causes of actions accrued herein, and more than thirty (30) days prior to the commencement of this action, the Plaintiff **JEROME GRAHAM** caused the notice of claim, in writing, sworn to by and on behalf of the claimants, the Plaintiff herein, containing the statement of the name and place of residence of the claimants by the street and number and their attorney, and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon the defendant CITY, their agents, servants and/or employees at the Law Department,

718. This action was so commenced within one (1) year and ninety (90) days after said cause of action accrued herein, and for more than thirty (30) days prior to the commencement of this action, defendant CITY neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although plaintiff herein has requested and demanded that the same be paid and adjusted.

719. That more than thirty (30) days have elapsed since the service and filing of a Notice of Claim with the Comptroller of the City of New York and said entity has failed to schedule a hearing pursuant to Section 50-h of the General Municipal Law. Plaintiff is ready, willing and able to submit to a 50-h examination if same is requested within a reasonable time frame from the filing of Notice of claim.

720. That on or about 8/25/23, at approximately 11:15 p.m., the Plaintiff **JEROME GRAHAM** was without just cause, probable cause or provocation, and with reckless, negligent and callous disregard for the truth, and without investigation, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with excessive force by CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE,

their agents, servants and/or employees, and in particular, by GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE.

721. That on or about 8/25/23, at approximately 11:15 p.m., the Plaintiff **JEROME GRAHAM** while lawfully in the vicinity of East 137th Street and Alexander Avenue, County of Bronx, City and State of New York, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE of having committed a crime or crimes.

722. That on or about 8/25/23, and upon arresting the Plaintiff **JEROME GRAHAM** and depriving him of his liberty, CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE took the Plaintiff **JEROME GRAHAM** to a police station in the County of Bronx and entered him on the records as under arrest.

723. That on or about 8/25/23, the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE further caused Plaintiff **JEROME GRAHAM** to have his fingerprints and photographs to be taken without his consent and in accordance with police procedures for the arrest of criminals and held him on various criminal charges at various police stations, correctional facilities and at the Courthouse located at 215 East 161st Street, County of Bronx, City and State of New York.

724. That on or about 8/25/23 Plaintiff **JEROME GRAHAM** was aware of his arrest and confinement, he did not consent to his arrest or confinement, and said confinement, seizure, arrest and detention was without legal justification.

725. That at all times hereinafter mentioned the actions of CITY, NYPD, GOMES,

DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

726. That by reason of the foregoing, Plaintiff **JEROME GRAHAM** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SIXTY- FIFTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF JEROME GRAHAM

727. Plaintiff **JEROME GRAHAM** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 726 with the same force and effect as if fully set forth at length herein.

728. That on or about 8/25/23, a criminal complaint was issued by the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

729. That on or about 8/25/23 a criminal action against Plaintiff **JEROME GRAHAM** was commenced by CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

730. That solely as a result of the aforesaid, the Plaintiff **JEROME GRAHAM'S** life was interfered with.

731. That the criminal action against Plaintiff **JEROME GRAHAM** was continued for an extended period of time by defendants with malice and bad faith.

732. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff **JEROME GRAHAM**, he was deprived of his liberty for an

extended period of time and was subjected to scorn, ridicule, embarrassment and was degraded in the esteem of the community both personally and professionally.

733. That the criminal action against Plaintiff **JEROME GRAHAM** was terminated favorably by dismissal.

734. That the actions of CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

735. That by reason of the foregoing, Plaintiff **JEROME GRAHAM** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A SIXTY-SIXTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF JEROME GRAHAM**

736. Plaintiff **JEROME GRAHAM** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 735 with the same force and effect as if fully set forth at length herein.

737. That on or about 8/25/23, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff **JEROME GRAHAM** was intentionally touched, pushed, assaulted, battered, violated, searched, humiliated, photographed and handcuffed by the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

738. That on or about 8/25/23 CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, their agents, servants and employees, acting as agents and on behalf of the CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, within the

scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff **JEROME GRAHAM** in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff **JEROME GRAHAM** and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff and/or offensive bodily contact to the Plaintiff **JEROME GRAHAM** and caused such battery in and about his head, neck, back, body and limbs.

739. That by reason of the aforesaid intentional assault and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff **JEROME GRAHAM** suffered great and permanent bodily injury in and about his head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that he was otherwise damaged.

740. That as a result of the aforesaid assault and battery the Plaintiff **JEROME GRAHAM** was caused to sustain serious, severe, painful and permanent bodily injuries so that he was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure himself of his said injuries and he was and will be prevented from attending his usual occupation and duties.

741. That at all times hereinafter mentioned the actions of CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

742. That by reason of the foregoing, Plaintiff **JEROME GRAHAM** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A SIXTY-SEVENTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF JEROME GRAHAM**

743. Plaintiff **JEROME GRAHAM** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 742 with the same force and effect as if fully set forth at length herein.

744. That the CITY, NYPD, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, in that said police officers, as employees of CITY and NYPD, were not qualified to be hired or retained or promoted as police officers, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by CITY and NYPD.

745. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately test, analyze test results, and/or investigate above mentioned police officers backgrounds and performances.

746. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately screen said police officers, failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violate Patrol Guidelines.

747. Defendant CITY and NYPD were also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the police officer defendants named herein,

knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY and NYPD and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

748. That by reason of the above, the Plaintiff **JEROME GRAHAM** was injured in mind and body as he was arrested, prosecuted and rendered sick, sore, and damaged.

749. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

750. That by reason of the foregoing, Plaintiff **JEROME GRAHAM** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

AS AND FOR A SIXTY-EIGHTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF JEROME GRAHAM

751. Plaintiff **JEROME GRAHAM** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-750 with the same force and effect as if fully set forth at length herein.

752. In arresting Plaintiff **JEROME GRAHAM**, police officers including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

753. In arresting Plaintiff **JEROME GRAHAM**, police officers including but not limited

to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, sought either a detriment to Plaintiff **JEROME GRAHAM** or a collateral advantage to the CITY and NYPD that is outside the legitimate ends of effectuating an arrest.

754. As a result of the abuse of process by defendants herein, Plaintiff **JEROME GRAHAM** sustained multiple injuries including but not limited to loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

755. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

756. That by reason of the foregoing, Plaintiff **JEROME GRAHAM** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A SIXTY-NINTH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF JEROME GRAHAM**

757. Plaintiff **JEROME GRAHAM** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 756 with the same force and effect as if fully set forth at length herein.

758. That on 8/25/23, at approximately 11:15 p.m., within the vicinity of East 137th Street and Alexander Avenue, County of Bronx, City and State of New York, the CITY and NYPD were present through its agents, servants and/or employees including but not limited to GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, who were acting in the course of their employment and under the color of law to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of

New York.

759. That Plaintiff **JEROME GRAHAM** was lawfully in the above vicinity at the above time when he was stopped, questioned, searched and seized solely on the basis of his age and/or race and for no legal or legitimate reason.

760. That said illegal stop and seizure was part of the CITY'S custom and practice and/or practice of racial profiling, and/or meeting arrest or summons quotas, and/or the illegal stop and search of civilians which was authorized by, or met with the tacit approval of the CITY and NYPD under their "Stop, Question and Frisk" policy or program ("Stop and Frisk").

761. That under the "Stop and Frisk" program the CITY and NYPD permitted, condoned, or acted with deliberate indifference to the racial disparity of its' application, to the fact that unnecessary or illegal frisks or searches were conducted, that very low percentages of seizures, frisks and searches resulted in arrests or the recovery of contraband, that pretextual reasons are provided for "Stop and Frisk", that officers do not always fill out Stop and Frisk reports, i.e. UF-250s, and are not disciplined when they fail to do so, that stop and frisks are conducted without reasonable suspicion, and that the program of "Stop and Frisk" has resulted in illegal stops, seizures, frisks, arrests and the use of physical force.

762. That the CITY and NYPD have failed to discipline, train, monitor or retrain offending police officers who engaged in stops and frisks without any legal justification and has failed to discipline police officers who fail to fill out required UF-250s.

763. That the CITY and NYPD have failed to adequately investigate and/or discipline officers who use excessive force, stop and frisk innocent citizens who have not done anything illegal or acted in suspicious manner warranting a seizure, who failed to report misconduct of fellow officers, who destroy evidence, who engage in fraud, misrepresentations, deceit, and maliciously

participate in and instigate prosecutions of innocent citizens.

764. It is alleged herein that Plaintiff **JEROME GRAHAM** was stopped and seized absent reasonable suspicion. That said actions of defendants were pursuant to an illegal and improper Stop and Frisk program that was promulgated by defendants. That such custom, policy and program has created a class of citizens, including Plaintiff **JEROME GRAHAM**, who have been illegally stopped and seized, searched and questioned based on their race, and in order to meet arrest quotas. Evidence of said policy is as follows:

a. That in a class action lawsuit David Floyd, et. al. v. City of New York, et. al., pending in United States District Court, Southern District of New York, 08 CIV 1034, in a decision dated 5/16/12 certifying a class action lawsuit, it was found that between the years of 2005 and 2009 a reported 2.8 million people in New York City have been stopped and frisked. Of said number more than 87% were minority citizens. Summons and arrests were issued or made in approximately 10% of the reported stops. Meaning that based on their own records, defendants' suspicions are incorrect approximately 9 out of 10 stops.

b. The Honorable Shira A. Scheindlin, found in the Floyd decision that:

- i. It is indisputable that NYPD has an enormous Stop and Frisk program;
- ii. Evidence shows that the Stop and Frisk program is organized and hierarchical;
- iii. Stop and Frisk program has been designed and revised at highest levels of defendants;
- iv. The implementation of the program is conducted according to uniform and centralized rules;
- v. Monitoring of the program is hierarchical;
- vi. The program is the result of institutional decisions and directives.

c. Justice Sheindlin further found that a preponderance of evidence shows that defendants policy of establishing performance standards and demanding increased levels of stop and frisks results in putative class of aggrieved citizens. The Court noted that street level stops have risen every year. That in 2004, defendants documented 313,000 stops, and in 2011 they reported 684,000 stops. In a Police Officer Performance Objectives Operation Order dated 10/17/11, Commissioner Kelly directed that “Department managers can and must set performance goals – relating to “the issuance of summons, the stopping and questioning of suspicious individuals and the arrests of criminals.” It further states that “uniformed members who do not demonstrate activities . . . or who fail to engage in proactive activities . . . will be evaluated accordingly and their assignments reassessed.”

765. Other instances of an illegal and/or improper stop and frisk program custom or practice and/or excessive use of force and filing of false charges includes but not limited to:

a. On 4/12/11 in the vicinity of Walton Avenue and Mt. Hope Place, Bronx, NY, while doing nothing illegal or improper, Lonnie Thompson was approached by several uniformed police officers for no reason and without reasonable suspicion. After being stopped, Mr. Thompson was patted down and searched. He was arrested and charged with Criminal Possession of a Weapon in the Fourth Degree. This, even though the weapon was a bona fide work tool. Mr. Thompson was subjected to a strip search at the 46th Precinct. All charges were dismissed.

b. On 5/4/11 in the vicinity of 2345 Jerome Avenue, Bronx, NY, Alexis Niewkerk, who is handicapped, was sitting in his legally parked vehicle and waiting for his friends to finish shopping at a nearby store. All of a sudden several undercover police officers from Bronx Narcotics approached his vehicle for no reason and without reasonable suspicion ordered him out of said vehicle. Mr. Niewkerk was subjected to a pat down and search. He was subsequently arrested for

possession of a controlled substance in the seventh degree even though the “substance” recovered from his pants pocket was his own prescribed pain medication. Mr. Niewkerk was subjected to a strip search and forced to move his body in ways that are extremely painful given his medical status and condition. All charges were dismissed.

c. On 6/2/11 in the vicinity of 985 Simpson Street, Bronx, NY, Jesus Rosario, an infant, was approached by several police officers from the 41st Precinct. He was told to “get on the wall” and thereafter patted down and searched. Mr. Rosario was accused of Trespassing in the Second Degree. Mr. Rosario was doing nothing illegal or improper at the time the officers approached as he was simply exiting 985 Simpson Street after visiting his father who resides in said building. After being arrested, Mr. Rosario was subjected to a strip search at the 41st Precinct. The case was declined to be prosecuted by the District Attorney’s Office.

d. On 8/1/12 in the vicinity of 1000 Simpson Street, Bronx, NY Nicholas Hernandez and Dilson Pena were sitting outside of their building on a public bench and doing nothing illegal or improper. All of a sudden, several police officers from the 41st Precinct approached them for no reason and told them to submit to a frisk. Mr. Hernandez and Mr. Pena were accused of possession of marihuana even though no marihuana was recovered. They were each subjected to a strip search at the 41st Precinct. All charges against them were declined to be prosecuted by the District Attorney’s Office.

e. On 1/22/11 in the vicinity of 808 Park Avenue, Brooklyn, NY, Captain Michelle Culp, a now retired Captain for New York City Department of Corrections, was visiting her sick and elderly mother at the aforementioned address and decided to walk her mother’s dog. In so doing, Captain Culp was approached by several uniform housing police officers and accused of Trespassing in the Second Degree. She was patted down and searched. This, despite the fact that Captain Culp

explained that she was visiting her mother and her identification and personal belongings were in her mother's apartment in the same building. All charges were dismissed.

f. On 5/20/11 in the vicinity of Park Avenue and East 138th Street, Bronx, NY, Patrick Nielson was exiting the number 4 subway train and going to his car which was parked nearby when he was followed, stopped, frisked, and assaulted by several undercover police officers from Bronx Narcotics for no reason. Thereafter, he was arrested and accused of possession of a controlled substance. Mr. Nielson was subjected to a strip search. The "controlled" substance was Mr. Nielson's prescribed medicine. All charges were dismissed.

g. On 6/22/10 in the vicinity of 139th Street and Lenox Avenue, New York, NY, Wilford Person was approached by several undercover police officers from Manhattan North Narcotics for no legitimate reason. Mr. Person was thereafter told to get against a fence and patted down and searched. He was accused of possession of marihuana. Mr. Person was simply playing basketball at the time the police approached him. After being arrested and subjected to a strip search Mr. Person was prosecuted. All charges were eventually dismissed.

h. On 5/2/12 in the vicinity of 1912 Third Avenue, New York, NY, Jose Baez, the manager of a local eyeglass store, left the store to buy his lunch. After leaving the store Mr. Baez, for no reason at all, was approached by several undercover police officers from Manhattan North Narcotics, and was detained, patted down, searched, and falsely accused of selling marihuana. Mr. Baez was subjected to a strip search. All charges against him were dismissed.

i. On 11/13/10 in the vicinity of 1113 Boston Road, Bronx, NY, Alpha Mahoi, was doing nothing illegal or improper when, for no reason, he was approached by several undercover police officers from Bronx Narcotics and accused of being involved in the sale of cocaine. He was cuffed, patted down, searched, arrested and strip searched at the precinct. All charges were dismissed.

j. On 3/10/12 in the vicinity of 1821 Davison Avenue, Bronx, NY, Keyewanie Blackledge, Dwayne Smith and Richard Campbell were leaving his friend's apartment when they were approached by several uniform police officers from the 46th Precinct for no reason and told to "get on the wall" and "get on the floor" and thereafter patted down and searched. They was charged with Trespassing in the Second Degree. All charges were dismissed.

k. On 8/1/12 in the vicinity of 1000 Simpson Street, Bronx, NY, Dylan Pena was outside recording on his cell phone several police officers from the 41st Precinct arresting a person from the neighborhood. Upon seeing Mr. Pena recording the incident several police officers grabbed him and pushed him to the ground and seized his cell phone without any reason to do so. All data on the phone was subsequently erased by the officers. Mr. Pena was also patted down and searched. He was charged with resisting arrest and was strip searched at the 41st Precinct. The charges were declined to be prosecuted by the District Attorney's Office.

l. On 5/17/11 in the vicinity of 1690 Clay Avenue, Bronx, NY, Gregory Williams was leaving a family friend's apartment after helping her move furniture so she could clean. Upon exiting the building Mr. Williams, for no reason at all, was approached by several uniformed police officers from the 44th Precinct and patted down and searched. He was accused of Trespassing in the Second Degree despite his family friend informing the police officers at the scene and at the 44th Precinct that he had permission to be in the building. Mr. Williams was strip searched. All charges against him were dismissed.

m. On 3/16/11 in the vicinity of 1740 Grand Avenue, Bronx, NY, Lindon Grant just left his apartment to walk approximately 1 block to buy breakfast before going to work. After he bought his breakfast and left the store he was approached by several undercover police officers from the 46th Precinct for no reason and patted down and searched. He was then accused of selling marihuana.

Mr. Grant was arrested, strip searched and prosecuted for several months. All charges were dismissed.

n. On 8/2/09 in the vicinity of Southern Boulevard and East 175th Street, Bronx, NY Jose Suazo was approached by several uniformed officers from the 42nd Precinct for no reason. Mr. Suazo was patted down and searched. Despite the fact that he had nothing illegal on his person he was charged with possession of marihuana. While already in custody in a police van shots were fired in a nearby park. When Mr. Suazo got to the precinct he found out that even though he was already in custody in the police van when the shots were fired, he was charged with possession of a weapon in the second degree. Mr. Suazo was subjected to a strip search. All charges were eventually dismissed.

o. On 8/12/19 in the vicinity of 894 Rogers Place, Bronx, NY, Edmanuel Benitez was standing outside of the building and waiting for a friend to come outside to play basketball. All of a sudden he was approached for no reason by officers from the 41st Precinct and thereafter patted down, searched, arrested, strip searched and prosecuted for the sale of marihuana. All charges were dismissed.

p. On 2/19/12 Daniel Rodriguez was leaving a store in the vicinity of Jerome Avenue and West 192nd Street when he was summarily grabbed, pushed against a wall, patted down, frisked, searched and then handcuffed by several officers from Bronx Narcotics. Mr. Rodriguez was doing nothing illegal or improper at the time. He was subsequently strip searched and charged with possession of a controlled substance in the seventh degree. All charges were dismissed.

q. On 9/28/11 Shakeem Enang was in the vicinity of West 179th Street and University Avenue when he was approached by several plain clothes officers from Bronx Narcotics Division. Mr. Enang was doing nothing illegal at the time the officers approached or any time prior to the

officers approaching. He was grabbed, seized, frisked, searched and then arrested. Mr. Enang was charged with criminal sale of a controlled substance. He was strip searched at the 46th Precinct. All charges were dismissed.

766. As is evidence from the above, Plaintiff **JEROME GRAHAM'S** injuries including the violation of his constitutional rights, the deprivation of his freedom, falsely and maliciously being prosecuted, physical and emotional injuries, are the direct and proximate result of the CITY'S and NYPD'S policies and/or deliberate indifference to practices which involve the excessive use of force, false arrest, police cover-ups, witness intimidation, malicious prosecution, illegal stop, questions and frisks, searches, Fourth Amendment violations, and deliberate indifference to the need to train, supervise, monitor, investigate and discipline, including suspension, dismissal and/or reassignment offending police officers. The practice is widespread and pervasive throughout the entire City of New York.

767. The CITY and NYPD knew or should have known of the customs and police practices of its officers which included but was not limited to: the failing to preserve and/or destruction of exculpatory evidence, threatening to arrest witnesses to police misconduct and engaging in cover-ups, fraud, perjury, deceit and malfeasance.

768. That the acts of employees of the CITY and NYPD, i.e. police officers, who violate the civil and constitutional rights of the citizens of the City of New York routinely go unreported, undisciplined and their acts condoned by other officers, including their supervisors. Upon information and belief, the supervisors of defendant police officers herein were aware of the conduct of defendant police officers and failed to stop, report or intervene in the misconduct.

769. The CITY and NYPD'S tolerance for brutality, excessive force, illegal and/or retaliatory arrests, and their emphasis to come down hard on quality of life infractions leads to a

systemic practice and policy wherein police officers seem fairly tolerant of police brutality, silence in the face of brutality and/or illegal stops, frisks, searches, seizures and/or arrests, and engage in the practice of meeting arrest quotas. A systemic practice where officers who report said misconduct are not viewed as “good cops” but rather as outcasts and are ostracized and often transferred to other assignments thereby perpetuating the illegal conduct of the NYPD and thusly the CITY.

770. Some instances where officers were treated as outcasts for reporting misconduct and/or arrest/summons quota system are as follows:

a. The existence of arrest quotas, summons quotas and approval of illegal stops and arrests have been exposed by Police officer Adrian Schoolcraft in a separate lawsuit which was cited by Justice Sheindlin in Floyd.

b. Justice Sheindlin referenced the deposition of Police Officer Adhily Polanco of the 41st Precinct stating that commanding officers set specific quotas for arrests and summons and for stop and frisks and threatened to reduce overtime for officers who failed to perform well and re-assign those who fail to meet quotas to less desirable posts.

c. According to secretly tape recorded conversations made by Schoolcraft, a Lieutenant, a Deputy Inspector and Chief of transportation can be heard encouraging and demanding increased stops, summons and detentions and arrests.

d. Police Officer Craig Lance of the 42nd Precinct filed a lawsuit against the NYPD claiming the existence of a quota system and a systematic retaliation and harassment to those who did not comply.

e. Retired Detective James Griffin filed a lawsuit claiming that in the NYPD there exists a culture wherein officers who report corruption will face harassment and a hostile work environment and that this conduct was tolerated by supervisors within the NYPD.

f. Police Officer Minoia, an officer with an Ivy League degree, assigned to the 42nd Precinct, was reassigned to a “punishment post” due to the fact that he failed to write a sufficient amount of summons and stated “I’m not going to pull out my summons book and write a summons because my boss is telling me he’s going to make it difficult for me if I don’t.”

771. In sum, the CITY and NYPD are responsible for creating a custom, policy or practice wherein many officers do not seem to believe that anything is really wrong with stopping and searching innocent citizens or using unnecessary or excessive force or falsely arresting citizens to meet an arrest quota.

772. That the above customs, policies and/or practices and the deliberate indifference thereto, was a direct and proximate cause of the illegal seizure of Plaintiff **JEROME GRAHAM**, the excessive use of force on Plaintiff, and the false arrest and malicious prosecution of Plaintiff. The CITY and NYPD’S policies, customs and/or practices deprived the Plaintiff of his rights and liberties as set forth in the Constitutions of the United States and the State of New York and under 42 U.S.C §§ 1983, 1986 and 1988.

773. That said actions violated the Fourth and Fourteenth Amendments to the Constitution of the United States, violated Plaintiff’s right to be secure in person, and that the defendants used excessive, unnecessary and unlawful force, which constituted cruel and inhumane treatment and denied him due process of law.

774. Moreover, the CITY and NYPD caused or created a policy and/or custom, and acted with deliberate indifference to patterns and/or police practices which included illegal seizures, excessive or arbitrary use of force, illegal use of police equipment, destruction of evidence, intimidation of witnesses, illegal arrests, failing to gather evidence when allegations of police misconduct are involved, condoning a code of silence within the NYPD regarding misconduct,

failing to take police reports of illegal conduct, failing to properly supervise, train, investigate or discipline officers, and any and/or all of the above have contributed to Plaintiff's false arrest, malicious and false prosecution, and injuries.

775. That the Plaintiff did not commit any illegal act, either before or at the time he was falsely arrested and imprisoned, assaulted, battered and deprived of his constitutional rights as set forth in the Constitution of the United States and 42 U.S.C § 1983.

776. That by reason of the foregoing, Plaintiff **JEROME GRAHAM** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A SEVENTIETH CAUSE OF ACTION ON BEHALF OF
PLAINTIFF JEROME GRAHAM**

777. Plaintiff **JEROME GRAHAM** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 776 with the same force and effect as if fully set forth at length herein.

778. At all times mentioned herein and above, defendants CITY and NYPD employed GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE as police officers and named defendants were acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

779. Plaintiff **JEROME GRAHAM** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

780. That on or about 8/25/23, defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, without probable cause, reasonable cause or legal justification and while effectuating the seizure of plaintiff

JEROME GRAHAM, did search, seize, assault and commit a battery and grab the Plaintiff **JEROME GRAHAM** without a court authorized arrest warrant or search warrant and defendants did physically seize Plaintiff **JEROME GRAHAM** during the arrest process in an unlawful and excessive manner. Plaintiff **JEROME GRAHAM** was falsely arrested, unlawfully imprisoned and searched and as a result of defendants' conduct maliciously prosecuted without the defendants possessing probable cause, reasonable cause or legal justification to do so.

781. The above actions of defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE resulted in Plaintiff **JEROME GRAHAM** being deprived of the following rights under the United States Constitution: a) Freedom from assault to his person; b) Freedom from battery to his person; c) Freedom from illegal search and seizure; d) Freedom from false arrest; e) Freedom from malicious prosecution; f) Freedom from the use of excessive force during the arrest process; and g) The right to Due Process of Law.

782. In addition to the above, defendants CITY and NYPD have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct its police officers, including the officers involved in this case and any and all unnamed officers involved in the unlawful seizure and arrest of plaintiff, regarding the protection of the constitutional rights of citizens.

783. Defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE, subjected Plaintiff **JEROME GRAHAM** to such deprivation in a malicious, reckless, deliberate, intentional, grossly negligent and with a callous disregard of Plaintiff **JEROME GRAHAM'S** rights and with deliberate indifference to those rights under the Fourth, Fifth, Sixth, Fourteenth and all other related Amendments to the

United States Constitution.

784. The direct and proximate result of the defendants CITY, NYPD, GOMES, DURST, MENA, GONZALEZ, QUERY, JAIME, ROSSETTE, MARTINEZCABRERA, DOE and ROE acts are that Plaintiff **JEROME GRAHAM** has suffered severe and permanent injuries, loss of liberty and companionship, forced to endure pain and suffering, emotional distress and severe and significant damage to standing and reputation in the community.

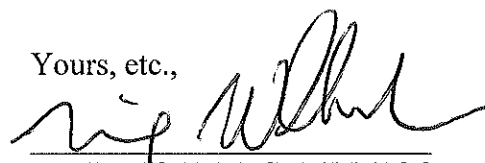
785. That by reason of the foregoing, Plaintiff **JEROME GRAHAM** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

WHEREFORE, the Plaintiff **DARREN DAVIS** demands judgment against the defendants on the First Cause of Action through the Seventh Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, the Plaintiff **RAYQUAN MCCULLUM** demands judgment against the defendants on the Eighth Cause of Action through the Fourteenth Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, the Plaintiff **ABRAHAM KABORE** demands judgment against the defendants on the Fifteenth Cause of Action through the Twenty-First Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, the Plaintiff **JOSHUA PINCKNEY** demands judgment against the defendants on the Twenty-Second Cause of Action through the Twenty- Eighth Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, the Plaintiff **SHAROD SLATER** demands judgment against the defendants on the Twenty-Ninth Cause of Action through the Thirty-Fifth Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, the Plaintiff **MARLIE WEBB** demands judgment against the defendants on the Thirty-Sixth Cause of Action through the Forty-Second

Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, the Plaintiff **ELLIJAH PINCKNEY** demands judgment against the defendants on the Forty-Third Cause of Action through the Forty-Ninth Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, the Plaintiff **DEBRYANNA LYMUS** demands judgment against the defendants on the Fiftieth Cause of Action through the Fifty-Sixth Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, the Plaintiff **CHRISTOPHER FRANCO** demands judgment against the defendants on the Fifty-Seventh Cause of Action through the Sixty-Third Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, the Plaintiff **JEROME GRAHAM** demands judgment against the defendants on the Sixty-Fourth Cause of Action through the Seventieth Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action together with attorney's fees, punitive damages and the costs and disbursements of this action.

Dated: Bronx, New York
March 13, 2024

Yours, etc.,



NEIL WOLLERSTEIN, ESQ.

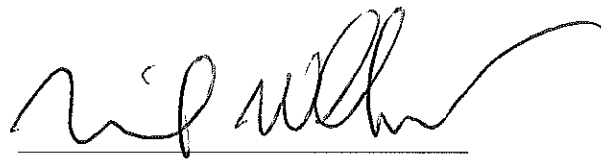
Attorney for Plaintiffs
895 Sheridan Avenue
Bronx, New York 10451
(718) 588-1300

ATTORNEY VERIFICATION

NEIL WOLLERSTEIN, an attorney duly admitted to practice before the courts of the State of New York affirms the following to be true pursuant to CPLR 2106 and under the penalties of perjury:

1. The undersigned, an attorney admitted to practice in the Courts of the State of New York states that he is retained on behalf of plaintiffs.
2. That affirmant has read the foregoing **SUPPLEMENTAL SUMMONS and AMENDED VERIFIED COMPLAINT** and knows the contents thereof; that the same is true to affirmant's own knowledge except as to the matters therein stated to be alleged on information and belief; and that as to those matters affirmant believes them to be true.
3. Your affirmant further says that the reason this verification is made by affirmant and not the plaintiffs is that the plaintiffs are not currently available.

Dated: Bronx, New York
March 13, 2024


NEIL WOLLERSTEIN

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

**DARREN DAVIS, RAYQUAN MCCULLUM, ABRAHAM KABORE, JOSHUA PINCKNEY,
SHAROD SLATER, MARLIE WEBB, ELLIJAH PINCKNEY, DEBRYANNA LYMUS,
CHRISTOPHER FRANCO and JEROME GRAHAM,**

Plaintiffs,

— against —

**CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER
TIAGO GOMES, POLICE OFFICER ALEX DURST, POLICE OFFICER ESTIVEN MENA,
POLICE OFFICER SHANYA GONZALEZ, LIEUTENANT BRIAN QUERY, POLICE
OFFICER JOHAN JAIME, POLICE OFFICER JOSE ROSSETTE, POLICE OFFICER
JUAN MARTINEZCABRERA, POLICE OFFICER JOHN DOE and POLICE OFFICER
JOHN ROE,**

Defendant(s).

SUPPLEMENTAL SUMMONS AND AMENDED VERIFIED COMPLAINT

NEIL WOLLERSTEIN, ESQ.

Attorney for Plaintiffs
895 Sheridan Avenue
Bronx, New York 10451
(718) 588-1300